

Chapter 2

Concluded matters

2.1 The committee considers a response to matters raised previously by the committee.

2.2 Correspondence relating to these matters is available on the committee's website.¹

Bills

Electoral Legislation Amendment (Electoral Communications) Bill 2024²

Purpose	The bill seeks to amend the <i>Commonwealth Electoral Act 1918</i> and the <i>Referendum (Machinery Provisions) Act 1984</i> to prohibit the authorisation of certain electoral or referendum matters containing false or misleading material. The bill would establish an Electoral Communications Panel to investigate alleged contraventions and require electoral and referendum matters that have been substantially or entirely created or modified using digital technology (including artificial intelligence) to carry a statement to that effect The bill seeks to make other amendments to repeal (from 1 July 2026) the requirements for licensed broadcasters and the Special Broadcasting Service to not broadcast election or referendum advertising in the last three days of voting in an election or referendum
Portfolio	Finance
Introduced	House of Representatives, 18 November 2024
Rights	Freedom of expression; participation in public affairs; privacy

Regulating the authorisation of certain electoral or referendum matters

2.3 This bill seeks to amend the *Commonwealth Electoral Act 1918* (Electoral Act) and the *Referendum (Machinery Provisions) Act 1984* (Referendum Act) to prohibit the

¹ See https://www.aph.gov.au/Parliamentary_Business/Committees/Joint/Human_Rights/Scrutiny_reports

² This entry can be cited as: Parliamentary Joint Committee on Human Rights, Electoral Legislation Amendment (Electoral Communications) Bill 2024, *Report 1 of 2025*; [2023] AUPJCHR 8.

authorisation of certain electoral matters (or referendum matters), where they include content which is 'inaccurate and misleading to a material extent' during electoral and referendum periods.³ An 'electoral matter' refers to a matter communicated or intended to be communicated for the dominant purpose of influencing the way electors vote in a federal election (including through advertisements, leaflets, pamphlets, flyers, posters or how-to-vote cards).⁴ Breach of these requirements would be subject to civil penalties. These penalties would not apply where the communication is paid for by an allowance provided for under the *Parliamentary Business Resources Act 2017*, or where the communication was authorised by a Commonwealth department.⁵

2.4 The bill would establish an Electoral Communications Panel (an independent statutory structure within the Australian Electoral Commission) to investigate alleged contraventions of these requirements.⁶ The panel would be able to undertake investigations, publish its decisions, and request that remedial action be undertaken. The panel could apply to the Federal Court of Australia for an injunction in relation to a possible contravention.

International human rights legal advice

Rights to freedom of expression; participation in public affairs; privacy

2.5 Regulating the publication of materials which include false or misleading information about electoral candidates may promote the right to privacy and reputation and the right to take part in public affairs.

2.6 The right to privacy and reputation prohibits arbitrary and unlawful interferences with an individual's privacy, family, correspondence or home.⁷ The right to take part in public affairs includes guarantees of the right of Australian citizens to stand for public office, to vote in elections and to have access to positions in public service.⁸ Given the importance of free speech and protest to the conduct of public

³ Schedule 1, item 27, proposed Part XXB – Electoral Communications (*Commonwealth Electoral Act 1918*) and Schedule 2, item 23, proposed Part IXA – Referendum Communications (*Referendum (Machinery Provisions) Act 1984*).

⁴ *Commonwealth Electoral Act 1918*, section 4AA. A referendum matter refers to matter whose dominant purpose is to influence the way electors vote at a referendum. See *Referendum (Machinery Provisions) Act 1984*, section 3AA.

⁵ Schedule 1, item 27, proposed subsection 321L(3) (*Commonwealth Electoral Act 1918*) and schedule 2, item 23, proposed subsection 112D(3) (*Referendum (Machinery Provisions) Act 1984*).

⁶ Schedule 1, item 27, proposed section 321Q (*Commonwealth Electoral Act 1918*) and schedule 2, item 23, proposed section 112H (*Referendum (Machinery Provisions) Act 1984*).

⁷ UN Human Rights Committee, *General Comment No. 16: Article 17* (1988) [3]-[4].

⁸ UN Human Rights Council, *General Comment No.25: Article 25, Right to participate in public affairs, voting rights and the right of equal access to public service* (1996).

affairs in a free and open democracy, the realisation of the right to take part in public affairs depends on the protection of other key rights, such as freedom of expression, association and assembly.

2.7 Restricting the things which people can communicate regarding elections and referendums engages and limits the right to freedom of expression. The right to freedom of expression includes the freedom to seek, receive and impart information and ideas of all kinds, either orally, in writing or print, in the form of art, or through any other media of an individual's choice.⁹ It may be subject to limitations that are necessary to protect the rights or reputations of others, national security, public order, public health or morals. Such limitations must be prescribed by law, be rationally connected to the objective of the measures and be proportionate.¹⁰ It appears that the proposed measures would likely constitute a proportionate limit on the right to freedom of expression.

2.8 Further, the publication of decisions by the panel (that a person has authorised an electoral advertisement or referendum material containing inaccurate/misleading information) may engage and limit the right to privacy. The right to privacy may be subject to permissible limitations where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective. In this regard, it is not clear what information may be published as part of a 'decision', and in particular what personal information the panel could publish. It is unclear why the bill does not particularise the information which the panel may and may not publish. While the panel would not be required to publish a decision where it has decided not to pursue a potential contravention, it is unclear whether, if the panel's decision was reversed on review, the panel would be required to remove the published notice of decision or take other remedial action.

Committee's initial view

2.9 The committee noted that this bill would regulate the publication of electoral and referendum matters which include content which is inaccurate or misleading to a material extent and may promote the right to participate in public affairs and the right to privacy and reputation.

2.10 The committee noted that restricting what people can communicate regarding elections and referendums engages and limits the right to freedom of expression, and that the publication of decisions by the panel may engage and limit the right to privacy.

2.11 The committee considered further information was required to assess the compatibility of this measure with these rights, and as such sought the minister's advice.

⁹ International Covenant on Civil and Political Rights, article 19(2).

¹⁰ UN Human Rights Committee, *General Comment No.34: Article 19: Freedoms of opinion and expression* (2011) [21]-[36].

2.12 The full initial analysis is set out in [Report 11 of 2024](#).

Minister's response¹¹

2.13 The minister advised:

a) Why authorisable electoral or referendum matter paid for by an allowance provided for under the *Parliamentary Business Resources Act 2017*, or where the communication was authorised by a Commonwealth department, would not be subject to the proposed prohibitions

The amendments are designed to impact on the right to take part in public affairs only insofar as the right relates to conducting paid electoral advertising and promotional materials during the period of an election or referendum.

Consistent with existing provisions in the Electoral Act, the amendments are not intended to impact upon any other kind of communication that relates to the right to take part in public affairs, such as the conduct of Parliamentary business or communications by the Commonwealth.

b) What an 'investigation' process undertaken by the Electoral Communications Panel would entail and whether the person who has authorised the relevant content would be able to make submissions regarding the content as part of that process

The Bill promotes fair hearing rights by ensuring that investigations will be conducted by an independent and impartial decision-making body with relevant experience in procedural fairness. The conduct of investigations will be a matter for the Electoral Communications Panel to determine once it has been established.

The Bill does not prohibit on the authoriser of the relevant matter making a submission to the Decision Panel, nor does the Bill prevent the Decision Panel from conducting public hearings. Instead, the Decision Panel may consult or request information or advice from any person or entity including the authoriser, and the Chair may require information from any person or entity whom the Chair has reason to believe has relevant information.

c) What information the Decision Panel may publish as part of a 'decision', and what personal information the Decision Panel could publish

The Bill requires the Decision Panel to publish its reasons for decision (section 321RC). The Decision Panel, as a part of the Australian Electoral Commission, will be subject to the Australian Privacy Principles (APPs) as set out in the *Privacy Act 1988*. Information disclosed to the Electoral Communications Panel under the Bill is collected and used consistently with

¹¹ The minister's response to the committee's inquiries was received on 20 January 2025. This is an extract of the response. The response is available in full on the committee's [webpage](#).

the APPs. Any publication of personal information by the Decision Panel will be subject to the standards, rights, and obligations set out by the APPs.

d) Why the Electoral Communications Bill does not particularise the personal or identifying information which the Panel may and may not publish

Any personal or identifying information that is disclosed to the Panel must be used and published in accordance with the APPs.

e) Whether, if the Panel's decision was reversed on review, the Panel would be required to remove the published notice of decision or take other remedial action

As outlined in the above the publication of Panel decisions will be subject to the standards, rights, and obligations set out by the APPs. This includes the requirements regarding the quality and correction of personal information held by the Panel (APPs 10 and 13).

Further, decisions and publications by a Decision Panel will be subject to the ordinary principles of decision-making under administrative law and to the directions of the Court conducting the judicial review.

Concluding comments

International human rights legal advice

2.14 With respect to the right to take part in public affairs, the preliminary analysis noted that no information was provided as to why the prohibition on authorising certain electoral matters (or referendum matters) during electoral and referendum periods would not apply where the communication is paid for by an allowance provided for under the *Parliamentary Business Resources Act 2017* (which provides for parliamentarians' remuneration, expenses, allowances and other public resources), or where the communication was authorised by a Commonwealth department. The minister stated that the amendments are designed to impact on the right to take part in public affairs only insofar as the right relates to conducting paid electoral advertising and promotional materials during the period of an election or referendum and are not intended to impact upon any other kind of communication that relates to the right to take part in public affairs, such as the conduct of Parliamentary business or communications by the Commonwealth. However, it remains unclear why these kinds of communications are excluded from the penalties in the bill, as including all electoral matters which include content which is inaccurate and misleading to a material extent would appear to promote (and, equally, would not appear to limit) the right to take part in public affairs.

2.15 As to the proportionality of the measure to publish decisions by the panel and its impact on the right to privacy, the minister stated that investigations will be conducted by an independent and impartial decision-making body who may request information or advice from any person or entity including the authoriser of the relevant matter, and that the conduct of investigations will be a matter for the panel

to determine once it has been established. Further, the minister stated that, as the panel would be required to publish reasons for its decision, information collected and published which includes personal information would be subject to the Australian Privacy Principles (APPs) as set out in the *Privacy Act 1988* (Privacy Act). As to any requirement to correct inaccurate information that had been published, the minister stated that APP requirements regarding the quality and correction of personal information held by the panel would apply. These requirements would require an entity to take 'reasonable steps' to ensure that personal information it uses and discloses is accurate, up to date, and complete,¹² and to take reasonable steps to correct personal information.¹³ The minister further stated that decisions and publications by the panel will be subject to the ordinary principles of decision-making under administrative law and to the directions of the court conducting judicial review.

2.16 While compliance with the Privacy Act and APPs may offer some safeguard value, it is not a complete answer to concerns about interference with the right to privacy for the purposes of international human rights law. The APPs contain a number of exceptions to the prohibition on use or disclosure of personal information for a secondary purpose, including where its use or disclosure is authorised under an Australian law,¹⁴ which may be a broader exception than permitted in international human rights law. There is also a general exemption in the APPs regarding the disclosure of personal information for a secondary purpose where it is reasonably necessary for one or more enforcement related activities conducted by, or on behalf of, an enforcement body.¹⁵ Consequently, there may be a risk that, depending on the information collected and published by the panel in practice, this measure may impermissibly limit the right to privacy.

Committee view

2.17 The committee thanks the minister for this response. The committee notes that it was received after the deadline by which the committee had requested it.

2.18 The committee notes that this bill would regulate the publication of electoral and referendum matters which include content which is inaccurate or misleading to a material extent and may promote the right to participate in public affairs, and the right to privacy and reputation.

2.19 However, it remains unclear to the committee why the prohibition on authorising certain electoral matters (or referendum matters) during electoral and referendum periods would not apply where the communication is paid for by an allowance provided for under the *Parliamentary Business Resources Act 2017* (which provides for parliamentarians' remuneration, expenses, allowances and other public

¹² APP 10.

¹³ APP 13.

¹⁴ APP 9; APP 6.2(b).

¹⁵ APP 6.2(e).

resources), or where the communication was authorised by a Commonwealth department. The committee considers that prohibiting all electoral matters which include content which is inaccurate and misleading to a material extent would appear to promote (and, equally, would not appear to limit) the right to take part in public affairs.

2.20 Further, the committee considers that the publication of decisions by the Electoral Communications Panel (that a person has authorised an electoral advertisement or referendum material containing inaccurate and misleading information) may engage and limit the right to privacy. The committee considers it remains unclear whether there are adequate safeguards in place to protect the right to privacy of persons who have authorised electoral content containing inaccurate and misleading information. In particular, the committee considers that it is unclear: what an 'investigation' may entail; what information the Electoral Communications Panel may publish as part of a 'decision'; what personal information the panel could publish; and whether, if the panel's decision was reversed on review, the panel would be required to remove the published notice of decision or take other remedial action. The committee considers there is a risk that the measure would constitute an impermissible limit on the right to privacy.

Suggested action

2.21 The committee considers the proportionality of this measure may be assisted were the bill amended to provide for additional privacy safeguards, for example to specify what information the Electoral Communications Panel may or may not publish and a process to remove the published notice or take other remedial action if the panel's decision was reversed on review.

2.22 The committee draws these human rights concerns to the attention of the minister and the Parliament.

Electoral Legislation Amendment (Electoral Reform) Bill 2024¹⁶

Purpose	The bill seeks to amend the <i>Commonwealth Electoral Act 1918</i> and the <i>Referendum (Machinery Provisions) Act 1984</i> to: • introduce gift caps, require expedited disclosure of gifts, and reduce the disclosure threshold to \$1,000; • introduce electoral expenditure caps; • replace the requirement for election returns with annual returns submitted on a calendar year basis; and • increase public funding of parties and candidates.
Portfolio	Finance
Introduced	House of Representatives, 18 November 2024
Rights	Right to take part in public affairs; freedom of expression; privacy; equality and non-discrimination; rights of persons with disabilities

2.23 The committee requested a response from the minister in relation to the bill in [Report 11 of 2024](#).¹⁷

Gift caps, electoral expenditure caps and increases to public funding of parties and candidates

2.24 Schedule 3 of the bill seeks to amend the *Commonwealth Electoral Act 1918* (Electoral Act) to introduce annual caps on the gifts that a person or entity can give to the same recipient in a calendar year¹⁸ to fund election campaigning¹⁹ up to \$20,000.²⁰ The bill would provide that gifts made to recipients related to a particular state or territory would be subject to the state and territory gift cap of 5 times the annual gift

¹⁶ This entry can be cited as: Parliamentary Joint Committee on Human Rights, Electoral Legislation Amendment (Electoral Reform) Bill 2024, *Report 1 of 2025*; [2025] AUPJCHR 9.

¹⁷ Parliamentary Joint Committee on Human Rights, *Report 11 of 2024* (27 November 2024) pp. 14-30.

¹⁸ ‘Gift’ means any disposition of property made by a person or entity to another person or entity, being a disposition made without consideration in money or money’s worth or with inadequate consideration, and includes the provision of a service for no consideration or inadequate consideration: see Schedule 1, part 1, item 18, proposed section 287AAB.

¹⁹ That is, for a ‘Federal purpose’. This means the purpose of incurring electoral expenditure, or creating or communicating electoral matters: see *Commonwealth Electoral Act 1918*, subsection 287(1).

²⁰ Schedule 3, item 2, proposed subsection 302BA(1).

cap.²¹ A donor would be able to donate to multiple individuals or entities that are not related to an overall gift cap of 32 times the annual gift cap for the calendar year.²² These caps would reset if a general election were held in a calendar year.²³ The bill would impose separate caps for by-elections and Senate-only elections of \$20,000.²⁴

2.25 Schedule 4 of the bill seeks to introduce annual caps on electoral expenditure incurred by registered political parties, candidates, members of the House of Representatives, Senators, associated entities, significant third parties, nominated entities and third parties. 'Electoral expenditure' means expenditure incurred for the dominant purpose of creating or communicating an electoral matter.²⁵ The bill would provide for different values and formulas to determine a person or entity's expenditure cap.²⁶ For example, for a registered political party, the bill would cap such expenditure at a federal level to \$90 million, at the divisional level to \$800,000, and at the state or territory level to \$200,000 multiplied by the number of divisions in the state or territory.²⁷ For an independent House of Representatives candidate or member, the bill would cap expenditure at \$800,000.²⁸ For an independent Senate candidate or Senator, the bill would cap expenditure at \$200,000 multiplied by the number of divisions in the state or territory, divided by 6 for a state and 2 for a territory.²⁹ The bill would also impose separate caps for by-elections and Senate-only elections.³⁰

2.26 Schedule 7 of the bill seeks to introduce administrative assistance funding and election funding for registered political parties and independent members of the House of Representatives and independent Senators. The Electoral Act provides that election funding is payable in relation to any candidate who received at least four per cent of the total formal first preference votes cast in the election.³¹ This bill proposes to increase the nominal dollar rate of \$2.801 (currently indexed at \$3.346) to \$5 per

²¹ Schedule 3, item 5, proposed subsection 302CJ(1).

²² Schedule 3, item 5, proposed subsection 302CI(1).

²³ Schedule 3, item 5, proposed sections 302CG and 302CK.

²⁴ Schedule 3, item 1, proposed section 302B; item 5, proposed sections 302CE and 302CF.

²⁵ Commonwealth Electoral Act 1918, section 287AB.

²⁶ Schedule 4, item 2, proposed Division 3AB.

²⁷ Schedule 4, item 2, proposed section 302ALA and subdivision C.

²⁸ Schedule 4, item 2, proposed section 302ALA and subdivision D.

²⁹ Schedule 4, item 2, proposed section 302ALA and subdivision E. For example, the independent Senate cap in New South Wales is \$1,533,333 $((\$200,000 \times 46) \div 6)$ and the independent Senate cap in the ACT is \$300,000 $((\$200,000 \times 3) \div 2)$.

³⁰ Schedule 4, item 2, proposed sections 302AMD and 302AME.

³¹ *Commonwealth Electoral Act 1918*, sections 293, 294 and 295.

total first preference vote for eligible recipients,³² and also provides that regulations may be made to provide for the advance payment of election funding.³³

Summary of initial assessment

Preliminary international human rights legal advice

Right to take part in public affair; freedom of expression; right to equality and non-discrimination

2.27 To the extent that limiting the amounts of money that can be donated and spent on electoral matters may remove the influence of substantial donors and allow for more individuals and entities to participate in political debate, these measures may promote the right to take part in public affairs and the right to freedom of expression.

2.28 However, if these measures were also to impact the ability of an individual or entity to campaign effectively by limiting donations and electoral expenditure, they may also limit these same rights. The right to take part in public affairs includes guarantees of the right of Australian citizens to stand for public office, to vote in elections and to have access to positions in public service.³⁴ The right encompasses equality of access to the public service, which includes all positions in the legislature. It requires states to ‘treat all political parties on an equal footing and offer them equal opportunities to pursue their legislative activities’.³⁵ The right to freedom of expression includes the freedom to seek, receive and impart information and ideas of all kinds, either orally, in writing or print, in the form of art, or through any other media of an individual’s choice.³⁶ The effective functioning of a democratic society necessarily requires free political communication.

2.29 Further, to the extent that these measures may disproportionately impact people with particular protected attributes who are underrepresented by major political parties (for example, women or ethnic minority groups), they may also engage and limit the right to equality and non-discrimination.³⁷ This right provides that everyone is entitled to enjoy their rights without discrimination of any kind and that all people are equal before the law and entitled without discrimination to equal and

³² Schedule 7, part 2.

³³ Schedule 7, item 11, proposed section 298J.

³⁴ UN Human Rights Committee, *General Comment No.25: Article 25, Right to participate in public affairs, voting rights and the right of equal access to public service* (1996).

³⁵ UN Human Rights Committee, *Concluding observations on the third period report of Rwanda*, CCPR/C/RWA/CO/3 (2009) [21].

³⁶ International Covenant on Civil and Political Rights, article 19(2).

³⁷ International Covenant on Civil and Political Rights, articles 2 and 26.

non-discriminatory protection of the law.³⁸ The right to equality encompasses both 'direct' discrimination (where measures have a discriminatory intent) and 'indirect' discrimination (where measures have a discriminatory effect on the enjoyment of rights).³⁹ Indirect discrimination occurs where 'a rule or measure that is neutral at face value or without intent to discriminate' exclusively or disproportionately affects people with a particular protected attribute.⁴⁰

2.30 Additionally, increasing public funding to parties and candidates based on formal first preference votes may increase the relative monetary power of some individuals and entities over others, particularly incumbents and bigger parties, which may impact the ability of independents and non-incumbents to take part in public affairs. This bill has been subject to significant public comment raising concerns in this respect.⁴¹

2.31 The right to take part in public affairs may be subject to permissible limitations where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective. The right to freedom of expression may be subject to limitations that are necessary to protect the rights or reputations of others,⁴² national security, public order, or public health or morals. Additionally, such limitations must be prescribed by law, be rationally

³⁸ International Covenant on Civil and Political Rights, articles 2 and 26. Article 2(2) of the International Covenant on Economic, Social and Cultural Rights also prohibits discrimination specifically in relation to the human rights contained in the International Covenant on Economic, Social and Cultural Rights.

³⁹ UN Human Rights Committee, *General Comment 18: Non-discrimination* (1989).

⁴⁰ *Althammer v Austria*, UN Human Rights Committee Communication no. 998/01 (2003) [10.2]. The prohibited grounds of discrimination are race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status. Under 'other status' the following have been held to qualify as prohibited grounds: age, nationality, marital status, disability, place of residence within a country and sexual orientation. The prohibited grounds of discrimination are often described as 'personal attributes'. See Sarah Joseph and Melissa Castan, *The International Covenant on Civil and Political Rights: Cases, Materials and Commentary*, 3rd edition, Oxford University Press, Oxford, 2013, [23.39].

⁴¹ See, for example, Emerita Professor Anne Twomey, [Sneaky, excessive and unjustified: why Labor's electoral reforms are vulnerable to constitutional challenge](#), *The Guardian*, 20 November 2024; Professor Joo-Cheong Tham, [Political finance law reforms will reduce big money in politics, but will rich donors be the ultimate winners?](#), *The Conversation*, 19 November 2024.

⁴² Restrictions on this ground must be constructed with care. For example, while it may be permissible to protect voters from forms of expression that constitute intimidation or coercion, such restrictions must not impede political debate. See UN Human Rights Committee, *General Comment No. 34: Article 19: Freedoms of Opinion and Expression* (2011) [28].

connected to the objective of the measures and be proportionate.⁴³ Differential treatment (including the differential effect of a measure that is neutral on its face) will not constitute unlawful discrimination if the differential treatment is based on reasonable and objective criteria such that it serves a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.⁴⁴

Committee's initial view

2.32 The committee noted that this bill seeks to cap the provision of electoral financing gifts and permissible electoral expenditure. The committee noted that the stated intention of the measure is to limit the influence of big donors and allow for more individuals and entities to participate in political debate. The committee considered that, to the extent the measure may achieve this in practice, it may promote the right to take part in public affairs and the right to freedom of expression.

2.33 However, the committee further noted that these measures, and the measure to provide additional public election funding, may also limit the rights to take part in public affairs, the right to freedom of expression and the right to equality and non-discrimination.

2.34 The committee considered further information was required to assess the compatibility of this measure with these rights, and as such sought the minister's advice.

2.35 The full initial analysis is set out in [Report 11 of 2024](#).

Minister's response⁴⁵

2.36 The minister advised:

(a) Gift caps, electoral expenditure caps and increase to public funding of parties and candidates

The PJCHR considers caps may, on the one hand, promote the right to take part in public affairs and the right to freedom of expression, and on the other, limit the rights to take part in public affairs, the right to freedom of expression and the right to equality and non-discrimination.

As outlined in the Bill's explanatory memorandum, spending in Australian elections is increasing above inflation and population growth. For many participants, this upward trend necessitates fundraising and donation

⁴³ UN Human Rights Committee, *General Comment No.34: Article 19: Freedoms of Opinion and Expression* (2011) [21]-[36].

⁴⁴ UN Human Rights Committee, *General Comment 18: Non-Discrimination* (1989) [13]; see also *Althammer v Austria*, UN Human Rights Committee Communication No. 998/01 (2003) [10.2].

⁴⁵ The minister's response to the committee's inquiries was received on 20 January 2025. This is an extract of the response. The response is available in full on the committee's [webpage](#).

drives, to secure financial means to outspend, rather than out-campaign, one's opponent.

The expenditure cap levels in the Bill are set to arrest the exponential growth in campaign spending. These levels were set using data in the Transparency Register published on the Australian Electoral Commission's website, and engagement with electoral participants.

The Bill leaves participation, policy, and media use/coverage untouched. By placing parameters on spending, the Bill will promote local, grass-roots participation, engagement, and campaigning. This will seek to return election campaigning to a contest of ideas rather than bank balances.

The Bill as drafted, captures all political participants, and sets reasonable and generous annual financial limits on all participants in the political process – from major parties to small charities and individual donors. Capturing every participant in the process, via a balanced and proportional limit, prevents creative avoidance like the 'Super PAC' model seen in the United States of America.

While Australia's political system has historically featured major parties, there is an ever-increasing pool of financially wealthy or well-funded independent candidates, working alone or in coalition. Data from the Transparency Register shows a spate of candidates in the 2022 federal election who received large donation amounts from a small group of donors. There is much public discourse about the influence of 'vested interests' in our democracy and the competing interests of individual wealthy donors and constituents.

In addition, in 2022, there are estimates of candidates and parties spending significant amounts, even millions of dollars, in single divisions. These kinds of electoral races do not serve the voting public and in fact may tend towards the opposite.

Consideration of cap values

The gift cap and expenditure cap provisions in the Bill were developed following extensive consultation across the parliament and with stakeholders. These changes implement the recommendations of JSCEM and recognise that real or perceived disproportionately large amounts of donations and expenditure undermine the integrity of Australia's electoral system by inviting suggestions of corruption and buying influence.

The caps on electoral expenditure and gifts apply to individuals and entities engaged in the Australian electoral system. This includes registered political parties, candidates, significant third parties, nominated entities, associated entities and third parties. The caps apply equally to all these kinds of individuals and entities regulated by the Electoral Act.

The Bill's EM includes data from the AEC Transparency Register which shows that major parties spent well over \$100 million each last election. Based on

this, the Bill has an all-inclusive national cap of \$90 million for registered political parties per calendar year.

State limits (proportional to the size of the state/territory) and divisional (electorate-based) limits of \$800,000 are also included within the \$90 million federal cap, preventing big parties from pooling unrestricted large sums in targeted areas. Taking the 150 seats to be contested in 2025, a party could spend \$600,000 in each division, if it had no electoral expenditure on a national campaign or any senate (whole state/territory) campaigns.

The same federal caps and senate caps apply regardless of a party's size: minor parties running few candidates have the same caps as a major party running candidates in all seats. The division cap is the same for an independent or unendorsed candidate. In both cases, this acknowledges that regardless of a party or candidate's fundraising ability or profile, they should be able to spend the same in a divisional race. It is these divisional races that determine the parliament and the government.

As discussed above, there is an increasing need to fundraise to participate in a divisional race. By setting limits on donations and spending, candidates who already have large personal wealth, access to funds, or wealthy patrons and donors, would have limitations on how much of that wealth they can spend. Further under the legislation, candidates and parties would also have limits on how much they can take from any one donor, curtailing the capacity for wealthy individual donors to wield their influence.

Candidates with existing access to funds, and who properly and legitimately spend that money in elections in accordance with the Bill, will not need to fundraise as much as new entrants. However, setting limits on campaign spending and individual donations, will make campaigning in an election more accessible to ordinary Australians.

The caps will set a ceiling to stop the upper range of donations and spending, applying downward pressure on the cost of elections. This ensures that elections are a contest of ideas, not bank balances, and protects the right of all Australians to exercise political expression.

Public funding

Public funding is available to all eligible candidates, including those who are not elected but who meet the funding threshold provided for under current Part XX of the Electoral Act.

Advance payment of public funding proposed in the Bill would operate on an opt-in basis. The Bill creates a regulation-making power to permit the payment of election funding to be made as an advance on funding that may become payable, based on entitlement to election funding for the previous general election. This, along with increasing the dollar rate on which election funding is calculated, serves the purpose of reducing the need for political actors to rely on private donations to contest elections, taking 'big money' influence out of elections.

Concluding comments

International human rights legal advice

2.37 The preliminary analysis noted that creating the conditions for more people to stand for public office and reducing the influence of big donors over election outcomes likely promotes the right to take part in public affairs and the right to freedom of expression. However, questions arose as to whether, if the measures impacted the ability of an individual or entity to campaign effectively, they would limit those same rights and disproportionately impact people with particular protected attributes who are underrepresented by major political parties (for example, women or ethnic minority groups). The preliminary analysis noted that the stated objectives would constitute legitimate objectives for the purposes of international human rights law. However, it was unclear to the committee whether the measures are rationally connected to (that is, capable of achieving), and a proportionate means of achieving, these objectives.

Rational connection

2.38 As to whether the measures are rationally connected to the objective of creating the conditions for more people to stand for public office and to reduce the influence of big donors over election outcomes, the minister advised that expenditure cap levels are set to arrest the exponential growth in campaign spending. The minister stated that these have been set using data in the Transparency Register, and engagement with electoral participants. The minister stated that the cap will promote local, grass-roots participation, engagement and campaigning. While the caps on expenditure and gifts apply equally to all kinds of individuals and entities regulated by the *Commonwealth Electoral Act 1918*, they remain at a level which would appear to still allow significant influence over election outcomes. It remains unclear how setting such high caps would not have a disproportionate impact on the ability of an unaligned independent candidate to campaign effectively against more well-resourced candidates who are supported by a political party. Consequently, it remains unclear how this measure would be effective to promote greater participation.

2.39 The minister stated that the advanced additional electoral funding to existing members of Parliament would be available based on entitlement to election funding for the previous general election on an opt-in basis. The minister stated that this would reduce the need for political actors to rely on private donations to contest elections, thereby taking ‘big money’ influence out of elections. However, it remains unclear what impact this measure may have on non-incumbents who are unable to access such funding in advance to spend on electoral campaigns. If these measures provide an unfair advantage to some parties or candidates in practice, this may undermine the stated objectives of the measures. It therefore remains unclear whether the measures are rationally connected to (that is, effective to achieve) their stated objectives.

Proportionality

2.40 As to proportionality, the minister stated that the gift and expenditure caps were developed following extensive consultation across the parliament and with stakeholders, and would implement the recommendations of the Joint Standing Committee on Electoral Matters (JSCEM). The minister stated that the measures recognise that disproportionately large amounts of donations and expenditure (real or perceived) undermine the integrity of Australia's electoral system and that setting limits on campaign spending and individual donations will make campaigning in an election more accessible to ordinary Australians. However, as noted in the preliminary analysis, the JSCEM Interim Report stated that such caps should be based on evidence the committee had received, and should have regard to being based at a level that recognises 'the additional hurdles to entry faced by independents or new entrants'. It also considered having caps 'higher for independent candidates, noting they generally have less existing structural support than candidates endorsed by a national political party'.⁴⁶ It remains unclear whether the cap limits set have taken into account the additional hurdles to entry for independents or new entrants and whether the measures would indirectly disadvantage particular groups of people from standing for election, and whether less rights restrictive alternatives (such as identifying any structural disadvantages some individuals may face over others and introducing measures to counteract them) would be ineffective to achieve the stated objectives of the measures.

2.41 Consequently, there may be a risk that these measures would constitute impermissible limits on the rights to take part in public affairs, freedom of expression, and equality and non-discrimination in practice.

Committee view

2.42 The committee thanks the minister for this response. The committee notes that it was received after the deadline by which the committee had requested it.

2.43 The committee notes that this bill would cap the provision of electoral financing gifts and permissible electoral expenditure. The committee notes that, in its preliminary analysis, it concluded that (to the extent the bill may achieve this in practice) limiting the influence of big donors and allowing for more individuals and entities to participate in political debate may promote the right to take part in public affairs and the right to freedom of expression.

2.44 However, the committee considered that if these measures were to also impact the ability of an individual or entity to campaign effectively by limiting donations and electoral expenditure, they may also limit these same rights and may disproportionately impact people with particular protected attributes who are underrepresented by major political parties (for example, women or ethnic minority

⁴⁶ Joint Standing Committee on Electoral Matters (JSCEM), *Conduct of the 2022 federal election and other matters: Interim Report* (19 June 2023) pp. 66-67.

groups), and as such they may also engage and limit the right to equality and non-discrimination.

2.45 The committee considers that it remains unclear whether the measures would disproportionately impact independents or new entrants, and that it is unclear how the measures would be rationally connected to (that is, effective to achieve) the objectives sought. The committee considers that it remains unclear whether the cap limits set have taken into account the additional hurdles to entry for independents or new entrants and whether the measures would indirectly disadvantage particular groups of people from standing for election, and whether less rights restrictive alternatives (such as identifying any structural disadvantages some individuals may face over others and introducing measures to counteract them) would be ineffective to achieve the stated objectives of the measures. As such, the committee considers there may be a risk that these measures would impermissibly limit the rights to take part in public affairs, freedom of expression and equality and non-discrimination in practice.

2.46 The committee draws these human rights concerns to the attention of the minister and the Parliament.

Reducing the donations disclosure threshold

2.47 The Electoral Act currently requires that a donation of \$16,900 and over must be disclosed publicly to the Australian Electoral Commission (AEC) Transparency Register.⁴⁷ Schedule 1 of the bill seeks to reduce that disclosure threshold to \$1,000 (subject to indexation on 1 January after each general election).⁴⁸ Schedule 2 of the bill would also require such donations to be disclosed to the AEC more frequently.⁴⁹ Disclosure timeframes would vary depending on the recipient but, generally, relevant gifts must be disclosed before the end of the 21st day of each month, within 7 days during the 'election period'⁵⁰ and, for donors during the 'expedited notice period',⁵¹ within 24 hours.⁵² Recipients and donors who do not disclose within the relevant timeframe would be subject to a civil penalty of the higher of 60 penalty units (currently, \$19,800) or 3 times the amount or value of the relevant gift.⁵³

⁴⁷ Commonwealth Electoral Act 1918, Division 4 (disclosure of donations).

⁴⁸ Schedule 1, item 10, proposed subsection 287(1)(definition of *disclosure threshold*).

⁴⁹ Schedule 2, item 4, proposed sections 303A and 303E.

⁵⁰ 'Election period' means the period beginning on the issue of the writ for the election until close of polls, see Schedule 2, item 4, proposed section 303.

⁵¹ 'Expedited notice period' means the period beginning on the Saturday immediately preceding the polling day for the election and ending seven days after that polling day, see Schedule 2, item 4, proposed section 303.

⁵² Schedule 2, item 4, proposed subsections 303A(2) and 303E(2).

⁵³ Schedule 2, item 4, subsections 303A(1) and 303E(1).

2.48 Gift donations over the disclosure threshold, or aggregated to an amount which is over the disclosure threshold, are published on the AEC Transparency Register. The Australian Electoral Commissioner would be required to publish information provided in a return within 24 hours of receiving it.⁵⁴ The Australian Electoral Commissioner would be required to publish the following information in relation to a gift:

- the name of the person or entity that received the gift;
- the name of the donor;
- if the recipient is a candidate in an election or by-election, a member of the House of Representatives or a Senator, the registered political party (if any) that the recipient is related to;
- the amount or value of the gift;
- the date on which the gift was made;
- if the gift was made during the election period for a by-election or Senate-only election, the name of the division or the state or territory to which the election relates;
- if the total amount or value of all gifts received by the recipient from the donor during the calendar year in which the gift was received is more than the disclosure threshold, the total amount or value of all gifts so far received; and
- any other gift received by the donor if the earlier gift was used wholly or partly to enable the donor to make the gift, or reimburse the donor for the gift, to which the donation disclosure notice relates and the amount or value of the earlier gift is more than the disclosure threshold.⁵⁵

2.49 The Australian Electoral Commissioner would have the power to redact or remove personal information (within the meaning of the *Privacy Act 1988*) required to be published, or decide not to include information in the AEC Transparency Register, if the Australian Electoral Commissioner were satisfied that the publication of the information places, or would place, the personal safety of a person or of members of the person's family, at risk.⁵⁶

Summary of initial assessment

Preliminary international human rights legal advice

Rights to privacy; take part in public affairs

2.50 By lowering the disclosure threshold, a greater number of donations (and potentially individual donors) would be subject to publication on the AEC Transparency Register, including publication of personal information. This would

⁵⁴ Schedule 2, item 4, proposed section 303J.

⁵⁵ Schedule 2, item 4, subsection 303J(1).

⁵⁶ Schedule 5, item 21, proposed paragraph 320(1)(1A).

engage and limit the right to privacy. Further, if this requirement resulted in individuals choosing not to donate to avoid personal information about their political preferences being included on the AEC Transparency Register, this measure may engage and limit the right to take part in public affairs.

2.51 The right to privacy includes respect for informational privacy, including the right to respect for private and confidential information, particularly the storing, use and sharing of such information.⁵⁷ It also includes the right to control the dissemination of information about one's private life. The right to take part in public affairs is set out above. It includes the right of every citizen to take part in the conduct of public affairs by exerting influence through public debate and dialogues with representatives either individually or through bodies established to represent citizens.⁵⁸

2.52 These rights may be subject to permissible limitations where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

Committee's initial view

2.53 The committee noted that the bill seeks to reduce the threshold for which disclosure of an electoral donation must be made public from \$16,900 to \$1,000. The committee considered that to the extent that this would provide greater transparency over political donations, this may promote the right to take part in public affairs.

2.54 However, the committee considered that the requirement to publicly disclose a greater number of donations, a process which includes the publication of personal information on the AEC Transparency Register, also engages and limits the right to privacy and, if this measure resulted in individuals choosing not to donate to political candidates because they do not want their information to be public, may limit the right to take part in public affairs.

2.55 The committee considered further information was required to assess the compatibility of this measure with these rights, and as such sought the minister's advice.

2.56 The full initial analysis is set out in [Report 11 of 2024](#).

Minister's response⁵⁹

2.57 The minister advised:

⁵⁷ International Covenant on Civil and Political Rights, article 17.

⁵⁸ International Covenant on Civil and Political Rights, article 25. See also UN Human Rights Council, *General Comment No.25: Article 25, Right to participate in public affairs, voting rights and the right of equal access to public service* (1996) [1],[5]-[6].

⁵⁹ The minister's response to the committee's inquiries was received on 20 January 2025. This is an extract of the response. The response is available in full on the committee's [webpage](#).

(b) Reducing the donations disclosure threshold

The Bill lowers the disclosure threshold to \$1,000, to be indexed on the first 1 January after every general election, implementing recommendation 1 of the JSCEM Interim Report.

The current disclosure threshold has blown out to amounts more than \$16,900 and increases every year, at odds with equivalent political donation disclosure thresholds under state and territory electoral law. As outlined at paragraph 39 of the Bill's Explanatory Memorandum, lowering the disclosure threshold would have significant benefits, including more closely aligning federal electoral financial disclosure thresholds with those in state and territory jurisdictions to provide consistent levels of transparency.

I note that the Bill inserts the new definition of 'third party threshold', being \$20,000, implementing recommendation 14 of the JSCEM in the Final Report. This will ensure that smaller actors such as charities and community groups that spend less than \$20,000 in relation to federal elections are not subject to reporting obligations under Part XX of the Electoral Act. Once this third party threshold has been reached, the person or entity is considered a third party and is subject to the relevant obligations.

As outlined in the Statement of Compatibility with Human Rights included in the Bill's Explanatory Memorandum and related Schedules, the Bill will increase privacy protections for donors and recipients, including by not publishing address information, and enhancing the Electoral Commissioner's powers to redact or remove certain information if it would cause a safety risk.

Information disclosed to the AEC under this regime is collected and used consistently with the Australian Privacy Principles (APPs), and the AEC are held to the standards, rights and obligations as set out by these principles. The financial reporting reforms in this Bill are consistent with the AAPs, particularly that only information that is necessary to support the operation and enforcement of the financial disclosure regime is disclosed.

Concluding comments***International human rights legal advice***

2.58 The preliminary analysis noted that providing for transparency in financial contributions to political parties and candidates is likely a legitimate objective for the purposes of international human rights law, and lowering the disclosure threshold so more political financing information is publicly available appears rationally connected to (that is, effective to achieve) that objective. However, it was unclear why \$1,000 represents the threshold at which donations may influence electoral outcomes and as such, whether the measure was a proportionate means of achieving these objectives.

2.59 The minister stated that lowering the disclosure threshold would have significant benefits, including more closely aligning federal electoral financial disclosure thresholds with those in state and territory jurisdictions to provide

consistent levels of transparency. However, no information was provided as to why the \$1,000 threshold (subject to indexation) is the appropriate threshold. It is unclear why aligning with other jurisdictions necessarily makes this the appropriate threshold.

2.60 In relation to lowering the threshold at which donations must be made public and the impact this may have on donors making small contributions and their willingness to participate in public affairs by donating, the minister advised that the bill inserts a 'third party threshold' of \$20,000 to ensure that charities and community groups that spend less than this amount are not subject to reporting obligations under Part XX of the Electoral Act. However, it appears that whether an entity is considered a third party relates to their reporting obligations as recipients of gifts, but individuals who make a donation of \$1,000 or more (or aggregated to that amount) have disclosure obligations as donors.⁶⁰ This therefore does not appear to address the concern that individuals may choose not to donate to avoid personal information about their political preferences being included on the AEC Transparency Register.

2.61 As to whether an individual could request the Australian Electoral Commissioner to not include or remove personal information on the public register, the minister restated the provisions in the bill and stated that the Australian Privacy Principles apply to information disclosed to the Australian Electoral Commission under this regime. While the Electoral Commission would be empowered to redact or remove certain information if there are safety concerns with respect to that individual, it appears that there is no mechanism for an individual to request information be removed on the basis that it would limit their right to privacy.

2.62 Consequently, there may be a risk that these measures would constitute impermissible limits on the rights to take part in public affairs and to privacy.

Committee view

2.63 The committee thanks the minister for this response.

2.64 The committee considers that it remains unclear how the \$1,000 threshold was calculated and whether it may impact the privacy of individuals. The committee considers it an important objective to have transparency and accountability around the conduct of public affairs. However, the committee also notes there may be a risk that these measures may limit the right to engage in public affairs and the right to privacy.

2.65 The committee draws these human rights concerns to the attention of the minister and the Parliament.

⁶⁰ Schedule 2, item 4, subdivisions B and C.

Ability to vote in cases of cognitive impairment

2.66 The Electoral Act provides that a person who, 'by reason of being of unsound mind', is incapable of understanding the nature and significance of enrolment and voting is not entitled to have their name placed or retained on any roll or to vote at any Senate or House of Representatives election.⁶¹ It provides that the Australian Electoral Commissioner shall not remove an elector's name unless an objection has been made and is accompanied by a certificate of a medical practitioner stating that, in their opinion, the elector, because of unsoundness of mind, is incapable of understanding the nature and significance of enrolment and voting.⁶²

2.67 Schedule 10 of the bill seeks to change the words in both these provisions from 'being of unsound mind' to 'cognitive impairment'.⁶³

Summary of initial assessment

Preliminary international human rights legal advice

Rights of persons with disability to equal recognition before the law; take part in public affairs

2.68 Restricting the circumstances in which an individual is entitled to be enrolled and vote based on cognitive impairment engages and limits the rights of persons with disabilities to equal recognition before the law and the right to take part in public affairs.

2.69 The UN Convention on the Rights of Persons with Disabilities (CRPD) reaffirms that all persons with disability are guaranteed all human rights without discrimination, including those rights set out in other human rights treaties. Article 5 of the CRPD guarantees equality for all persons under and before the law and the right to equal protection of the law. It expressly prohibits all discrimination on the basis of disability. Article 12 of the CRPD requires state parties to refrain from denying persons with disabilities their legal capacity, and to provide them with access to the support necessary to enable them to make decisions that have legal effect. The right to equal recognition before the law includes the right to enjoy legal capacity on an equal basis with others in all aspects of life; and in all measures that relate to the exercise of legal capacity, there should be appropriate and effective safeguards to prevent abuse.⁶⁴ There can be no derogation from article 12 of the CRPD, which describes the content of the general right to equality before the law under the International Covenant on Civil and Political Rights.⁶⁵ This means 'there are no permissible circumstances under

⁶¹ Commonwealth Electoral Act 1918, paragraph 93(8)(a).

⁶² Commonwealth Electoral Act 1918, subsection 118(4).

⁶³ Schedule 10, item 12, paragraph 93(8)(a).

⁶⁴ Convention on the Rights of Persons with Disabilities, article 12.

⁶⁵ Committee on the Rights of Persons with Disabilities, *General comment No. 1 – Article 12: Equal recognition before the law* (2014) [1], [5].

international human rights law in which this right may be limited'.⁶⁶ As noted previously, the right to take part in public affairs includes guarantees of the right of Australian citizens to vote in elections and is an essential part of democratic government that is accountable to the people.⁶⁷ It includes the right and opportunity for persons with disabilities to vote by, among other things, 'guaranteeing the free expression of the will of persons with disabilities as electors and to this end, where necessary, at their request, allowing assistance in voting by a person of their own choice'.⁶⁸

Committee's initial view

2.70 The committee noted that restricting the circumstances in which an individual is entitled to be enrolled and vote based on cognitive impairment engages and limits the rights of persons with disabilities to equal recognition before the law and the right to take part in public affairs.

2.71 The committee considered that further information was required to assess the compatibility of this measure with these rights, and as such sought the minister's advice.

2.72 The full initial analysis is set out in [Report 11 of 2024](#).

Minister's response⁶⁹

2.73 The minister advised:

(c) The ability to vote in cases of cognitive impairment

The Bill does not propose alteration of the enrolment objection process as administered by the Australian Electoral Commission, consistent with current Part IX of the Electoral Act.

The Bill responds in part to recommendation 5 of the JSCEM Final Report by replacing outdated and offensive terminology in the Act in relation to cognitive impairment. The use of the term 'unsound mind' in the Electoral Act has been a subject of concern within the disability community and among disability advocacy groups for a significant period of time. The replacement terminology of 'cognitive impairment' was recommended by the AEC.

⁶⁶ Committee on the Rights of Persons with Disabilities, *General comment No. 1 – Article 12: Equal recognition before the law* (2014) [5].

⁶⁷ UN Human Rights Committee, *General Comment No.25: Article 25, Right to participate in public affairs, voting rights and the right of equal access to public service* (1996).

⁶⁸ UN Convention on the Rights of Persons with Disabilities, article 29(a)(iii).

⁶⁹ The minister's response to the committee's inquiries was received on 20 January 2025. This is an extract of the response. The response is available in full on the committee's [webpage](#).

The Government recognises the findings of the JSCEM, that further work needs to be done to provide people with disability with independent, secure and accessible voting options.

The Government welcomes further inquiry into increasing enfranchisement of persons with a disability and is supportive of further engagement across government and with the community and advocacy groups to ensure that reform is designed in a manner that achieves the best outcome without unintended consequences.

Concluding comments

International human rights legal advice

2.74 The minister advised that the bill does not propose to alter the enrolment objection process, stating that the term ‘unsound mind’ has been a subject of concern within the disability community and advocacy groups for some time and the replacement terminology of ‘cognitive impairment’ was recommended by the Australian Electoral Commission.

2.75 The fact that the bill does not seek to alter the existing enrolment objection process does not address the underlying question of the human rights compatibility of that existing process itself. Section 93 of the Electoral Act (which provides that a person of unsound mind shall not be listed on the roll) has never been subject to an assessment of its compatibility with human rights (a requirement introduced in 2012).

2.76 In addition, it remains unclear how the process provided for would impact people with disability in practice, and in particular:

- (a) when and how an assessment of a person’s ‘cognitive impairment’ for the purposes of section 93 would be undertaken;
- (b) why section 93 does not appear to contemplate the provision of supported decision-making for a person with cognitive impairment to participate in public affairs by voting;
- (c) when and how an objection to a person’s eligibility to vote under section 118 based on cognitive impairment would occur in practice, and how it would be assessed;
- (d) how a certificate of the medical practitioner is obtained and used in the decision-making process under section 118, and whether and how this is compatible with Australia’s obligations under the UN Convention on the Rights of Persons with Disabilities.

2.77 Consequently, there appears to be a risk that the existing process for electoral objections relating to people with disability impermissibly limits the rights of persons with disabilities to equal recognition before the law and the right to take part in public affairs, and may therefore be incompatible with Australia’s obligations under the UN Convention on the Rights of Persons with Disabilities.

Committee view

2.78 The committee thanks the minister for this response.

2.79 The committee notes the minister's advice regarding increasing enfranchisement of persons with a disability. The committee notes that the existing enrolment objection process which may apply to a person of 'unsound mind' has never been subject to an assessment of its compatibility with human rights (a requirement introduced in 2012).

2.80 The committee considers that there appears to be a risk that the existing process for electoral objections relating to people with disability impermissibly limits the rights of persons with disabilities to equal recognition before the law and the right to take part in public affairs, and may therefore be incompatible with Australia's obligations under the UN Convention on the Rights of Persons with Disabilities.

Suggested action

2.81 The committee recommends that consideration be given to reviewing sections 93 and 118 of the *Commonwealth Electoral Act 1918* to ensure that they (and the process for which they provide) are compatible with Australia's obligations under the UN Convention on the Rights of Persons with Disabilities.

2.82 The committee draws these human rights concerns to the attention of the minister and the Parliament.

Migration Amendment Bill 2024 and related instruments⁷⁰

Purpose	The Migration Amendment Bill 2024 (now Act) amends the <i>Migration Act 1958</i> to provide for the cessation of Subclass 070 (Bridging (Removal Pending)) visas (BVR), facilitate arrangements for the removal of visa-holders to receiving countries, permit the sharing of criminal history information both domestically and with foreign countries, provide for the reversal of protection findings, and alter the test for where the minister may remove certain BVR visa conditions. The Migration Amendment (Bridging Visa Conditions) Regulations 2024 [F2024L01410] changes the test for where the minister may impose visa conditions, including curfews or electronic monitoring, on a BVR. The Migration Amendment (Subclass 070 (Bridging (Removal Pending)) Visa) Regulations 2024 [F2024L01649] expands the cohort of non-citizens who would be eligible for grant of a BVR subject to mandatory visa conditions.
Portfolio	Home Affairs
Introduced	House of Representatives, 7 November 2024. <i>Finally passed both Houses, 28 November 2024.</i> Migration Amendment (Bridging Visa Conditions) Regulations 2024 [F2024L01410] registered 7 November 2024 at 10.13 am 15 sitting days after tabling (tabled in the House of Representatives and the Senate on 18 November 2024). Notice of motion to disallow must be given by 25 March 2025 in the House and by 25 March 2025 in the Senate⁷¹ Migration Amendment (Subclass 070 (Bridging (Removal Pending)) Visa) Regulations 2024 [F2024L01649] registered 12 December 2024 at 3.17 pm 15 sitting days after tabling (tabled in the House of Representatives and in the Senate on 4 February 2025. Notice of

⁷⁰ Migration Amendment (Bridging Visa Conditions) Regulations 2024 and Migration Amendment (Subclass 070 (Bridging (Removal Pending)) Visa) Regulations 2024.

This entry can be cited as: Parliamentary Joint Committee on Human Rights, Migration Amendment Bill 2024 and related instruments, *Report 1 of 2025*; [2025] AUPJCHR 10.

⁷¹ In the event of any change to the Senate or House's sitting days, the last day for the notice would change accordingly.

Rights	motion to disallow must be given by 15 April 2025 in the House and by 14 May 2025 in the Senate)⁷² Criminal process rights; effective remedy; expulsion of aliens; freedom of movement; health; liberty; non-refoulement; privacy; protection of the family; prohibition on torture and cruel, inhuman or degrading punishment
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2.83 The committee requested a response from the minister in relation to the bill (now Act) and the Migration Amendment (Bridging Visa Conditions) Regulations 2024 in [Report 10 of 2024](#).⁷³ Following the tabling of *Report 10 of 2024*, the bill finally passed both Houses on 28 November 2024 (as amended on 20 November 2024).⁷⁴ On 12 December 2024 another related instrument, the Migration Amendment (Subclass 070 (Bridging (Removal Pending)) Visa) Regulations 2024, was registered. This report entry considers the bill as passed by both Houses and the two related instruments.

Cessation of bridging visas

2.84 Schedule 1 of the Act amended the *Migration Act 1958* (the Migration Act) to provide that where a non-citizen holds a Subclass 070 (Bridging (Removal Pending)) visa (BVR), their visa will cease where they have ‘permission’ to enter and remain in a foreign country that is party to a ‘third country reception arrangement’, where the minister gives them notice of this.⁷⁵

2.85 The effect of a visa cancellation is that the non-citizen becomes an unlawful non-citizen and is subject to immigration detention prior to their removal to the foreign country.⁷⁶ This measure does not apply to a child aged under 18 or a person whose protection claim has yet to be determined, and a person cannot be removed to the country they have had a protection finding from.⁷⁷

2.86 The term ‘permission’ is not defined in the Act, and the provision refers to permission ‘however described’. The explanatory memorandum states that permission may be in the form of a visa granted by, or other authority given by, the

⁷² In the event of any change to the Senate or House's sitting days, the last day for the notice would change accordingly.

⁷³ Parliamentary Joint Committee on Human Rights, [Report 10 of 2024](#) (20 November 2024) pp. 12-54.

⁷⁴ Two Government amendments were agreed to on 20 November 2024. See Government [\[sheet ZB357\]](#).

⁷⁵ *Migration Amendment Act 2024*, schedule 1, item 1, proposed subsections 76AAA(1),(2) and (4). The notice must be given as soon as reasonably practicable to the non-citizen and may be given orally or in writing, see subsection 76AAA(3).

⁷⁶ *Migration Act 1958*, section 189.

⁷⁷ *Migration Amendment Act 2024*, schedule 1, item 1, paragraph 76AAA(1)(d).

foreign country.⁷⁸ Permission to enter the foreign country may be unconditional or conditional on the non-citizen doing one or more things required by the foreign country that the non-citizen is capable of doing before entering the country.⁷⁹

2.87 These amendments apply in relation to BVRs, or permissions of a foreign country, granted before, on or after the commencement of these provisions.⁸⁰

2.88 Schedule 5 of the Act provides for spending authority for ‘third country reception arrangements’. These are arrangements entered into by the Commonwealth with a foreign country in relation to the removal of non-citizens from Australia and their acceptance, receipt or ongoing presence in the foreign country.⁸¹ Where such an arrangement is in place, the Commonwealth may:

- take, or cause to be taken, any action (not including exercising restraint over the liberty of a person) in relation to the third country reception arrangements or ‘third country reception functions’ of the foreign country. ‘Third party reception functions’ means the implementation of any law or policy, or the taking of any action, by the foreign country (including, if the foreign country so decides, exercising restraint over the liberty of a person);⁸²
- make payments or cause payments to be made, in relation to the third country reception arrangement or third country reception functions of the foreign country; or
- do anything else that is incidental or conducive to the taking of such action or making of such payments.⁸³

2.89 Schedule 2 of the Act provides for various immunities from civil liability with respect to actions taken in good faith, and acts by foreign countries and persons in foreign countries not taken in good faith. It provides that:

- no civil liability is incurred by an officer of the Commonwealth for any act or thing done, or omitted to be done, *in good faith* in relation to the refusal or cancellation of a visa on character grounds; or for refusing to grant a person a protection visa, or where the person’s BVR has ceased to be in effect under the Schedule 1 amendments;
- no civil liability is incurred by an officer, an officer of the Commonwealth (including a minister) or the Commonwealth, in relation to any act or thing done, or omitted to be done by the officer *in good faith* in the exercise of

⁷⁸ *Migration Amendment Act 2024*, explanatory memorandum, p. 5.

⁷⁹ *Migration Amendment Act 2024*, schedule 1, item 1, subsection 76AAA(6).

⁸⁰ *Migration Amendment Act 2024*, schedule 1, item 3.

⁸¹ *Migration Amendment Act 2024*, schedule 5, item 1, subsection 198AHB(1).

⁸² *Migration Amendment Act 2024*, schedule 5, item 1, subsection 198AHB(5).

⁸³ *Migration Amendment Act 2024*, schedule 5, item 1, subsection 198AHB(2).

their powers or performance of their functions or duties in relation to the acceptance or receipt by a foreign country, or ongoing presence in a foreign country, of a person removed from Australia under section 198 of the Migration Act, or in relation to third country reception arrangements or third country reception functions of the country;

- no civil liability is incurred by an officer, an officer of the Commonwealth (including a minister) or the Commonwealth, in relation to any act or thing done, or omitted to be done by a foreign country or any person in a foreign country in relation to the acceptance or receipt by a foreign country, or ongoing presence in a foreign country, of a person removed from Australia under section 198 of the Migration Act, or in relation to third country reception arrangements or third country reception functions of the country.⁸⁴

2.90 The Act also extends these same immunities from civil liability with respect to any act or thing done, or omitted to be done, in relation to the acceptance or receipt by a regional processing country or another foreign country, or ongoing presence in a regional processing country or foreign country, of an unauthorised maritime arrival taken to a regional processing country, including anything done or omitted to be done under or in relation to an arrangement that relates to the regional processing functions of the relevant country, or relating to a third country reception arrangement or functions.⁸⁵

Summary of initial assessment

Preliminary international human rights legal advice

2.91 Establishing a mechanism by which a BVR may be ceased, meaning that a person becomes an unlawful non-citizen who is liable to mandatory immigration detention, and providing for their removal from Australia, engages and limits multiple human rights, both while those individuals are in Australia, and in circumstances where they have been removed to a foreign country.

2.92 The statement of compatibility identifies that these measures engage and limit numerous human rights. It states:

The Bill is compatible in most respects with the human rights and freedoms recognised or declared in the international instruments listed in section 3 of the *Human Rights (Parliamentary Scrutiny) Act 2011*, so long as policies, practices and procedures are in place to ensure that the powers provided in these amendments are exercised consistently with Australia's human rights obligations, including in relation to removal to third countries. To the extent that the measures in this Bill limit human rights, they do so in order to

⁸⁴ *Migration Amendment Act 2024*, schedule 2, item 1, subsections 198(12)-(13).

⁸⁵ *Migration Amendment Act 2024*, schedule 2, item 2, paragraphs 198AD(11)(11A)-(11B).

maintain the integrity of the migration system and protect the safety of the Australian community.

Cessation of BVR and subsequent mandatory immigration detention

Right to liberty

2.93 By establishing a mechanism by which certain non-citizens will be subject to mandatory immigration detention in Australia when permission has been granted by a foreign country to accept them, this measure engages and limits the right to liberty. The stated reliance on policies, practices and procedures that are yet to be made (and not subject to parliamentary scrutiny and oversight) raises the question of whether the measures in the Act itself are compatible with human rights.

2.94 The right to liberty prohibits the arbitrary and unlawful deprivation of liberty.⁸⁶ The United Nations (UN) Human Rights Committee has stated that 'arbitrariness' under international human rights law includes elements of inappropriateness, injustice and lack of predictability.⁸⁷ Accordingly, any detention must not only be lawful, it must also be reasonable, necessary and proportionate in all of the circumstances. Detention that may initially be necessary and reasonable may become arbitrary over time if the circumstances no longer require detention. In this respect, regular review must be available to scrutinise whether the continued detention is lawful and non-arbitrary. The detention of a non-citizen pending deportation will generally not constitute arbitrary detention, as it is permissible to detain a person for a reasonable period of time in these circumstances. However, detention may become arbitrary in the context of mandatory detention, where individual circumstances are not taken into account, and a person may be subject to a significant length of detention.⁸⁸

2.95 The right to liberty may be subject to permissible limitations where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

Removal under a third country reception arrangement

Multiple rights

2.96 Depending on the circumstances in practice, the removal of a non-citizen to a foreign country under a third country reception arrangement may engage and limit

⁸⁶ International Covenant on Civil and Political Rights, article 9.

⁸⁷ UN Human Rights Committee, *General Comment No. 35: Article 9 (Liberty and Security of person)* (2014) [12].

⁸⁸ See *F.K.A.G v Australia*, UN Human Rights Committee Communication No. 2094/2011 (2013) [9.5]; *M.M.M et al v Australia*, UN Human Rights Committee Communication No. 2136/2012 (2013) [10.4] ['the authors are kept in detention in circumstances where they are not informed of the specific risk attributed to each of them... They are also deprived of legal safeguards allowing them to challenge their indefinite detention'].

further human rights, including freedom of movement, protection of the family, non-refoulement, prohibition on torture and cruel, inhuman or degrading treatment or punishment and the right to an effective remedy.

Effective control

2.97 The statement of compatibility states that it is not intended that Australia will owe human rights obligations once persons leave Australia:

With respect to the measure regarding spending authority for third country reception arrangements, the Australian Government's long-standing view is that Australia's human rights obligations are essentially territorial. Persons subject to third country reception arrangements would be outside Australia's territory. Australia will also owe human rights obligations with respect to individuals who are outside Australia's territory but within its 'effective control'.

In countries with which Australia enters into a third country reception arrangement, there is no intention that Australia will exercise effective control. In particular, the amendments specifically provide that the Commonwealth may take actions, that do not include exercising restraint over the liberty of the person, in relation to third country reception arrangements or functions. As such, Australia would not be detaining or otherwise exercising physical control over persons under third country reception arrangements.⁸⁹

2.98 However, the question of how far Australia's human rights obligations extend to individuals outside its territory is complex.⁹⁰ It is possible for Australia to have 'effective control' of persons even if formal legal authority over those persons lies with another state.⁹¹ The 'effective control' test under international human right law is

⁸⁹ Migration Amendment Bill 2024, statement of compatibility, pp. 30-31.

⁹⁰ The scope of a State party's obligations under human rights treaties extends to all those within the State's 'jurisdiction'. For instance, article 2(1) of the ICCPR requires states parties 'to respect and to ensure to all individuals within its territory and subject to its jurisdiction the rights recognized in the present Covenant'.

⁹¹ In 'effective control' cases, a State can be held accountable for the violation of rights 'of persons who are in the territory of another State but who are found to be under the former State's authority and control through its agents operating – whether lawfully or unlawfully – in the latter State': see *Issa and others v Turkey*, European Court of Human Rights, Application No. 31821/96 (2004) [71]; see also *Öcalan v Turkey*, European Court of Human Rights (Grand Chamber), Application No. 46221/99 (2005); and *Ilascu and others v Moldova and Russia*, European Court of Human Rights, Application No. 48787/99 (2004). In *Issa*, the European Court of Human Rights said '[a]ccountability in such situations', ... 'stems from the fact that [the jurisdictional scope of the European Convention on Human Rights (which is analogous to the jurisdictional scope of the international human rights treaties)] cannot be interpreted so as to allow a State party to perpetrate violations of the Convention on the territory of another State, which it could not perpetrate on its own territory'.

essentially one of sufficient control and the question as to whether Australia is exercising sufficient control and authority is a question of fact and degree.⁹²

2.99 Thus, while the statement of compatibility states that the Commonwealth has no intention to exercise effective control, the test is not one of intention but whether *in fact* Australia is exercising sufficient control. The measure proposes that the Commonwealth cannot take or cause to be taken any action that includes exercising restraint over the liberty of a person, but would provide that it can make payments to a third country to set up detention facilities to detain individuals, and do anything else incidental or conducive to the taking of any action in relation to the third country reception arrangement or their third country reception functions.⁹³ While this appears to suggest that Australia would not be permitted to cause the detention of a person in the foreign country, it is not clear whether it could include, for example: establishing and funding contracts for the provision of accommodation, food and healthcare services in detention; or funding services which facilitate the monitoring of individuals in the foreign country. Given that the Act would only establish authority to spend money on third country reception arrangements and provides little detail as to what arrangements may subsequently be authorised, the question of whether Australia exercises ‘effective control’ over individuals subject to third country reception arrangements would appear likely to depend on how the third country reception arrangements are implemented in practice. Given the powers Australia has to enter into arrangements with third countries and facilitate actions in those countries and provide spending authority for such arrangements, it would appear possible that Australia could be regarded as having effective control over persons removed pursuant to this measure (in which case Australia would owe human rights obligations to those persons).

2.100 If Australia did have ‘effective control’ over individuals under a third country reception arrangement as a matter of international law, their removal from Australia, subsequent treatment in the foreign country, and any risk of return to a country where they had faced persecution, would engage Australia’s human rights law obligations.

⁹² See, for example, *Al-Jedda v United Kingdom*, European Court of Human Rights (Grand Chamber), Application No. 27021/08 (2011); and *Al-Skeini v United Kingdom*, European Court of Human Rights, Application No. 55721/07 (2011). In both these cases, the European Court of Human Rights noted that whether the UK was exercising jurisdiction extra-territorially must be determined by reference to the particular facts of the case. In both cases, the Court held that the conduct fell within the jurisdiction of the UK.

⁹³ Migration Amendment Bill 2024, schedule 5, item 1, section 198AHB.

2.101 Removing a person from Australia may engage and limit the right to freedom of movement, which includes the right to enter one's own country.⁹⁴ Where it results in separation of that person from their family in Australia, this may engage the right to protection of the family, which requires the state not to arbitrarily or unlawfully interfere in family life and to adopt measures to protect the family.⁹⁵ This right may be engaged where a person is expelled from a country without due process and is thereby separated from their family.⁹⁶ While there is significant scope for states to enforce their immigration policies and to require departure of unlawfully present persons, where a family has been in the country for a significant duration of time additional factors justifying the separation of families going beyond a simple enforcement of immigration law must be demonstrated in order to avoid a characterisation of arbitrariness or unreasonableness.⁹⁷ These rights may be permissibly limited where the limitation pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

2.102 Were a person exposed to a risk of poor treatment in the foreign country, this may engage the absolute prohibition against torture and other cruel, inhuman and degrading treatment or punishment. This right may never be permissibly limited. The statement of compatibility does not identify that this right may be engaged, and so no assessment of its compatibility is provided.

2.103 If there were a risk that the person's removal to the foreign country led to that person being refouled to a country from which they had sought protection from persecution ('chain refoulement'), this may engage the right to non-refoulement. Australia has 'non-refoulement' obligations under the International Covenant on Civil and Political Rights and the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.⁹⁸ This means that Australia must not return any person to a country where there is a real risk that they would face persecution, torture or other serious forms of harm, such as the death penalty; arbitrary deprivation of life;

⁹⁴ International Covenant on Civil and Political Rights, article 12. The reference to a person's 'own country' is not restricted to countries with which the person has the formal status of citizenship. It includes a country to which a person has very strong ties, such as long-standing residence, close personal and family ties and intention to remain, as well as the absence of such ties elsewhere.

⁹⁵ International Covenant on Civil and Political Rights, articles 17 and 23; and the International Covenant on Economic, Social and Cultural Rights, article 10.

⁹⁶ *Leghaei v Australia*, UN Human Rights Committee Communication No.1937/2010 (2015).

⁹⁷ *Winata v Australia*, UN Human Rights Committee Communication No.9030/2000 (2001) [7.3].

⁹⁸ Australia also has obligations under the 1951 *Convention Relating to the Status of Refugees* and its 1967 *Protocol Relating to the Status of Refugees*, but it is noted that these conventions do not form part of the committee's mandate under the *Human Rights (Parliamentary Scrutiny) Act 2011*.

or cruel, inhuman or degrading treatment or punishment.⁹⁹ This is an absolute right and may never be permissibly limited.¹⁰⁰

2.104 To the extent that a person is limited in their ability to effectively challenge a decision which may lead to their removal, possibly to a country where they would face persecution, torture or other serious forms of harm, there is a risk that this measure may not be consistent with Australia's non-refoulement obligations, which include the requirement for independent, effective and impartial review of non-refoulement decisions.¹⁰¹ The measure may also not be consistent with the right to an effective remedy.¹⁰²

2.105 Further, as the Act establishes wide-ranging immunities for the Commonwealth from civil liability (including with respect to actions in foreign countries not done in good faith), this engages the right to an effective remedy. The right to an effective remedy requires the availability of a remedy which is effective with respect to any violation of rights and freedoms recognised by the International Covenant on Civil and Political Rights.¹⁰³ While limitations may be placed in particular circumstances on the nature of the remedy provided (judicial or otherwise), states must comply with the fundamental obligation to provide a remedy that is effective.¹⁰⁴

Committee's initial view

2.106 The committee noted that this Act amends the *Migration Act 1958* to provide for the mandatory cessation of a Subclass 070 (Bridging (Removal Pending)) visa (BVR)

⁹⁹ UN Committee against Torture, *General Comment No.4 (2017) on the implementation of article 3 of the Convention in the context of article 22* (2018). See also UN Human Rights Committee, *General Comment No. 20: Article 7 (prohibition of torture, or other cruel, inhuman or degrading treatment or punishment)* (1992) [9].

¹⁰⁰ UN Committee against Torture, *General Comment No.4 (2017) on the implementation of article 3 of the Convention in the context of article 22* (2018).

¹⁰¹ International Covenant on Civil and Political Rights, article 2 (the right to an effective remedy).

¹⁰² Obligations arise under the International Covenant on Civil and Political Rights and the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment. See also UN Committee against Torture, *General Comment No.4 (2017) on the implementation of article 3 of the Convention in the context of article 22* (2018).

¹⁰³ International Covenant on Civil and Political Rights, article 2(3). See *Kazantzis v Cyprus*, UN Human Rights Committee Communication No. 972/01 (2003) and *Faure v Australia*, UN Human Rights Committee Communication No. 1036/01 (2005), States parties must not only provide remedies for violations of the ICCPR but must also provide forums in which a person can pursue arguable if unsuccessful claims of violations of the ICCPR. Per *C v Australia*, UN Human Rights Committee Communication No. 900/99 (2002), remedies sufficient for the purposes of article 5(2)(b) of the ICCPR must have a binding obligatory effect.

¹⁰⁴ See UN Human Rights Committee, *General Comment 29: States of Emergency (Article 4)* (2001) [14].

where Australia has entered into third country reception arrangements with foreign countries to remove certain non-citizens.

2.107 The committee noted that detaining and removing non-citizens may engage and limit several human rights and considered that further information was required to assess the compatibility of this measure with these rights.

2.108 The full initial analysis is set out in [Report 10 of 2024](#).

Minister's response¹⁰⁵

2.109 The minister advised:

- a) whether and how rendering a formerly lawful non-citizen an unlawful non-citizen (who is subject to mandatory immigration detention) protects the integrity of Australia's migration system;**

The purpose of the [bill] is to streamline and strengthen the removal from Australia of people who have no substantive right to remain. Holders of BVRs are those people who have been refused the grant of a substantive visa, or have had a substantive visa cancelled, usually on character grounds, but where there are barriers to effecting their removal. The measures in the Bill allow the Government to deal with these non-citizens who have exhausted all their options to remain in Australia on a substantive visa.

The mandatory cessation of a BVR will occur in circumstances where removal has become possible under a third country arrangement. Enabling a BVR to cease at a nominated time allows a BVR holder to be appropriately notified of their BVR's cessation and to be taken into immigration detention while removal is arranged. This helps ensure the (former) BVR holder does not become an unlawful non-citizen in the community, and that they are available for removal once appropriate arrangements have been made.

- b) what is the pressing and substantial concern that the measure seeks to address, including the specific risk that exists for holders of a Subclass 070 (Bridging (Removal Pending)) visa to remain in the Australian community;**

There is no more important element of the migration system than decisions on who may come to Australia, and who has to leave. These individuals have exhausted all avenues to remain in Australia, and have been granted a BVR to permit their lawful stay in Australia, in some cases with community protection conditions applied to their BVR, until their removal becomes practicable. Importantly they remain on a removal pathway while they hold a BVR.

¹⁰⁵ The minister's response to the committee's inquiries was received on 6 December 2024. This is an extract of the response. The response is available in full on the committee's [webpage](#).

These changes support the integrity of Australia's immigration system by providing additional levers to effect the removal of individuals who have no right to remain in Australia, in accordance with section 189 of the Migration Act, while upholding Australia's international obligations. Individuals who hold BVRs are on a removal pathway, having been refused the grant of a visa, or having had their visa cancelled, but have been granted a BVR as there was no real prospect of removal becoming practicable in the reasonably foreseeable future.

c) what evidence demonstrates that the cessation of a person's BVR, and their subsequent removal to a third country, would be rationally connected to (that is, effective to achieve) the objectives sought;

The legislation strengthens and streamlines the Government's power to remove to third countries non-citizens who have had their visas cancelled. When someone's visa is cancelled, for any reason, the first preference of the Government is for them to leave the country, voluntarily or involuntarily.

Non-citizens who have exhausted their options for remaining in Australia lawfully on a substantive visa and are on a removal pathway are expected to depart voluntarily or cooperate with efforts to ensure their prompt and lawful removal from Australia.

The amendments will enable the Government to enter arrangements to facilitate the removal of non-citizens who have exhausted all pathways to remain in Australia, but who cannot be returned to the country from which they came.

Removal from Australia of this cohort of non-citizens directly supports the Government's commitment that the security and safety of the Australian community will always be the absolute priority for this Government.

As mentioned above, these individuals have exhausted all avenues to remain in Australia, and have been granted a BVR to permit their lawful stay in Australia until removal becomes practicable. Importantly they remain on a removal pathway while they hold a BVR, and the Department will continue to explore removal options while these individuals remain in Australia.

Where a person cannot be removed to their home country, Australia will look for third country removal options and the provisions in this Bill are intended to enable that.

d) what the term 'permission (however described)' by a foreign country means;

The term 'permission' has been used in order to ensure flexibility about the type of mechanism used by various countries to regulate the entry of non-citizens. Most countries grant a 'visa', and where this is the case the 'permission' would be constituted by the grant of the visa. The details concerning when entry is actually permissible would be fact-specific.

- e) whether the Commonwealth could enter into an arrangement with a third country granting permission for non-citizens to enter subject to a significant intervening period before the third country is in a position to accept non-citizens, for example where 'reception' facilities require construction;**

It is expected that the relevant permission would be in the form of a visa or offer of entry to a person on an individual basis. Once that visa was granted, or an offer of entry made subject to an administrative requirement such as filling out a form, and the person is notified of this in accordance with the provisions of the Bill, their BVR would cease and they would become an unlawful non-citizen. The person would then be detained in accordance with section 189 of the Migration Act. The duty under section 198 to remove as soon as reasonably practicable would operate in the same way for these individuals as it does for any other unlawful non-citizen.

- f) what is the maximum period of time for which a non-citizen may be subject to immigration detention in Australia prior to their removal pursuant to this measure;**

The person would be detained in accordance with section 189 of the Migration Act. The duty under section 198 to remove as soon as reasonably practicable would operate in the same way for these individuals as it does for any other unlawful non-citizen.

- g) what kinds of conditions may a foreign country impose in order to accept a person, and what would be the consequence for non-compliance with such conditions;**

At present there are no third country reception arrangements with foreign countries. This is a forward-looking provision taking into account possible requirements from a foreign country which will not be known until an arrangement is being negotiated. Examples of requirements could include signing an entry form or attending an appointment at a specified time and place; however, it will depend on the domestic requirements of individual countries.

Non-compliance with conditions imposed by a foreign country under a third country reception arrangement may result in a person not being able to be removed to that country. The non-citizen would be detained in accordance with section 189 of the Migration Act and the duty under section 198 to remove the non-citizen as soon as reasonably practicable would operate in the same way for these individuals as it does currently for any other unlawful non-citizen. Broadly, the recent High Court decision in *ASF17 v Commonwealth of Australia* [2024] HCA 19 confirms the lawfulness of detention in such circumstances. The Minister may wish to grant a further bridging visa if the non-citizen is unable, for whatever reason, to meet the requirements of the reception country.

h) why less right-restrictive alternatives (for example, allowing the person to remain in the community subject to a BVR unless and until a relevant foreign country is ready to accept them) would not be effective to achieve the objectives of the measure;

The Bill provides for the person's BVR to cease once they are given notice that a country that is party to a third country reception arrangement has granted the non-citizen permission to enter and remain in that country. As noted above, it is expected that the relevant permission would be in the form of a visa or offer of entry to a person on an individual basis.

BVR holders who are NZYQ-affected have generally had their substantive visas cancelled or refused due to character concerns and may pose a risk to the Australian community. They have also exhausted all options to remain in Australia on a substantive visa. The only reason they are not held in immigration detention is that, in accordance with the High Court's decision in NZYQ, their immigration detention is not authorised while there is no real prospect of their removal becoming reasonably practicable in the reasonably foreseeable future. Once removal becomes practicable, and they become an unlawful non-citizen following the cessation of their BVR, they are once again able – and required – to be detained in accordance with the Migration Act while removal is arranged.

If an individual cannot be removed in the reasonably foreseeable future (for example due to delays in removal with no avenues for resolution), they again become NZYQ-affected and cannot continue to be detained.

i) what oversight of the measures there would be;

The Office of the Commonwealth Ombudsman (the Ombudsman) and the Australian Human Rights Commission have legislative oversight responsibilities for immigration detention in Australia. These bodies conduct oversight activities, publish reports and make recommendations in relation to immigration detention.

In addition to these activities, under the Migration Act, the Secretary of the Department of Home Affairs, the Ombudsman and the Minister have statutory obligations around the oversight of longterm immigration detainees. These provisions are intended to provide greater transparency in the management of long-term detainees through independent assessments by the Commonwealth Ombudsman.

The Secretary must provide reports to the Commonwealth Ombudsman on individuals who have completed a cumulative period of two years in immigration detention and then for every six months that they remain in detention. The Ombudsman must then provide an assessment of these individuals' detention to the Minister, which the Minister then tables in Parliament, including any recommendations from the Ombudsman. Once all domestic remedies are exhausted, individuals may also submit a complaint

to relevant United Nation bodies such as the United Nations Committee against Torture or the UN Human Rights Committee.

j) whether any review would be available (noting that the cessation of a BVR would be mandatory, and not a decision in relation to which review could be sought);

The cessation of the BVR and subsequent removal processes may be subject to judicial review. In addition, a person may be able to submit reasons against being removed to the particular third country that has granted permission to enter and remain, for example if there are *refoulement* concerns, through ministerial intervention processes.

k) whether and how the measure is compatible with the absolute prohibition against torture and other cruel, inhuman or degrading treatment or punishment;

Under the Migration Act, immigration detention is not limited by a set timeframe. It ends when the person is either granted a visa or is removed from Australia. The timeframe associated with either of these events is dependent upon a number of factors.

The Government's policy is that detention in an immigration detention centre continues to be an option of last resort for managing unlawful non-citizens pending the resolution of their immigration status, whether through grant of a visa or pending their removal from Australia. Whether the person is placed in an immigration detention facility, or other arrangements are made, including residence determinations under section 197AB or consideration of the grant of a visa, is determined using a risk-based approach. Where appropriate, it is the Government's preference to manage individuals in the community.

Detainee welfare

The Government accepts that the prohibition on torture and ill-treatment includes protecting the physical and mental well-being of detained individuals. The Government takes the welfare of those in immigration detention very seriously. All people in detention are treated with respect, dignity and fairness. The Government is committed to ensuring detainees in immigration detention are provided with high quality services commensurate to Australian standards and that the conditions in immigration detention are humane and respect the inherent dignity of the person. The Government works closely with its service providers to ensure immigration detainees are provided with adequate accommodation, infrastructure, medical services, security services, catering services, programs, activities, support services and communication facilities.

Some detainees may be more vulnerable than others. This includes people who have complex health needs, including mental health or where they have a history of torture, trauma or people who have been subject to people trafficking or domestic or family violence. Any detainee who discloses a

history of torture and/or trauma is offered referral to specialist torture and trauma counselling.

The Detention Health Procedural Instruction on Mental Health outlines the services made available to persons in immigration detention, in order to manage a range of mental health issues that may present.

The Australian Government's contracted detention health services provider is responsible for mental health care and support services which are delivered by general practitioners, mental health nurses, psychologists, counsellors and psychiatrists, including those specialising in torture and trauma counselling services (on a visiting basis, or through the use of telehealth facilities or external appointments).

Regular mental health assessments are performed and delivered in line with the relevant Australian standards.

Where the Department identifies that a detainee has significant vulnerabilities that indicate management within an immigration detention centre is no longer appropriate, they may be considered for alternative management options. These could include grant of a bridging visa by a departmental delegate (if possible), or referral to a Minister for consideration under the Minister's personal intervention powers for a residence determination under section 197AB of the Migration Act allowing a detainee to reside in the community under a residence determination.

Detainees are able to access legal representation in accordance with the Migration Act and the Government provides detainees with the means to contact family, friends and other support. The Government respects and caters for religious and cultural diversity.

Detainees who are dissatisfied with the conditions in immigration detention can raise concerns in person with Australian Border Force officers and service provider staff, or in writing or by telephone to the Department or external scrutiny bodies.

In 2018 the Office of the Commonwealth Ombudsman was nominated as the National Preventive Mechanism Coordinator and the inspecting body for Commonwealth places of detention for the purpose of Australia's obligations under the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment. This function includes oversight of immigration detention facilities.

With regard to the measure relating to third country reception arrangements, the arrangements that will be put in place for third country reception can also include safeguards relating to the treatment of persons by the reception country.

- l) what practices, policies and procedures will be developed to ensure 'these amendments are exercised consistently with Australia's human rights obligations'; and**

i. whether and how they will be effective to achieve this (in particular, whether and how they will be sufficient to protect against the risk of direct refoulement (to a foreign country providing reception arrangements) or chain refoulement (from the reception country to another country));

Australia does not return or remove individuals to countries in respect of which they have been found to engage Australia's *non-refoulement* obligations. Non-citizens who have a protection finding made in the course of considering a protection visa application cannot be removed to the country to which the protection finding relates. This Bill does not change that.

In addition, new section 76AAA(1)(d)(i) makes clear that the visa cessation provision does not apply if the non-citizen has made a valid application for a protection visa that has not been finally determined

Further, the risk of chain *refoulement* by a third country reception country to another country will be mitigated via the arrangements that will be put in place for third-country reception, which can also include safeguards relating to the treatment of persons by the reception country. Existing policies, practices, and procedures relating to removal from Australia and compliance with *non-refoulement* obligations will also be relied upon to ensure that removals under a third country arrangement are conducted consistently with Australia's human rights obligations.

The operations of the Department are subject to many public scrutiny and accountability processes.

ii. why are they not included in the bill itself;

New section 76AAA(1)(d)(i) and (ii) provides that certain BVRs do not cease, in situations where the individual has an application for a protection visa that is not finally determined, or where the non-citizen cannot be removed to the foreign country because of subsection 197C.

Other safeguards are not included in the legislation to enable the Government to tailor safeguards, processes and procedures to the individual circumstances of the third country consistent with Australia's international law obligations.

m) whether those remedies identified in the bill would be effective with respect to a breach of a person's rights;

The Government takes Australia's human rights obligations seriously.

The effectiveness of remedies will dependent on the individual's circumstances.

n) why, if Australia does not or will not have effective control over persons who are affected by these measures once they are in a foreign country, the bill seeks to establish a broad immunity from civil liability

with respect to acts (done in both good and bad faith) in relevant foreign countries;

The Australian Government should not be held liable for damages for something that occurs to a person once they have been removed to another country. Enactment of the civil liability immunity provisions in the Bill would operate to affirm this view of the current common law position, and does not alter the position that Australia does not, and will not, exercise effective control in third countries entering third country reception arrangements or regional processing arrangements.

o) would an assessment of matters related to a person's family ties be permitted before the person's BVR would be ceased, before the person would be subject to mandatory immigration detention and removal; and

The cessation of a person's BVR occurs once the person is notified that a third country reception country has granted them permission to enter and remain. That process is not subject to natural justice. As noted in the Statement of Compatibility of Human Rights, BVR holders are on a removal pathway because they do not have a substantive visa to remain in Australia - in many cases because their substantive visa was refused or cancelled on character grounds - but there have been barriers to effecting their removal.

Generally, the impact of the person's removal from Australia on their family members, including consideration of the best interests of minor children, would have been considered as part of the decision to refuse or cancel their substantive visa on character or other discretionary grounds. Where such consideration has not taken place, or circumstances have changed since the last such consideration, there may be opportunities for that consideration to take place as part of a ministerial intervention consideration.

That consideration would take place after a person's BVR ceases.

p) where a ministerial intervention were to occur, to what extent an individual's family circumstances would be considered, in what circumstances they may not be, and how readily review of such decisions would be available.

The Migration Act provides portfolio Ministers with non-delegable and non-compellable powers to intervene in individual cases, if they think it is in the public interest to do so. What is in the public interest is for the Minister to decide.

The public interest powers allow a Minister to:

- grant a visa to a person in immigration detention (section 195A);
- make a residence determination for a person in immigration detention, allowing them to reside in the community at a specified address subject to specified conditions (section 197AB); or

- substitute a decision of a review tribunal with a decision to grant a visa that is more favourable to a person (sections 351 and 501J).

An individual's family circumstances form part of any information that is provided to a Minister for ministerial intervention consideration under these powers.

Concluding comments

International human rights legal advice

Cessation of BVR and subsequent mandatory immigration detention

2.110 The preliminary analysis noted that protecting the safety of the Australian community and the integrity of the migration system may be capable of being legitimate objectives for the purposes of international human rights law. However, questions arose as to whether the measure was necessary and addressed a pressing and substantial concern, and was rationally connected to the stated objectives. In this regard, the minister stated that the overall purpose of the measure is to streamline and strengthen the removal from Australia of people who have no substantive right to remain. The minister advised that the measure supports the integrity of Australia's immigration system by providing additional levers to effect the removal of individuals who have no right to remain in Australia. The minister reiterated that the individuals who will be subject to this measure are those that have exhausted all avenues to remain in Australia and have been granted a BVR to permit their lawful stay in Australia until their removal becomes practicable. The minister stated that the mandatory cessation of an individual's BVR will occur where removal has become possible under a third country arrangement. The minister advised that ceasing an individual's BVR and detaining them in immigration detention will ensure that the individual does not become an unlawful non-citizen in the community and that the individual is available for removal once appropriate arrangements have been made. The minister further stated that removing these individuals from Australia directly supports the Government's commitment to the security and safety of the Australian community.

2.111 Noting that the Migration Act and regulations already provide multiple 'levers' to facilitate the removal of BVR holders in circumstances where removal becomes possible, it remains unclear why this measure is necessary. In particular, BVR holders must comply with a number of mandatory reporting and monitoring conditions,¹⁰⁶ including conditions that specifically relate to their removal from Australia. Among other things, BVR holders are required to:

- do everything possible to facilitate their removal from Australia and not obstruct efforts to arrange or effect their removal from Australia;

¹⁰⁶ Non-compliance with some of these conditions is a criminal offence carrying a mandatory minimum sentence of at least one year imprisonment. The measure titled 'Enforceable bridging visa conditions' discusses this issue in more detail.

- make themselves available for removal from Australia in accordance with instructions given to them by Immigration;
- attend at a place, date and time specified by Immigration in order to facilitate efforts to arrange and effect their removal from Australia; and
- notify Immigration of any changes to their personal details, including contact information.¹⁰⁷

2.112 It has not been demonstrated why the mandatory conditions attached to the BVR (including those set out above) are insufficient to achieve the stated objectives of facilitating the removal from Australia of BVR holders; supporting the integrity of the immigration system; and protecting community safety (such that the additional lever introduced by this measure is necessary).

2.113 In considering whether the measure addresses a public or social concern that is pressing and substantial enough to justify limiting rights, a relevant factor is whether the individuals to whom the measure applies pose a specific risk to community safety. The minister reiterated that the individuals to whom the measure applies are those that have exhausted all avenues to remain in Australia and have been granted a BVR with community protection conditions attached so that they can lawfully remain in Australia until removal becomes practicable. However, in light of the breadth and coercive nature of the community protection conditions attached to the BVR and noting the stated purpose of these conditions is to mitigate risks to the Australian community,¹⁰⁸ it appears that other provisions in the Migration Act and regulations are already addressing the concern of community safety. This would appear to render this measure superfluous. Additionally, neither the explanatory materials nor the minister's response provide any justification or evidence to identify any specific (or heightened) threat that BVR holders pose to the Australian community (particularly when compared with persons—including people who have been convicted of serious criminal offences—in the broader community).¹⁰⁹

2.114 Further, while ceasing a BVR holder's visa and consequently detaining them in immigration detention may be regarded as desirable from a policy perspective and potentially more convenient for the purposes of removing the individual from Australia, under international human rights law, pursuing an objective that is regarded as desirable or convenient is unlikely, in and of itself, to be considered legitimate. This

¹⁰⁷ Conditions 8541, 8542, 8543 and 8550.

¹⁰⁸ Migration Amendment (Bridging Visa Conditions) Regulations 2024, statement of compatibility, pp. 8–9.

¹⁰⁹ In *YBFZ v Minister for Immigration, Citizenship and Multicultural Affairs* [2024] HCA 40, Gageler CJ, Gordon, Gleeson and Jagot JJ noted that while the *NZYQ* cohort may largely consist of persons with criminal records, to be part of the *NZYQ* cohort a person does not need to have committed a crime: at [37] and [74]. The statement of compatibility to this bill states that many non-citizens released from immigration detention following *NZYQ* were granted BVRs, p. 25.

is especially so given there are other provisions in the Migration Act and regulations that appear to be effective to achieve the stated objectives.

2.115 In assessing whether the measure constitutes a proportionate limitation on the right to liberty, it is relevant to consider the duration of an individual's detention in immigration detention; whether the detention is justified on an individualised basis; whether there are less rights restrictive alternatives to detention; and whether the detention is subject to review. Two recent international cases involving Australia provide useful guidance in this regard. In *Nabhari v Australia* (a decision handed down on 25 October 2024), the UN Human Rights Committee considered that Australia arbitrarily detained a refugee in violation of article 9(1) of the International Covenant on Civil and Political Rights (the right to liberty) by detaining her in Australia for approximately eighteen months and in the Regional Processing Centre in Nauru for over four years without demonstrating on an individual basis that the detention was justified or providing her with legal safeguards to effectively challenge her indefinite detention.¹¹⁰ The Committee emphasised that while detention may be authorised by domestic law it may nonetheless be arbitrary, explaining:

Detention in the course of proceedings for the control of immigration is not arbitrary per se, but must be justified as being reasonable, necessary and proportionate in the light of the circumstances and reassessed as it extends in time. Asylum seekers who unlawfully enter a State party's territory may be detained for a brief initial period in order to document their entry, record their claims and determine their identity if it is in doubt. To detain them further while their claims are being resolved would be arbitrary in the absence of particular reasons specific to the individual, such as an individualised likelihood of absconding, a danger of crimes against others or a risk of acts against national security. The decision of detention must consider relevant factors on an individualised basis; must not be based on a mandatory rule for a broad category; must take into account less invasive means of achieving the same ends, such as reporting obligations, sureties or other conditions to prevent absconding; and must be subject to periodic re-evaluation and judicial review.¹¹¹

2.116 The UN Committee observed that the refugee was not detained for a brief initial period to document her entry or verify her identity, but rather was held for a protracted period of time (totalling approximately six years in detention in Australia and Nauru). The UN Committee found that Australia 'did not identify individualised and specific reasons that would have justified the need to deprive the author of her

¹¹⁰ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [8.7].

¹¹¹ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [8.3].

liberty for such a protracted period of time’.¹¹² The UN Committee therefore concluded that the refugee’s detention ‘was unreasonable, unnecessary and disproportionate to the State party’s policy objectives’.¹¹³

2.117 Similarly, in *M.I. et al. v Australia* (handed down on 31 October 2024), the UN Human Rights Committee found Australia’s detention of twenty-four unaccompanied minors in immigration detention on Christmas Island to be arbitrary and contrary to the right to liberty (article 9). The UN Committee considered that Australia had ‘not demonstrated an individual basis that the authors’ uninterrupted and protracted detention was justified for an extended period of time’ or that ‘other less intrusive measures could not have achieved the same’ objective, such as transferring the minors to community detention centres in Australia.¹¹⁴

2.118 The preliminary analysis noted that it was not clear whether a person whose BVR was ceased, on the basis that a foreign country granted ‘permission’ to that individual to enter and remain in the country, could be subject to protracted immigration detention in Australia while awaiting their removal to that foreign country pursuant to this measure. In this regard, further information was sought as to the meaning of the term ‘permission’. The minister advised that the term ‘permission’ has been used in order to ensure flexibility about the type of mechanism used by various countries to regulate the entry of non-citizens. The minister stated that the granting of a visa would constitute ‘permission’ in the context of this measure and that it is expected that the relevant permission would be in the form of a visa or offer of entry to a person on an individual basis. The minister advised that once the foreign country granted a visa or other offer of entry, this would trigger the cessation of the individual’s BVR and they would then be detained in immigration detention. As to whether there is a maximum period of time that an individual may be subject to immigration detention in Australia prior to their removal to the foreign country, the minister advised that the duty under section 198 of the Migration Act to remove detainees as soon as reasonably practicable would apply.

¹¹² *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [8.5] and [8.6].

¹¹³ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [8.7]. At [10], pursuant to the right to an effective remedy (article 2 of the International Covenant on Civil and Political Rights), the Committee found that Australia is ‘obligated to provide the author with adequate compensation for the periods of her detention on Christmas Island, in the regional processing centre in Nauru, and on mainland Australia until 4 November 2019. The State party is also under an obligation to take all steps necessary to prevent similar violations from occurring in the future. In this connection, the State party should review and modify its migration legislation and policies and any bilateral offshore transfer arrangements for migrants as to their content, implementation and monitoring, to ensure their conformity with the requirements of the Covenant, including article 9’.

¹¹⁴ *M.I. et al. v Australia*, UN Human Rights Committee Communication No. 2749/2016 (2024) [10.4].

2.119 Further information was also sought regarding the kinds of conditions that a foreign country may impose on an individual in order to accept them and the possible consequence of non-compliance with such conditions. As noted in the preliminary analysis, if the kinds of conditions set were unattainable or unrealistic this may mean that affected persons are subject to extended immigration detention. The minister advised that there are currently no third country reception arrangements with foreign countries and it will not be known what kinds of conditions may be imposed until an arrangement is being negotiated. The minister provided some examples of possible conditions, including signing an entry form or attending an appointment at a specified time and place. The minister advised that non-compliance with conditions imposed by a foreign country may result in that person not being able to be removed to that country. In these circumstances, the minister stated that the individual would be detained under section 189 of the Migration Act and the duty under section 198 to remove the person from Australia as soon as reasonably practicable would operate. The minister may grant a further bridging visa to that individual if they are unable to meet the requirements of the foreign country.

2.120 While the minister clarified that ‘permission’ in the context of this measure is expected to be in the form of a visa, it remains unclear whether in practice the granting of a visa by a foreign country denotes immediate permission to enter that country, noting the minister’s advice that the details of *when* entry is actually permissible would be fact-specific. There appears to be a risk that there could be a significant intervening period between the granting of permission to enter the foreign country and the individual actually leaving Australia to enter that country, for example where the foreign country is not in a position to accept those individuals due to ‘reception’ facilities not yet being constructed or where there are administrative delays due to the conditions imposed on the visa or where the entry date specified on the visa is some time in the future. If there was a significant intervening period, without a maximum period of detention specified in the legislation (noting that the only legal limit on detention is the duty to remove as soon as reasonably practicable), there appears to be a risk that individuals could be detained in immigration detention pursuant to this measure for a protracted period of time.

2.121 The minister advised that if an individual cannot be removed in the reasonably foreseeable future (for example due to delays in removal with no avenues for resolution) the individual cannot continue to be detained in accordance with the decision of the High Court of Australia in *NZYQ*.¹¹⁵ In that decision, the High Court held that detaining an individual in immigration detention will not be permissible where there is no real prospect of their removal from Australia becoming practicable in the reasonably foreseeable future.¹¹⁶ However, the judgment did not identify what constitutes ‘the reasonably foreseeable future’, ‘practicable’ or ‘real prospect’. It is not

¹¹⁵ *NZYQ v Minister for Immigration, Citizenship and Multicultural Affairs & Anor* [2023] HCA 37.

¹¹⁶ *NZYQ v Minister for Immigration, Citizenship and Multicultural Affairs & Anor* [2023] HCA 37.

clear, for example, whether a person could be subject to extended immigration detention for years in Australia while awaiting their removal to a foreign country pursuant to this measure, on the basis that because of this measure there is a real prospect of their removal becoming practicable at some point in the future (even if there are delays in removal but those delays are being resolved, albeit slowly).

2.122 As highlighted in the recent international jurisprudence outlined above, detention must be justified on an individual basis, having regard to specific factors relevant to the individual such as an individualised likelihood of absconding or committing crimes.¹¹⁷ However, this measure applies a mandatory rule (that is, requiring the cessation of a BVR and consequent detention of the non-citizen in immigration detention where permission has been granted by a foreign country for that person to enter and remain in the country) to a broad category of people (namely, non-citizens holding a BVR). The cessation of an individual's BVR and consequent detention in immigration detention is therefore not based on an individualised assessment of each non-citizen. Without individualised assessments as to the necessity and reasonableness of the detention of each non-citizen pursuant to this measure, there appears to be a significant risk that such detention would (consistently with recent decisions of the UN Human Rights Committee concerning Australia) be considered arbitrary under international human rights law.

2.123 Another relevant factor is whether there are less rights restrictive options available. The minister did not address why less rights restrictive alternatives, such as allowing the person to remain in the community subject to a BVR unless and until a relevant foreign country is ready to accept them, would not be effective to achieve the stated objectives of the measure. The UN Human Rights Committee emphasised that the 'decision of detention...must take into account less invasive means of achieving the same ends, such as reporting obligations, sureties or other conditions to prevent absconding'.¹¹⁸ Noting that BVR holders are already subject to reporting conditions (such as those conditions referred to by the UN Human Rights Committee), it appears that allowing a BVR holder to remain in the community subject to conditions unless and until a foreign country is ready to accept them would be a less rights restrictive alternative than ceasing a BVR holder's visa and detaining them in immigration detention until removal is practicable.

2.124 Further information was also sought regarding the availability of oversight and review. The minister advised that the Commonwealth Ombudsman and Australian Human Rights Commission have oversight responsibilities for immigration detention in Australia, including undertaking oversight activities, publishing reports and making recommendations in relation to immigration detention. The minister also noted that

¹¹⁷ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [8.3].

¹¹⁸ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [8.3].

the Secretary of the Department of Home Affairs, the Commonwealth Ombudsman and the minister have oversight obligations with respect to long-term immigration detainees. The minister further stated that individuals affected by the measure, including those in detention, may submit a complaint to the relevant United Nations body (such as the UN Human Rights Committee) once all domestic remedies are exhausted. With respect to the availability of review, the minister advised that the cessation of the BVR and subsequent removal processes may be subject to judicial review and, through ministerial intervention processes, a person may be able to submit reasons against removal to a particular third country if refoulement concerns arise.

2.125 While there are independent bodies that undertake oversight activities, publish reports and make recommendations with respect to immigration detention, including in relation to individual detainees, such oversight appears to offer minimal safeguard value as recommendations are often not implemented and individuals may remain detained notwithstanding recommendations for their release by oversight bodies (for example on the grounds that the detention is in violation of the right to liberty). Further, where a violation of article 9 is found, individuals are often not provided with an effective remedy (as discussed further below). The UN Human Rights Committee and the Australian Human Rights Commission have, over many years, made numerous adverse findings and recommendations regarding Australia's immigration detention regime.¹¹⁹ Many of these recommendations remain unimplemented.¹²⁰ In addition, cases brought to the UN Committees are routinely subject to significant delays in being heard (in the two recent cases cited here, the applications were made in 2016 and 2019 regarding actions taken against the applicants by Australia beginning in 2013).

¹¹⁹ In its recent report into arbitrary detention, the Australian Human Rights Commission stated that the UN Human Rights Committee has 'issued 27 opinions finding contraventions of article 9 against Australia since 2013'. See Australian Human Rights Commission, *Immigration detainees in prolonged or indefinite detention v Commonwealth of Australia (Department of Home Affairs and Minister for Immigration and Multicultural Affairs)* [2024] AusHRC 174, [772]. See also UN Human Rights Committee, *Concluding observations on the sixth periodic report of Australia*, UN Doc CCPR/C/AUS/CO/6 (1 December 2017) [38].

¹²⁰ In its inquiry into Australia's Human Rights Framework, the Parliamentary Joint Committee on Human Rights referred to evidence from the Australian Human Rights Commission regarding the inaccessibility of Australia's response to UN treaty body decisions and recommendations, observing that the Attorney-General's Department does not maintain a public up-to-date database of UN treaty body recommendations relating to Australia, or individual communications relating to Australia. The Committee recommended that the Australian government commit to monitoring and improving Australia's progress on human rights by, among other things, establishing a publicly available database setting out all findings and recommendations of United Nations human rights treaty bodies about Australia, and individual communications involving Australia, and any Australian government responses. See Parliamentary Joint Committee on Human Rights, *Inquiry into Australia's Human Rights Framework* (May 2024), [8.151], [8.199] – [8.206], [9.104].

2.126 With respect to the safeguard value of judicial review in the context of Australia's immigration detention regime, the UN Human Rights Committee has consistently found that 'the scope of domestic judicial review of immigration detention was insufficiently broad to examine an individual's detention in substantive terms'.¹²¹ In the recent case of *M.I. et al v Australia*, the UN Human Rights Committee found that Australia had not demonstrated that Australian domestic courts have the authority to make individualised rulings on the justification for each individual detainee's detention and considered that Australia violated article 9(4) of the International Covenant on Civil and Political Rights, which provides that a person who is deprived of their liberty by detention must be entitled to judicial review of the lawfulness of their detention and order of release if the detention is unlawful. The UN Human Rights Committee emphasised that 'judicial review of the lawfulness of detention under article 9(4) is not limited to mere compliance of the detention with domestic law but must include the possibility to order release if the detention is incompatible with the requirements of the Covenant, in particular those of article 9(1) [the right to liberty]'.¹²² In light of this jurisprudence, the availability of judicial review in the context of this measure does not appear to assist with proportionality.

2.127 In conclusion, if an individual was detained for a protracted period of time pursuant to this measure while awaiting removal to a foreign country, there appears to be a significant risk that such detention would be arbitrary as it has not been demonstrated that the measure is necessary and addresses a pressing and substantial concern; the detention is not based on an individualised assessment; there are less rights restrictive alternatives available (notably remaining in the community on a BVR until the exact time of removal); and the available oversight and review mechanisms appear to offer minimal safeguard value (noting that such mechanisms do not provide detainees with an effective legal avenue to challenge their detention). If an individual's right to liberty was violated, it is not clear that they would have access to an effective remedy for such a violation, noting that the UN Human Rights Committee has made it clear that the remedies available under Australian law—that of judicial review and constitutional writs—are inadequate.¹²³

Removal under a third country reception arrangement

Effective control

2.128 The preliminary analysis noted the possibility that Australia could be regarded as having effective control over persons removed to a third country pursuant to this measure (in which case Australia would owe human rights obligations to those

¹²¹ See most recently *M.I. et al. v Australia*, UN Human Rights Committee Communication No. 2749/2016 (2024) [10.6].

¹²² *M.I. et al. v Australia*, UN Human Rights Committee Communication No. 2749/2016 (2024) [10.6].

¹²³ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [7.3].

persons). This possibility arises because the Act establishes authority for the Commonwealth to take any action in relation to a 'third party reception function', which provides that a foreign country may exercise restraint over the liberty of a person, and to make payments in relation to the third country arrangement or third country reception function. This appears to provide the authority for the Commonwealth to take action, such as paying a foreign country to detain, perhaps indefinitely, the individuals removed to that country. While the statement of compatibility states that Australia does not have effective control over individuals once they are removed to a third country (and thus does not owe human rights obligations to these individuals),¹²⁴ recent international jurisprudence suggests that Australia likely would exercise effective control over such individuals in the context of this measure. The UN Human Rights Committee has summarised the human rights obligations of States parties with respect to individuals who may not be within the territory of the state in the following terms:

States parties are required by article 2 (1) of the Covenant to respect and to ensure the Covenant rights to all persons who might be within their territory and to all persons subject to their jurisdiction. That means that a State party must respect and ensure the rights laid down in the Covenant to anyone within the power or effective control of that State party, even if not situated within the territory of the State party. This is in line with the *travaux préparatoires* to the Covenant, which indicate that the drafters did not intend to allow States parties to escape from their obligations when they exercise jurisdiction outside of their national territory. Moreover, enjoyment of most Covenant rights must be available to both citizens and aliens. A State party may be responsible for extraterritorial violations of the Covenant in cases such as those involving extradition or deportation, if it is a link in the causal chain that would make possible violations in another jurisdiction, where the risk of an extraterritorial violation is a necessary and foreseeable consequence judged on the knowledge the State party had at the time.¹²⁵

2.129 In the recent case of *Nabhari v Australia*, the UN Human Rights Committee considered whether Australia exercised effective control with respect to the detention of a refugee in Nauru. The UN Committee observed that in accordance with the Migration Act and arrangements set out in a memorandum of understanding between Australia and Nauru, the refugee was transferred from Australia to authorities in Nauru, where she was immediately detained in a regional processing centre. The UN Committee considered that the refugee's initial detention in Nauru 'was a necessary and foreseeable consequence of [Australia's]... transfer of the author, at a minimum

¹²⁴ *Migration Amendment Act 2024*, statement of compatibility, pp. 30-31.

¹²⁵ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [7.5]. For earlier comments by the UN Human Rights Committee on this issue, see UN Human Rights Committee, *Concluding observations on the sixth periodic report of Australia*, CCPR/C/AUS/CO/6 (2017) [35].

during the processing of her asylum claim'.¹²⁶ The Committee further observed that Australia:

...funded the detention operations in Nauru, was authorized to manage them, participated in monitoring them, selected companies which would be responsible (directly or through subcontractors) for construction, security, garrison, health, and other services at the detention centre, and provided police services to Nauru to help manage the detention operations.¹²⁷

2.130 The Committee concluded that:

...[Australia] exercised numerous elements of effective control over the detention operations at the regional processing centre in Nauru while the author was detained there from 2014 to 2018. The Committee considers that those elements of control went beyond a general situation of dependence and support, and that the physical transfer of the author to Nauru did not extinguish the State party's obligations towards her under article 9 [the right to liberty] of the Covenant. The Committee considers that while she was detained at the centre, the author was subject to the jurisdiction of the State party, and that the fact of her detention there is attributable to the State party.¹²⁸

2.131 While much will depend on the nature of the arrangements negotiated and how any third country reception arrangements are implemented in practice, given the broad authority established by the Act for the Commonwealth to fund third country arrangements and take any action in relation to a 'third party reception function' (which provides that a foreign country may exercise restraint over the liberty of a person), there appears to be a high likelihood that Australia would exercise effective control under international law over persons removed to a third country pursuant to this measure (and thus owe human rights obligations to such persons).

Rights to freedom of movement and protection of the family

2.132 As discussed above, it has not been demonstrated that the measure is necessary and addresses a pressing and substantial concern such that it can be said that the measure pursues a legitimate objective for the purposes of international human rights law. In assessing proportionality, further information was sought as to whether an assessment of matters related to a BVR holder's family ties would be

¹²⁶ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [7.6].

¹²⁷ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [7.15].

¹²⁸ *Nabhari v Australia*, UN Human Rights Committee Communication No. 3663/2019 (2024) [7.15]. At paragraph [7.16], in relation to Australia's assertion that there were no restrictions on individuals' movement at the regional processing centre in Nauru, the Committee considered that 'the extent of restrictions on movement in an officially designated place of detention may be relevant to the reasonableness and proportionality of the detention but does not alter the fact of detention'.

permitted before their BVR would be ceased and before they would be subject to mandatory immigration detention and removal. The minister advised that the visa cessation process will occur when a third country grants the person permission to enter and remain in the country, and this process is not subject to natural justice. The minister stated that the impact of the person's removal from Australia on their family, including children, would have been considered as part of the decision to refuse or cancel the substantive visa. Where such consideration has not occurred or circumstances have changed, the minister advised that there may be opportunities for that consideration to take place as part of a ministerial intervention consideration. This latter process would take place after a person's BVR has ceased. The minister noted that the ministerial intervention powers are non-delegable and non-compellable and empower the minister to intervene in individual cases where they consider it is in the public interest to do so. Such intervention may result in the granting of a visa, the making of a residence determination or substituting a decision of a review tribunal.

2.133 The information provided by the minister indicates that there is no flexibility to consider individual circumstances, including those relating to a person's family, prior to a person's visa being ceased pursuant to this measure. While the minister advised that a person's family circumstances and ties to Australia may be considered as part of a ministerial intervention process, this discretionary safeguard offers little, if any, value with respect to proportionality in practice, as the powers are non-delegable and non-compellable; they are not subject to review; and, following recent amendments to the Migration Act, a person may be removed from Australia regardless of whether they have asked the minister to exercise their personal ministerial intervention power.¹²⁹ Further, if a person's substantive visa was initially cancelled on mandatory grounds, no consideration would have been given to a person's connection to Australia or family circumstances at the time the visa was cancelled, as there is no discretion to consider any individual circumstances.¹³⁰

2.134 As to whether there are less rights-restrictive ways of achieving the same objective, it remains unclear whether other measures have been considered which could allow an individual to stay in Australia, and not be separated from their family (where relevant). In relation to the need to accommodate the risk posed by an individual to the Australian community, the committee has previously commented that, in relation to individuals who have been convicted of a crime, it would appear that this is a risk more appropriately managed by the courts in the sentencing process

¹²⁹ See [amendments](#) made by the Senate to the Migration Amendment (Removal and Other Measures) Bill 2024.

¹³⁰ See *Migration Act 1958*, subsection 501(3A) which provides that the minister 'must' cancel a visa if satisfied the person does not pass the character test because they are serving a sentence of imprisonment because of a substantial criminal record (being sentenced to imprisonment of 12 months or more) or sexually based offences involving a child.

and then managed in the community, such that they do not require further detention and removal from Australia following the completion of their sentence.¹³¹

2.135 In the absence of effective safeguards and flexibility to consider the circumstances of each individual, the measure does not appear to constitute a proportionate limit on the rights to freedom of movement and protection of the family.

Non-refoulement and prohibition against torture and ill-treatment

2.136 As outlined above, were a person exposed to a risk of poor treatment in the foreign country, this may engage the absolute prohibition against torture and other cruel, inhuman and degrading treatment or punishment. Further information was sought as to whether and how the measure is compatible with this right. In answering this question, the minister focused on detention conditions in Australia. They advised that immigration detention in Australia is not limited by a set timeframe; rather detention ends when the person is either granted a visa or is removed from Australia. The minister stated that the Government's policy position is that detention is an option of last resort. Regarding detainee welfare, the minister stated that detainees have access to various services, including health services and legal representation, and where a detainee has significant vulnerabilities, they may be considered for alternative management options (such as referral to the minister for consideration under their personal intervention powers). As to the human rights compatibility of third country reception arrangements, the minister stated that these arrangements can include safeguards relating to the treatment of persons by the reception country, although did not provide any information as to the nature or type of safeguards.

2.137 The UN Human Rights Committee has observed that there is a high threshold for establishing that there exists a real risk that a person may be exposed to a risk of ill-treatment or torture in deportation cases. The UN Committee has emphasised 'the obligation of States parties not to extradite, deport, expel or otherwise remove a person from their territory where there [are] substantial grounds for believing that there was a real risk of irreparable harm', such as arbitrary deprivation of life, ill-treatment or torture. The Committee has stated that a risk in this context 'must be personal and that there is a high threshold for providing substantial grounds to establish that a real risk of irreparable harm exists'. The Committee has observed that 'it is generally for the organs of States parties to examine the facts and evidence of the case in question in order to determine whether such a risk exists, unless it can be established that the assessment was clearly arbitrary or amounted to a manifest error or denial of justice'.¹³²

¹³¹ Parliamentary Joint Committee on Human Rights, Migration Amendment (Aggregate Sentences) Bill 2023, *Report 2 of 2023* (8 March 2023) p. 16.

¹³² *M.I. et al. v Australia*, UN Human Rights Committee Communication No. 2749/2016 (2024) [10.9].

2.138 Without further detail as to the nature of third country reception arrangements and the type of safeguards that may be included in such arrangements, it is not possible to conclude whether such arrangements would contain sufficient safeguards to ensure that a person is not removed to a third country pursuant to the measure where there is a real risk that they may be exposed to ill-treatment or torture in that country (for example, where the person is detained in the third country and the conditions of detention amount to cruel, inhuman or degrading treatment or torture).

2.139 Further information was also sought as to the compatibility of the measure with the right to non-refoulement.¹³³ As set out in the preliminary analysis, Australia's non-refoulement obligations include the requirement not to return any person to a country where there is a real risk that they would face persecution, torture or other serious forms of harm, such as the death penalty, arbitrary deprivation of life, or cruel, inhuman or degrading treatment or punishment; and the requirement for independent, effective and impartial review of non-refoulement decisions.¹³⁴ The minister advised that the visa cessation provision (paragraph 76AAA(1)(d)) does not apply to a person who has made a valid application for a protection visa that has not been finally determined or a person who cannot be removed to the foreign country because of non-refoulement obligations. The minister advised that the risk of chain refoulement will be mitigated via third country reception arrangements, which can include safeguards relating to the treatment of persons by the reception country. The minister advised that such safeguards are not included in the Act itself to enable the government to tailor safeguards, processes and procedures to the individual circumstances of the third country. The minister further noted that existing policies, practices and procedures relating to removal from Australia and compliance with non-refoulement obligations will also be relied on to ensure removals are conducted consistently with Australia's human rights obligations.

2.140 While the Act includes safeguards with respect to direct refoulement (insofar as an individual cannot be removed to a country in respect of which non-refoulement obligations apply), there may be a risk of chain refoulement, depending on the strength of the safeguards included in any third country reception arrangements. Further, as discussed above, given the inadequacy of judicial review in the context of this measure and the fact that a person may be removed notwithstanding that they

¹³³ Australia has 'non-refoulement' obligations under the International Covenant on Civil and Political Rights and the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment. Australia also has obligations under the 1951 Convention Relating to the Status of Refugees and its 1967 Protocol Relating to the Status of Refugees, but it is noted that these conventions do not form part of the committee's mandate under the *Human Rights (Parliamentary Scrutiny) Act 2011*.

¹³⁴ UN Committee against Torture, *General Comment No.4 (2017) on the implementation of article 3 of the Convention in the context of article 22* (2018). See also UN Human Rights Committee, *General Comment No. 20: Article 7 (prohibition of torture, or other cruel, inhuman or degrading treatment or punishment)* (1992) [9].

have asked the minister to exercise their personal ministerial intervention power (including in relation to further applications for a protection visa),¹³⁵ concerns arise that the measure may not be compatible with Australia's non-refoulement obligations with respect to the availability of independent, effective and impartial review of decisions to remove a person.

Right to an effective remedy

2.141 Further, as the Act establishes wide-ranging immunities for the Commonwealth from civil liability (including with respect to actions in foreign countries not done in good faith), this engages the right to an effective remedy. The minister advised that the civil liability immunity provisions seek to affirm the common law position that the government should not be held liable for damages for something that occurs to a person once they are removed to another country. The minister stated that these provisions do not alter the government's position that Australia does not exercise effective control over third country reception arrangements or regional processing arrangements. However, as discussed above, depending on the nature of the third country reception arrangements, Australia may in practice exercise effective control over those arrangements under international human rights law, irrespective of whether Australia intends to do so.

2.142 As outlined in the preliminary analysis, the statement of compatibility identified the availability of some remedies for actions that were not carried out in good faith, including Constitutional remedies and complaints via the Commonwealth Ombudsman and Australian Human Rights Commission.¹³⁶ The minister stated that the effectiveness of these remedies will depend on the individual's circumstances. For the reasons outlined above, judicial review, constitutional writs and complaints to the Australian Human Rights Commission are unlikely to be an adequate remedy in the

¹³⁵ The statement of compatibility stated that where a person makes new protection claims in relation to a country they have previously been assessed with respect to and in relation to which they have had no protection finding made, or in relation to another country to which they may be removed, including a country with which Australia has a reception arrangement, or where there may be chain refoulement concerns with respect to the third country, there is scope to identify such cases and refer them for ministerial intervention consideration prior to removal actually taking place. See *Migration Amendment Act 2024*, statement of compatibility, p. 27.

¹³⁶ *Migration Amendment Act 2024*, statement of compatibility, p. 32.

context of this measure.¹³⁷ As such, were the measure to violate a person's rights, it does not appear that there is an effective remedy with respect to such a violation.

Committee view

2.143 The committee thanks the minister for this response.

2.144 The committee notes that two decisions in which Australia was a party were handed down by the United Nations Human Rights Committee in the weeks prior to the introduction of the bill (now Act). The committee notes that neither the explanatory materials accompanying the Act nor the minister's response to the committee's inquiries called attention to those decisions, both of which were of direct relevance to the international human rights the legislation engages.

2.145 The committee notes that the cessation of person's visa and consequent detention in immigration detention engages and limits the right to liberty. The committee considers that while the objectives of protecting the safety of the Australian community and the integrity of the migration system are capable of being legitimate objectives for the purposes of international human rights law, questions remain as to whether the measure is necessary and addresses a pressing and substantial concern. If an individual was detained for a protracted period of time pursuant to this measure while awaiting removal to a foreign country, the committee considers there to be a significant risk that such detention may be arbitrary, noting that detention is not based on an individualised assessment; there are less rights restrictive alternatives available; and the available oversight and review mechanisms appear to offer minimal safeguard value. If an individual's right to liberty was violated, the committee notes that it is not clear that they would have access to an effective remedy for such a violation.

2.146 The committee further notes that the removal of a person to a foreign country under a third country arrangement may engage and limit multiple rights. The committee notes that there is a likelihood that Australia would exercise effective control under international law over persons removed to a third country pursuant to this measure and therefore Australia would owe human rights obligations to such persons. With respect to the rights to freedom of movement and protection of the

¹³⁷ In its recent report into arbitrary detention, the Australian Human Rights Commission (AHRC) referred to the complaints of former and current detainees against the Commonwealth of Australia in relation to their protracted detention. In each case, the AHRC found a violation of article 9 (right to liberty) of the International Covenant on Civil and Political Rights (ICCPR). The AHRC noted that not all detainees have been released and stated that 'repeated calls to amend the Migration Act 1958 (Cth) to address this issue have been made [by the AHRC to the Government], and ignored'. The AHRC considered its report to be 'an important record of Australia's continued non-compliance with its international obligations under the ICCPR'. See Australian Human Rights Commission, *Immigration detainees in prolonged or indefinite detention v Commonwealth of Australia* (Department of Home Affairs and Minister for Immigration and Multicultural Affairs) [2024] AusHRC 174, pp. 1–2.

family, the committee considers that in the absence of effective safeguards and flexibility to consider the circumstances of each individual, the measure does not appear to constitute a proportionate limit on these rights.

2.147 The committee notes Australia's obligations not to remove a person to a third country if there are substantial grounds for believing that there is a real risk of irreparable harm, such as arbitrary deprivation of life, ill-treatment or torture. Whether the measure is compatible with this obligation would depend on any specific third country reception arrangement and the individual circumstances of each case. The committee notes the importance of ensuring that any third country reception arrangements negotiated comply with this absolute obligation.

2.148 With respect to Australia's non-refoulement obligations, the committee considers that the Act contains safeguards with respect to direct refoulement but depending on the strength of the safeguards included in any third country reception arrangements, there may be a risk of chain refoulement. Further, given the inadequacy of judicial review in the context of this measure and the fact that a person may be removed notwithstanding that they have asked the minister to exercise their personal ministerial intervention power, the committee considers that the measure may not be compatible with Australia's non-refoulement obligations with respect to the availability of independent, effective and impartial review of decisions to remove a person.

2.149 Finally, were the measure to violate a person's rights, the committee considers that there does not appear to be an effective remedy with respect to any such violation, noting the broad civil liability immunity provisions and the inadequacy of existing domestic remedies.

Suggested action

2.150 The committee considers that to assist the human rights compatibility of this measure the Act should be amended to require that third country reception arrangements must include safeguards to ensure that Australia does not remove a person to a third country where there are substantial grounds for believing that there is a real risk of irreparable harm, such as the arbitrary deprivation of life or cruel, inhuman or degrading treatment or torture, or chain refoulement.

2.151 As the bill has now passed, the committee makes no further comment.

Reversing a protection finding

2.152 Schedule 1 Part 2 of the Act amended the Migration Act to expand the circumstances in which the minister may determine that a protection finding would no longer be made in relation to a person.¹³⁸

2.153 Prior to the amendments contained in the Act, section 197D provided that a protection finding may only be reversed in relation to specific *unlawful* non-citizens and for the purposes of subsection 197C(3), namely, where the non-citizen has made a valid application for a protection visa that has been finally determined; and in the course of considering the application, a protection finding was made with respect to the country (whether or not the visa was refused or was granted and has since been cancelled); and none of the following apply: the decision in which the protection finding was made has been quashed or set aside; or a decision made under subsection 197D(2) in relation to the non-citizen is complete within the meaning of subsection 197D(6).¹³⁹

2.154 The Act allows the minister to revisit a protection finding in relation to a broader range of non-citizens, including *lawful* non-citizens (holders of Subclass 070 (Bridging (Removal Pending)) visas, Subclass 050 (Bridging (General)) visas granted on ‘final departure’ grounds), and the holder of a type of visa which is prescribed by regulation and subject to a requirement that the person make arrangements to depart Australia.¹⁴⁰ The Act repealed and replaced subsection 197D(1) to provide that the minister may make a decision that a protection finding would no longer be made in relation to a person (that is, to reverse a protection finding) if: the non-citizen is a ‘removal pathway non-citizen’; they have made a valid application for a protection visa that has been finally determined; and in the course of considering that application, a protection finding was made with respect to a country (whether or not the protection visa was refused, or granted and subsequently cancelled).¹⁴¹ It also amended subsection 197D(2) by omitting reference to ‘an *unlawful* non-citizen to whom paragraphs 197C(3)(a) and (b) apply in relation to a valid application for a protection visa’ and substituting it with ‘the non-citizen’.¹⁴² The Act also provided that section

¹³⁸ These proposed amendments were last introduced in March 2024 in the Migration Amendment (Removal and Other Measures) Bill 2024. The bill did not proceed. The committee commented on this bill in [Report 4 of 2024](#) (17 April 2024) pp. 16-43.

¹³⁹ The Migration Amendment (Removal and Other Measures) Bill 2024 was introduced in March 2024 seeking to amend section 197D relating to the reversal of protection findings. That bill did not proceed. The committee commented on this bill in [Report 4 of 2024](#) (17 April 2024) pp. 16-43.

¹⁴⁰ *Migration Amendment Act 2024*, schedule 1, part 2, item 4, proposed definition of a ‘removal pathway non-citizen’ in subsection 5(1).

¹⁴¹ *Migration Amendment Act 2024*, schedule 1, part 2, item 6, proposed subsection 197D(1).

¹⁴² *Migration Amendment Act 2024*, schedule 1, part 2, item 5 and 7.

197D, as amended, applies in relation to a protection finding, whether the protection finding is made before, on or after the commencement of the item.¹⁴³

Summary of initial assessment

Preliminary international human rights legal advice

Rights to protection of the family; health; freedom of movement; expulsion of aliens; and non-refoulement

2.155 Previously, the power to reverse a protection finding could only be exercised in relation to *unlawful* non-citizens (that is, certain non-citizens without a visa). The amendments enabled the exercise of this power in relation to lawful non-citizens (that is, non-citizens with a visa) who are subject to the removal pathway.¹⁴⁴

2.156 The statement of compatibility with human rights states that this measure engages the prohibition on the expulsion of aliens without due process, which provides that an alien lawfully in a country may be expelled therefrom only in pursuance of a decision reached in accordance with law and with due process.¹⁴⁵ It states that a decision under section 197D may mean that a person becomes available for removal once their bridging visa ceases, and that the person is able to submit reasons why a protection finding should still be made as part of the section 197D decision-making process and have that decision reviewed by a merits review tribunal pursuant to existing provisions of the Act.¹⁴⁶ It also states that where a decision is made to cease a BVR because the person may be able to be removed following a section 197D decision, that decision is subject to natural justice processes and judicial review. These processes may mean that, in practice, there are sufficient procedures in place such that a reversal of a protection finding may be compatible with the prohibition against the expulsion of aliens without due process. Further, if a reversal of a protection finding (and subsequent removal of the person to the relevant country) did accurately and appropriately determine that the person was no longer at risk of persecution, and so no such risk arose as a matter of fact, it may also be compatible with Australia's obligations in relation to non-refoulement.¹⁴⁷ However, much will depend on the quality of the decision-making as to whether a person is owed protection obligations.

2.157 The expansion of the power to reverse a protection finding to include lawful non-citizens may also engage and limit the right to health, having regard to the

¹⁴³ *Migration Amendment Act 2024*, schedule 1, part 2, item 11.

¹⁴⁴ *Migration Amendment Bill 2024*, schedule 1, part 2, item 4, subsection 5(1) seeks to insert a definition of a 'removal pathway non-citizen', which would include certain lawful non-citizens on a BVR.

¹⁴⁵ International Covenant on Civil and Political Rights, article 13. See statement of compatibility, p. 31.

¹⁴⁶ *Migration Amendment Bill 2024*, statement of compatibility, p. 31.

¹⁴⁷ See further, *Migration Amendment Bill 2024*, statement of compatibility, p. 24.

potential for a possible reversal of a protection finding, or actual reversal, to have a detrimental impact on an affected person's mental health.¹⁴⁸ The right to health refers to the right to enjoy the highest attainable standard of physical and mental health.¹⁴⁹ The negative impacts of insecure visa status for refugees has, in particular, been considered in academic research.¹⁵⁰

2.158 Further, depending on how the power to reverse a protection finding was used in practice, it may engage and limit other human rights. In this regard, proposed paragraph 199B(1)(d) would empower the minister to prescribe *any* Australian visa as one in relation to which a visa-holder would be a 'removal pathway non-citizen', provided that the visa was subject to a criterion requiring the person to make arrangements to depart Australia. If the minister prescribed a large category of visas to which the removal pathway directions could apply, including visas granted to long-term residents, such as spouse visas or permanent residence visas, the effect on those who have been in Australia for a long period could be significant. If such visas were so prescribed, it would appear that a person who had a protection finding made in relation to them many years ago, and who had since lived for many years in Australia, could therefore be vulnerable to a reversal of that protection finding (regardless, it would appear, of whether that protection finding was relevant to their current visa status). If the power was used in relation to people who had been in Australia for a substantial period of time, including those who had established families and personal lives in Australia, it may engage and limit the rights to protection of the family and to a private life. The right to privacy includes the right to a private life, which is linked to notions of personal autonomy and human dignity.¹⁵¹ It includes the idea that individuals should have an area of autonomous development; a 'private sphere' free from government intervention and excessive unsolicited intervention by others. It may also engage and limit the right to freedom of movement, which includes the right to enter, remain, or return to one's 'own country'.¹⁵²

¹⁴⁸ Further, as a protection finding had been made in relation to a child who holds a Subclass 050 Bridging (General) visa, or any of the categories of visa which may be prescribed by regulation, the measure may also engage and limit the rights of the child. Children have special rights under human rights law taking into account their particular vulnerabilities. Convention on the Rights of the Child. See also, UN Human Rights Committee, *General Comment No. 17: Article 24 (Rights of the child)* (1989) [1]. Australia is required to ensure that, in all actions concerning children, the best interests of the child are a primary consideration. The statement of compatibility does not identify this.

¹⁴⁹ International Covenant on Economic, Social and Cultural Rights, article 12(1).

¹⁵⁰ See, for example, Nickerson A, Byrow Y, O'Donnell M, et al, 'The Mental Health Effects of Changing from Insecure to Secure Visas for Refugees', *Australian & New Zealand Journal of Psychiatry*, vol. 57, no. 11, 2023, pp. 1486–1495.

¹⁵¹ International Covenant on Civil and Political Rights, article 17.

¹⁵² International Covenant on Civil and Political Rights, article 12(4).

2.159 These rights may be limited where the limitation: seeks to achieve a legitimate objective (one which, in the case of the right to freedom of movement, is necessary to protect national security, public health or morals or the rights and freedoms of others); is rationally connected to (that is, effective to achieve) that objective; and proportionate.

Committee's initial view

2.160 The committee noted that providing for the reversal of a previous protection finding relating to a non-citizen engages and limits several human rights. The committee considered further information was required to assess the compatibility of this measure with these rights and sought the minister's advice in this regard.

2.161 The full initial analysis is set out in [Report 10 of 2024](#).

Minister's response¹⁵³

2.162 The minister advised:

a) whether and how the measure is compatible with the right to health;

The Bill expands the existing power provided in section 197D to revisit a protection finding for an unlawful non-citizen to a broader group of 'removal pathway non-citizens'. Where this occurs, the individual will have access to full merits review and judicial review.

The Department has existing procedural instructions guiding departmental officers' interactions with vulnerable individuals when it exercises Migration Act powers, including where issues of mental health are identified.

b) whether and how the measure is compatible with the right to a private life;

The Committee's question appears to be based on a concern that the Minister could prescribe a large category of visas to which the removal pathway directions could apply, including visas granted to long term residents such as spouse visas or permanent residence visas, and that therefore the ability to revisit protection findings could apply to persons holding such visas. However, as noted above, the Bill, in the definition of 'removal pathway non-citizen' at item 4, limits the ability to prescribe additional visas to those where the person, at the time the visa was granted, satisfied a criterion for the grant relating to the making of, or being subject to, acceptable arrangements to depart Australia. Therefore the Minister would not be able to prescribe substantive long-term visas to which these measures would apply – the measures would be limited to persons who are otherwise on a removal pathway.

¹⁵³ The minister's response to the committee's inquiries was received on 6 December 2024. This is an extract of the response. The response is available in full on the committee's [webpage](#).

As such persons are on a removal pathway following the refusal or cancellation of a substantive visa, usually on character grounds, and a protection finding may be a key barrier to their removal from Australia, it is appropriate that reconsideration of their circumstances, to see if they continue to engage Australia's *non-refoulement* obligations, can take place. This could be in circumstances where, for example, country conditions have significantly improved such that the person no longer faces a real risk of the relevant harm.

c) whether this measure is directed towards a legitimate objective which seeks to address an issue of public or social concern that is pressing and substantial enough to warrant limiting rights, and

Section 197C of the Migration Act currently provides that removal of an unlawful non-citizen under section 198 of the Migration Act is not required or authorised to a country in respect of which there has been a protection finding made in a protection visa process in relation to that person unless:

- the decision in which the protection finding was made has been quashed or set aside;
- a decision is made under section 197D that an unlawful non-citizen is no longer a person in respect of whom a protection finding would be made; or
- the non-citizen requests, in writing, to be removed.

(This will be amended as a result of the Bill, such that it will apply unless a decision is made under section 197D that a non-citizen who is an unlawful non-citizen or a visa holder who is a removal pathway non-citizen, is no longer a person in respect of whom a protection finding would be made.)

A decision under section 197D could be made in circumstances where, for example, country conditions have significantly improved such that the person no longer faces a real risk of the relevant harm.

Where a non-citizen is on a removal pathway following the refusal or cancellation of a substantive visa, usually on character grounds, but is subject to a protection finding, it is appropriate that reconsideration of their circumstances, to identify whether they continue to engage Australia's *non-refoulement* obligations, can take place. A decision that such a person is no longer a person in respect of whom any protection finding would be made will ensure that the person can be removed from Australia, consistent with Australia's *non-refoulement* obligations.

i. how many people who would currently meet the proposed definition of a 'removal pathway non-citizen' are subject to a protection finding;

The Department has not estimated the number of removal pathway non-citizens who are subject to a protection finding.

ii. of those persons, what year was the oldest relevant protection finding made;

The Department has not estimated the number of non-citizens who meet this definition who are subject to a protection finding and in the time available it is not possible to identify the oldest protection finding.

d) how permitting the reversal of protection findings would be effective to achieve the objective;

As noted above, as removal pathway non-citizens are on a removal pathway following the refusal or cancellation of a substantive visa, usually on character grounds, where a protection finding may be a key barrier to their removal from Australia, it is appropriate that reconsideration of their circumstances, to determine if they continue to engage Australia's *non-refoulement* obligations, can take place.

Consideration under section 197D follows natural justice processes and includes a merits review right, as well as being subject to judicial review.

e) what information the minister would use to reverse a protection finding in relation to a person (particularly a protection finding made several years prior);

As with a first instance protection finding, a delegate must consider any information received from the individual in the context of their original Protection visa application and any information that arises on the facts of the case, including current country of origin information. Consideration must also be given to any new claims the person may make as part of the process under section 197D of the Migration Act.

f) whether an affected person would be able to make submissions regarding a potential reversal of protection finding (and if so, when); and

Common law procedural fairness applies to a section 197D decision, requiring the delegate to:

- give the individual notice prior to a decision being made,
- give the individual the opportunity to comment on any new information that is significant, credible, and relevant to the decision being made, and which is adverse to their claims, and
- draw the individual's attention to the critical factors on which the decision is likely to turn, and provide them with an opportunity to respond.

Procedural fairness must be afforded prior to a decision being made.

g) whether a decision to reverse a protection finding would be subject to review either internally or externally, and whether this would be administrative review or merits review.

A decision under section 197D is reviewable by the Administrative Review Tribunal (ART) under Part 5 of the Migration Act. A decision of the ART is subject to judicial review before the courts.

Concluding comments

International human rights legal advice

2.163 As outlined in the preliminary analysis, expanding the power to reverse a protection finding to a broader category of people, including lawful non-citizens who may have been in Australia for a substantial period of time, may limit multiple human rights depending on how the power is used in practice. The minister advised that the power applies to lawful non-citizens who hold a Subclass 050 (Bridging (General)) visa or another visa prescribed by the regulations *and* at the time that visa was granted, satisfied a criterion for the grant relating to the making of, or being subject to, acceptable arrangements to depart Australia. The minister stated that as a result of this latter criterion, the measures are limited to persons who are on a removal pathway and not persons on long-term visas. The minister further stated that persons on a removal pathway are those who have had their substantive visa cancelled or refused on character grounds. While it is acknowledged that the measure does not apply directly to people on a long-term substantive visa (as per the definition of ‘removal pathway non-citizen’), it appears that the persons to whom the measure applies may have previously been on a long-term visa prior to their visa being cancelled on character grounds and subsequently been granted a bridging visa subject to making arrangements to depart Australia.¹⁵⁴ As such, there remains a risk that the measure may apply to persons who have been in Australia for a substantial period of time and established strong family and social connections in Australia.

2.164 While regulating Australia’s migration system is a legitimate objective, the preliminary analysis raised questions as to whether there is a pressing need to extend the power to reverse a protection finding in relation to a potentially significant number of lawful visa holders. The minister advised that it is appropriate that a non-citizen’s protection finding is reconsidered to identify whether they continue to engage Australia’s non-refoulement obligations. The minister stated that a decision that such a person is no longer owed protection obligations will ensure that the person can be removed from Australia, consistent with Australia’s non-refoulement obligations (noting that a protection finding may have been the key barrier to the person’s

¹⁵⁴ For example, between 1 July 2018 and 31 December 2023, the most common visa cancellation category was 444 Special Category visas (which are available for New Zealand citizens and allow visa holders to remain in Australia for an indefinite period of time until they leave Australia). The second most common visa cancellation category was a 155 Five Year Resident Return visa (which are available for Australian permanent residents or former permanent residents or citizens and allow visa holders to travel in and out of Australia as many times as they want for up to five years). See Department of Home Affairs, [Character \(s501\) and general cancellation statistics](#) (31 December 2023).

removal from Australia). The minister noted that such reconsideration could occur where the country conditions have significantly improved such that the person no longer faces a real risk of the relevant harm.

2.165 In the absence of evidence demonstrating the specific risk that the broader category of people to whom the measure applies pose to the Australian community, it remains unclear what pressing and substantial concern the measure seeks to address. This is particularly so considering the vast array of reporting and monitoring conditions that may be attached to a person's visa for the purpose of mitigating any risk to the safety of the Australia community.¹⁵⁵

2.166 A relevant consideration in assessing proportionality is how the measure will likely operate in practice, including what information the minister would use to reverse a protection finding and whether a person would be able to make submissions regarding the decision. The minister stated the delegate would consider the same information that was available in the first instance protection finding, including information received from the individual in their original protection visa application as well as any information that arises on the facts of the case, such as current country of origin information. The minister must also consider any new claims the person may make as part of the process. The minister advised that common law procedural fairness applies to the decision, requiring the individual to be given notice prior to the decision being made; affording the individual the opportunity to comment on any new information (including adverse information); and drawing the individual's attention to the critical factors on which the decision is likely to turn and providing them with an opportunity to respond to those factors. The minister further advised that a decision under section 197D to reverse a protection finding is subject to merits and judicial review.

2.167 The ability for an individual to make submissions to the minister; comment on any adverse information; respond to the critical factors on which the decision is likely to turn; and seek review of the decision, may operate as an important safeguard with respect to ensuring that Australia complies with its non-refoulement obligations. However, as the decision is whether a person is still owed protection obligations (not whether the person has strong connections to Australia as their 'own country' or whether the person has established a family in Australia), it is unclear whether this safeguard would be sufficient with respect to other human rights, particularly the rights to privacy, protection of the family and freedom of movement. For example, if a person provided information to the minister regarding their extensive family and social connections in Australia, it is not clear that this information would be given any weight in the decision to reverse a protection finding. As discussed above, there are few, if any, opportunities for an individual's personal circumstances, including family connections, to be considered in any subsequent removal processes (if a person's protection finding was to be reversed). It is therefore not clear that the measure is

¹⁵⁵ Depending on the type of visa granted, conditions may be imposed

accompanied by sufficient safeguards to ensure that if the decision to reverse a protection finding limited human rights, such limitations would be proportionate in practice.

Committee view

2.168 The committee thanks the minister for this response.

2.169 The committee notes that expanding the power to reverse a protection finding to a broader category of people, including lawful non-citizens who may have been in Australia for a substantial period of time, may limit multiple human rights depending on how the power was used in practice. The committee considers that while regulating Australia's migration system is a legitimate objective, it remains unclear whether the measure addresses a pressing and substantial concern. In relation to proportionality, the committee notes that the measure is accompanied by some procedural fairness safeguards but considers that these may not be sufficient to ensure that a limitation on certain human rights, such as the rights to protection of the family and freedom of movement, are proportionate in practice.

2.170 As the bill has now passed, the committee makes no further comment.

Disclosure of criminal history information, including to foreign countries

2.171 Schedule 3 of the Act establishes broad information sharing powers. It provides that the minister or an officer of the department may collect, use or disclose, to a person or body, 'criminal history information' for the purpose of directly or indirectly informing the performance of a function or the exercise of a power under the Migration Act or the Migration Regulations 1994 (the Regulations).¹⁵⁶

2.172 'Criminal history information' means information about an individual's criminal history, including any charge against the individual, whether or not they have been found to have committed the offence; any finding that the individual committed such an offence, whether or not the individual has been convicted of the offence; any conviction of the individual of such an offence, whether or not the conviction is spent; and any other result of a proceeding for the prosecution of the individual for an offence.¹⁵⁷

2.173 Any criminal history information disclosed to a person or body may be collected, used or disclosed to other persons or bodies for the purpose of providing advice or recommendations, directly or indirectly, to the minister or an officer in relation to the performance of functions or the exercise of powers under the Migration Act or Regulations.¹⁵⁸ This information may also be collected, used or disclosed under

¹⁵⁶ *Migration Amendment Act 2024*, schedule 3, item 2, proposed subsection 501M(1).

¹⁵⁷ *Migration Amendment Act 2024*, schedule 3, item 1, proposed subsection 5(1).

¹⁵⁸ *Migration Amendment Act 2024*, schedule 3, item 2, proposed subsection 501M(2).

other provisions of the Migration Act, Regulations or any other law of the Commonwealth.¹⁵⁹

2.174 The Act also provides that any collection, use or disclosure of criminal history information which occurred *before* the commencement of the bill would be retrospectively validated,¹⁶⁰ despite any effect that may have on the accrued rights of any person. A note to this provision provides that this may include the making of a decision under the Migration Act or the Regulations.¹⁶¹ Retrospective validation also applies to civil and criminal proceedings instituted before the commencement of the item, including where those proceedings have concluded before the commencement of the bill.¹⁶²

2.175 In addition, schedule 4 of the Act provides that the minister or officer of the department may collect, use or disclose information, including personal information (which may include criminal history information), to the government of a foreign country in relation to removal pathway non-citizens,¹⁶³ and in relation to former removal pathway non-citizens who do not hold a substantive visa or a criminal justice visa.¹⁶⁴ The purposes for which these disclosures may be made include:

- determining whether there is a real prospect of the removal of the non-citizen from Australia under section 198 becoming practicable in the reasonably foreseeable future;
- facilitating the removal of the non-citizen from Australia;
- taking action or making payments, or doing a thing that is incidental or conducive to the taking of an action or making of a payment, in relation to a third country reception arrangement or the third country reception functions of a foreign country; and
- purposes directly or indirectly connected with, or incidental to, any of these purposes.¹⁶⁵

¹⁵⁹ *Migration Amendment Act 2024*, schedule 3, item 2, proposed subsection 501M(4).

¹⁶⁰ *Migration Amendment Act 2024*, schedule 3, item 4, subitem 2.

¹⁶¹ *Migration Amendment Act 2024*, schedule 3, item 4, subitem 3.

¹⁶² *Migration Amendment Act 2024*, schedule 3, item 4, subitem 4.

¹⁶³ *Migration Amendment Act 2024*, schedule 1, part 2, item 4 defines a 'removal pathway non-citizen' to mean an unlawful non-citizen who is required to be removed as soon as is reasonably practicable; a lawful non-citizen who holds a Subclass 070 (Bridging (Removal Pending)) visa; a lawful non-citizen who holds a Subclass 050 (Bridging (General)) visa and is subject to acceptable arrangements to depart Australia; and a lawful non-citizen who holds a visa prescribed by the regulations and satisfies a criterion for the grant relating to the making of, or being subject to, acceptable arrangements to depart Australia.

¹⁶⁴ *Migration Amendment Act 2024*, schedule 4, item 1, subsection 198AAA(1).

¹⁶⁵ *Migration Amendment Act 2024*, schedule 4, item 1, subsection 198AAA(2).

2.176 The disclosure may be made to any level of government of a foreign country, including a local or regional government body or an agency or authority of the government of the foreign country.¹⁶⁶

Summary of initial assessment

Preliminary international human rights legal advice

Right to privacy

2.177 By providing for the collection, use and disclosure of criminal history information to a range of authorities in Australia, and the collection, use and disclosure of personal information (which may include criminal history information) to foreign countries, these measures engage the right to privacy.¹⁶⁷

2.178 The right to privacy includes respect for informational privacy, including the right to respect for private and confidential information, particularly the storing, use and sharing of such information.¹⁶⁸ It also includes the right to control the dissemination of information about one's private life. The right to privacy may be subject to permissible limitations where the measure pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

Right to life, prohibition against torture and non-refoulement

2.179 If the use and disclosure of such information led to a decision to cancel a person's visa and remove them to a foreign country, there could be a risk that the measures may (depending on the circumstances) engage further rights, such as the right to life (if a person were exposed to the risk of the death penalty in a foreign country), the prohibition on torture and cruel, inhuman or degrading treatment or punishment (if they were exposed to such a risk in a foreign country as a result of the disclosure), or non-refoulement (if the disclosure contributed to their return to a country in which they faced persecution).

2.180 The right to life imposes an obligation on Australia to protect people from being killed by others or from identified risks. As Australia has prohibited the death penalty,

¹⁶⁶ *Migration Amendment Act 2024*, schedule 4, item 1, subsection 198AAA(6).

¹⁶⁷ Further, the proposed sharing of information within Australia could include sharing and disclosure of a broad range of criminal history information which relates to children who are not citizens (including matters for which the child was never convicted of a criminal offence), for the purpose of informing, directly or indirectly, the performance of a function or the exercise of a power under the Migration Act or the Migration Regulations. These pieces of legislation are complex and collectively exceed 2,800 pages. The explanatory materials do not particularise any of the functions or powers to which this broad information disclosure may relate. There may be a risk that this information sharing may engage and limit the rights of the child, including to privacy. The statement of compatibility does not identify this.

¹⁶⁸ International Covenant on Civil and Political Rights, article 17.

this prohibits Australia from deporting or extraditing a person to a country where that person may face the death penalty.¹⁶⁹

Committee's initial view

2.181 The committee noted that providing for the collection, use and disclosure of criminal history information under the Migration Act and Migration Regulations 1994 in Australia, and the sharing of personal information, including criminal history information, to the governments of foreign countries, engages and limits the right to privacy, and may engage and limit further human rights. The committee considered further information was required to assess the compatibility of this measure with these rights and sought the minister's advice accordingly.

2.182 The full initial analysis is set out in [Report 10 of 2024](#).

Minister's response¹⁷⁰

2.183 The minister advised:

- a) whether the stated objectives of the measure are directed towards an issue of pressing and substantial concern which warrants limiting rights;**

The Bill, once it is enacted and commences, will amend the Migration Act to authorise the Minister and officers of the Department to collect, use or disclose criminal history information to a person or a body (such as the Community Protection Board) for the purpose of informing, directly or indirectly, the performance of a function or the exercise of a power under the Migration Act and the Migration Regulations. The Bill also authorises the Minister and officers of the Department to collect, use and disclose information to the government of a foreign country for specified purposes.

It is important that the Minister, officers of the Department and bodies such as the Community Protection Board, are able to lawfully consider all criminal history information, including information about charges, findings of whether a person has committed an offence, spent convictions and other results for the prosecution of an offence to mitigate any risks which may arise regarding the protection and safety of the Australian community.

The authorisation of the collection, use and disclosure of information to third countries is directed towards ensuring that the Minister and officers of the Department can lawfully manage information for the purposes of operationalising any third country arrangements.

- b) how the sharing of a broad range of criminal history information (including information about convictions which are spent**

¹⁶⁹ *Judge v Canada*, UN Human Rights Committee Communication No.929/1998 (2003) [10.4]; *Kwok v Australia*, UN Human Rights Committee Communication No.1442/05 (2009) [9.4],[9.7].

¹⁷⁰ The minister's response to the committee's inquiries was received on 6 December 2024. This is an extract of the response. The response is available in full on the committee's [webpage](#).

and therefore occurred some time ago, and circumstances in which the person was never convicted of an offence) would be effective to achieve the stated objectives of the measure;

When the *Migration Amendment Act 2024* commences, it will amend the Migration Act to enable criminal information history to be collected, used and disclosed lawfully as relevant to the exercise of a power under the Migration Act and Migration Regulations.

This is necessary for three reasons:

Firstly, it enables the Minister and officers of the Department to use all information, including criminal history information, which may be relevant to informing the exercise of a power or the performance of a function under the Migration Act or Migration Regulations. Sharing the stated range of information ensures that decision-makers are lawfully able to consider all of the information that may be relevant to determining what conditions should be imposed on the visas of certain non-citizens for the purposes of protecting the community. Criminal history information, including about spent convictions, may be relevant to determining what conditions should be imposed on the visa holder, and it is therefore necessary that the information sharing measures enable this information to be considered to ensure the protection of the Australian community. There may be cases where information about charges without conviction or spent convictions is considered irrelevant or of negligible significance by a decision-maker, in which case the decisionmaker would exercise their discretion to give such information little to no weight.

Secondly, authorising the sharing of criminal history information (in particular spent convictions) will improve the efficiency of information sharing for the purposes of exercising powers or performing functions under the Migration Act and Migration Regulations. Noting that spent conviction legislation differs across jurisdictions, there is significant complexity involved in identifying in each case the applicable restrictions on any proposed collection, use or disclosure of affected information. Practically, this poses a significant limit on the collection, use and disclosure of information that is relevant to Migration Act decision-making. Similarly, partner agencies with information relevant to decision-making are often unable to separate spent conviction information from an individual's non-spent criminal history in a timely manner, which causes delays in information sharing and therefore in making decisions on appropriate visa conditions and ultimately for the protection of the community. The information sharing arrangements in the Bill will address this issue by providing a lawful basis for the collection, use and disclosure of criminal history information, including spent conviction information, to enable the Department to more efficiently and effectively collect, use and disclose all relevant information to inform the performance of functions and the exercise of powers designed to protect the Australian community.

Thirdly, in relation to sharing information with foreign countries, it is reasonable and appropriate for foreign countries who have agreed, or who may agree, to allow an individual to enter and remain in their country to request relevant information about that individual. It is a matter for the foreign countries to determine what information is relevant to their decision, and it is possible that in some cases the foreign country may require all information about the non-citizen's criminal history, including their spent convictions. The information sharing measures in this Bill will ensure that the Department has a lawful basis to provide the foreign country with the information it requires to determine whether it will agree to allow a non-citizen to enter and remain in their country, which furthers the objective of the Bill to strengthen the legislative framework for the removal of certain non-citizens from Australia.

c) how information about criminal charges where there was no conviction, and information about criminal charges which an Australian citizen would not be required to disclose because they were so old would be relevant to a contemporaneous assessment of the person's character, or the likelihood of a foreign country agreeing to accept them;

As outlined above, it is important for all criminal history information to be lawfully available to be considered by the Minister or an officer of the Department when exercising a power under the Migration Act and Migration Regulations. This mitigates any risks which may arise regarding the protection and safety of the Australian community and removal arrangements to third countries.

d) why such a broad range of criminal history information is required to be shared in order to adequately make a decision under the Migration Act and Regulations or to assist a foreign country in removing a non-citizen from Australia, and why existing information-sharing powers are inadequate;

Safety of the Australian community is the Government's highest priority.

It is the Government's view that all criminal history information should be available to be considered by a decision-maker when making a decision concerned with the protection of the Australian community in relation to certain non-citizens under the Migration Act or Migration Regulations.

e) why is it considered necessary to retrospectively validate use and disclosure of criminal history information, and whether such information has already been shared without this proposed authorisation;

The Bill puts beyond doubt that criminal history information collected, used or disclosed is, and is taken always to have been, valid and lawful if it would have been lawful to collect, use and disclose under the new authorising provision at the time it was collected, used or disclosed. This also extends

to a thing done or purported to be done that would otherwise have been wholly to partly invalid or unlawful if not for the authorised collection, use or disclosure of criminal history information.

This has the effect that there is no uncertainty as to the lawfulness of the collection, use or disclosure of criminal history information by the Minister, an officer of the Department or another person or body (such as the Community Protection Board); or of the validity of a thing done, or purported to be done in relation to that criminal history information.

f) what will be included in the policy guidance on exercising these powers and why any such privacy safeguards are not contained in the bill itself;

Policy guidance to support the amendments of the Migration Act regarding the collection, use and disclosure of criminal history information will be developed to explain the operation of the provisions, ensuring that such information is lawfully collected, used or disclosed in circumstances where it is needed to make decisions under the Migration Act and Migration Regulations.

g) what privacy protections are in place for a departmental officer, member of the Community Protection Board or expert who advises the board, and anyone else who may access information under these provisions, when handling personal information;

Where information is provided to the Department, the collection, use, disclosure and handling of that information will be in accordance with the requirements of the *Privacy Act 1988*. This relevantly includes the requirement to ensure that all personal information collected, used and disclosed by officers of the Department is accurate, up-to-date and complete. The Department is also required to take reasonable steps to protect personal information from misuse, interference or loss, and from unauthorised access, modification or disclosure. An affected individual who believes that the Department has mishandled their personal information may exercise their rights under the Privacy Act, including but not limited to making a complaint to the Office of the Australian Information Commissioner. Additionally, Departmental officers are subject to the APS Code of Conduct.

Experts and members of the Community Protection Board who are contracted service providers also have a contractual obligation not to do any act that, if done by the Department, would be a breach of the APPs. The Community Protection Board Terms of Reference set out a Code of Conduct together with confidentiality and privacy expectations which include an expectation for board members to comply with the Privacy Act in their handling of any information and to comply with applicable Australian laws. This includes a requirement for members to not engage in any act or practice which, if done by the Department would involve a contravention of the Privacy Act.

The disclosure of personal information to a foreign country would only be authorised if it was for one of the purposes specified in subsection 198AAA(2). Disclosure to the foreign country is also discretionary, and an officer of the Department may therefore decline to provide all or some of the personal information requested by the foreign country if they form the view that an excessive amount of personal information would be disclosed.

h) why other less rights restrictive measures have been considered to be ineffective to achieve these aims, for example providing a legislative basis to require that adequate privacy protections are in place before information is shared and to protect from unauthorised disclosure to a foreign country;

These measures provide an appropriate basis to support removal of non-citizens from Australia, that is reasonably and appropriately limited by the prescribed purposes for disclosure listed in subsection 198AAAA(2). Further subsection 198AAA(3) set out circumstances when information must not be disclosed, including to ensure Australia's international obligations not to refohle individuals are upheld.

i) what protections will prohibit the sharing of personal information with a foreign government where its disclosure may expose the person to a risk of the death penalty, to torture or cruel, inhuman or degrading treatment or punishment, or to a risk of refolement; and

Subsection 198AAA(3) of the Migration Act, once it commences, operates to prevent the disclosure of information to a foreign country in relation to which a non-citizen may engage, or has been found to engage, protection obligations or while a protection visa application they have made is undergoing consideration and has not been finally determined.

To the extent the foreign country has the death penalty for certain offences, all officers of the Department will also be required to comply with Secretary Instructions for dealing with countries that impose the death penalty. This includes a requirement to undertake a risk assessment of whether the disclosure may result in the prosecution or punishment of a person for an offence where the death penalty may be imposed.

Existing policy guidance, with respect to the disclosure of information to foreign governments for removal purposes, states the following:

- Removal Officers must not inform foreign government officials that the removee has applied for or been refused a PV, or the details of their protection claims. This prohibition includes information about a removee's ongoing PV process, ongoing merits or judicial review following a decision to refuse their PV application, and any information on unsuccessful protection claims. Contact with foreign missions or foreign government officials regarding the removee may give rise to new protection claims – especially if information is provided that the removee has sought protection in Australia.

- The disclosure of information to foreign governments must go no further than is lawful and necessary to obtain a travel document and to secure the removee's readmission into the country of return.

This guidance will be updated following the amendments made by the Act.

If a person considers that the disclosure of the information has exposed them to a risk of harm in their receiving country, it would be open to them to make a protection visa application (if they have not made one previously) or request ministerial intervention to enable them to make a further protection visa application so that the claims can be considered. If the claims relate to a third country, pre-removal processes and ministerial intervention avenues could consider the claims to identify whether *non-refoulement* obligations would be engaged. Australia would not remove the person in breach of *non-refoulement* obligations.

j) why are there no safeguards in the bill to ensure that personal information is not shared with a foreign government in circumstances that would or may expose a person to the death penalty or lead to a person being tortured, or subjected to cruel, inhuman or degrading treatment or punishment.

All officers of the Department are already required to comply with *Secretary Instruction 17: Dealing with countries that impose the death penalty* in circumstances where they are dealing with countries imposing the death penalty in relation to removal planning. Those Instructions provide that, before disclosing information to foreign entities, the Department must consider if the disclosure may result in the prosecution or punishment of a person for an offence where the death penalty may be imposed. The Department is required to complete a risk assessment when deciding whether to disclose information.

As noted above, existing policy guidance, with respect to the disclosure of information to foreign governments for removal purposes, addresses information disclosure in circumstances where that disclosure may expose a person to a risk of harm contrary to Australia's *non-refoulement* obligations. This policy guidance will be updated following the amendments made by the Bill.

Concluding comments

International human rights legal advice

Right to privacy

2.184 As to the objective being pursued by the measure, the minister advised that it is important that the minister, departmental officers and bodies such as the Community Protection Board are able to lawfully consider all criminal history information to mitigate any risks which may arise regarding the protection and safety of the Australian community. The minister stated that it is necessary to share the full scope of information, including information about spent convictions or charges

without convictions, as this information may be relevant in determining what conditions should be attached to an individual's visa and the information may be relevant to informing the exercise of a power or the performance of a function under the Migration Act or Migration Regulations. The minister noted that if information about charges without convictions or spent convictions is considered irrelevant or of negligible significance, the decision-maker can exercise discretion to give such information little or no weight. The minister further advised that sharing the full scope of criminal history information, particularly spent convictions, will improve the efficiency of information sharing. The minister explained that because spent conviction legislation differs across jurisdictions, there is complexity in identifying the applicable restrictions on the proposed collection, use or disclosure of information in each jurisdiction, and there are delays in information sharing because partner agencies are unable to separate spent conviction information from other criminal history information in a timely manner. The minister stated that the Act addresses this issue by authorising the department to more efficiently and effectively collect, use and disclose all criminal history information.

2.185 Regarding information sharing with foreign countries, the minister advised that authorising the collection, use and disclosure of information to third countries is directed towards ensuring the minister and departmental officers can lawfully manage information for the purposes of operationalising any third country agreements. The minister stated that it is reasonable and appropriate for foreign countries who have agreed, or may agree, to allow an individual to enter and remain in their country to request relevant information about that individual. The minister noted that it is a matter for foreign countries to determine what information is relevant and some foreign countries may not require all criminal history information about an individual, such as spent convictions. By facilitating information sharing with foreign countries, the minister stated that the measure furthers the objective of the Act, which is to strengthen the legislative framework for the removal of certain non-citizens from Australia.

2.186 In general terms, protecting the Australian community from harm is capable of constituting a legitimate objective. However, in order for this objective to be legitimate in the context of this specific measure, it must also be demonstrated that the measure is necessary and directed towards addressing a pressing and substantial concern. In this regard it remains unclear whether the persons to whom the measure applies pose a risk to the Australian community that is pressing and substantial enough to warrant limiting their right to privacy in this manner, particularly when compared with persons in the broader community who have been convicted of serious criminal offences. It is also not clear that collecting, using and disclosing the full scope of criminal history information (including information about spent convictions or charges without conviction) is necessary to achieve this objective, noting that such information does not appear to be relevant to a contemporaneous assessment of the person's character (as such information may relate to incidents that occurred some time ago,

or to alleged incidents which were never proven). Further, it has not been demonstrated why information-sharing powers as they stood prior to these amendments were insufficient to achieve the stated objective. The minister's response suggests that a broad range of criminal history information could be shared prior to the amendments in this Act, but such information sharing may not have been as timely as desired due to complexities in the legislation. However, seeking to improve the efficiency of information sharing is not, in and of itself, a legitimate objective as it is directed towards administrative convenience (which, under international human rights law, is unlikely to constitute a legitimate objective). It therefore remains unclear whether the measure pursues a legitimate objective or is rationally connected to that objective for the purposes of international human rights law.

2.187 Regarding proportionality, as outlined in the preliminary analysis, the measure authorises a wide range of information to be collected, used and disclosed, and the information-sharing powers are broadly framed. The purposes for which information may be collected, used and disclosed are extensive, including for the purpose of informing, directly or indirectly, the performance of a function or the exercise of a power under the Migration Act or Migration Regulations (both of which are extensive). Further, the Act permits secondary use and disclosure of information, and overrides other laws of the Commonwealth, states or territories regardless of whether they create offences for the sharing of such information (including spent convictions information). The Act authorises the sharing of information to foreign countries for a broad range of purposes, including for the purpose of anything incidental or conducive to taking actions in relation to third country reception arrangements or functions and making payments towards them.¹⁷¹ The breadth of these information-sharing powers suggest that the measure may not be sufficiently circumscribed.

2.188 As to safeguards, the minister advised that policy guidance will be developed to explain the operation of these information-sharing provisions and to ensure that information is lawfully collected, used or disclosed in circumstances where it is needed to make decisions under the Migration Act or Migration Regulations. The minister did not elaborate on the likely contents of such policy guidance or why such privacy safeguards are not contained in the legislation. The minister further advised that departmental staff as well as members of the Community Protection Board who are contracted service providers would have privacy obligations under the *Privacy Act 1988* (Privacy Act), Australian Privacy Principles (APPs) and APS Code of Conduct. Such obligations include taking reasonable steps to protect personal information from misuse, interference or loss, and from unauthorised access, modification or disclosure. With respect to disclosing information to foreign countries, the minister advised that the decision to disclose is discretionary and departmental officers may decline to

¹⁷¹ *Migration Amendment Act 2024*, schedule 4, item 1, subsection 198AAA(2).

provide all or some personal information requested by a foreign country if they form the view that an excessive amount of personal information would be disclosed.

2.189 Most of the safeguards identified by the minister are discretionary and will be set out in future policy documents, rather than in legislation. Discretionary safeguards alone may not be sufficient for the purpose of a permissible limitation under international human rights law as such safeguards are less stringent than the protection of statutory processes as there is no requirement to follow them. There also does not appear to be any requirement that the foreign country has adequate privacy protections in place around the handling of personal information or that departmental officers consider this fact in exercising their discretion to disclose personal information to that country.

2.190 Further, the Privacy Act and the APPs are not necessarily an adequate safeguard in practice, as they contain numerous exceptions to the prohibition on use or disclosure of personal information for a secondary purpose, including where its use or disclosure is authorised under an Australian law, which may be a broader exception than permitted in international human rights law.¹⁷² Additionally, a 2022 review of the Privacy Act (the review) identified numerous inadequacies in the Act in protecting privacy and personal information. It made several recommendations to strengthen privacy protections, including requiring that the collection, use and disclosure of personal information must be fair and reasonable in the circumstances, which would involve consideration of a range of factors such as the potential adverse impact or harm to the individual, whether any privacy impact is proportionate to the benefit, and whether there are less intrusive means of achieving the same objective.¹⁷³ The government's response to the review agreed to a number of recommendations and agreed in principle with others, such as the recommendation with respect to fair and reasonable handling of personal information.¹⁷⁴

2.191 It is also not clear that the measure pursues the least rights restrictive approach to achieving the stated objective. In particular, it is unclear why there needs to be such a breadth of information sharing powers in order to adequately make a decision under the Migration Act and Regulations or to assist a foreign country in removing a non-citizen from Australia. It remains unclear why other less rights restrictive approaches have been considered to be ineffective to achieve the stated objective, for example, providing a legislative basis to require that adequate privacy protections are in place before information is shared and to protect from unauthorised disclosure to a foreign

¹⁷² Australian Privacy Principles 9 and 6.2.

¹⁷³ Attorney-General's Department, *Privacy Act Review: Report 2022* (February 2023) Recommendation 12, pp. 1, 8.

¹⁷⁴ Australian Government, *Government Response: Privacy Act Review Report* (September 2023) p. 27.

country, or requiring that only the minimum amount of personal information that is necessary to achieve the stated objective is collected, used or disclosed.

2.192 For the reasons set out above, it appears unlikely that the measure constitutes a proportionate limit on the right to privacy as the accompanying safeguards are insufficient and there appear to be less rights restrictive alternatives to achieve the stated objective. Further, if an individual's right to privacy is violated by the measure, it is not clear that they would have access to an effective remedy for such a violation. This is because the Act establishes a broad ranging immunity from civil liability for activities associated with the broader visa cancellation and foreign country reception scheme, meaning an individual whose personal information is shared pursuant to these measures would have limited recourse for any breach of their human rights which resulted. Additionally, the Act retrospectively validated the sharing of criminal history information which had already occurred, which suggests that such disclosures may have already taken place (potentially in breach of secrecy provisions which would otherwise apply to such disclosure).

Right to life, prohibition against torture and non-refoulement

2.193 Having regard to the kinds of personal information and criminal history information that is authorised to be shared pursuant to this measure, there are concerns that the measure may limit the right to life and may have implications for the prohibition against ill-treatment and torture, and non-refoulement, depending on what information was shared and to which country. For example, if an individual's criminal history information included charges against the individual for repealed laws, such as laws that previously criminalised homosexuality, and that information was shared with a foreign country that currently criminalises homosexuality, there would be a risk that the individual may be exposed to a risk of harm if they were removed to that country. The extent of such a risk would depend on the foreign country to which they were being sent (and any relevant domestic laws, practices or policies) and the extent of any safeguards Australia would put in place to alleviate such a risk. As no third country reception arrangements have yet been negotiated, it is unclear what foreign countries may participate in this scheme, and what requirements (if any) those countries would be required to meet in order to protect against such risks of harm.

2.194 The minister advised that subsection 198AAA(3) operates to prevent the disclosure of information to a foreign country in relation to a non-citizen who is owed protection obligations or who has made a valid application for a protection visa that has not been finally determined. The minister stated that if a foreign country has the death penalty for certain offences, department officers are required to comply with Secretary Instructions,¹⁷⁵ which include a requirement to undertake a risk assessment of whether the disclosure may result in the prosecution or punishment of a person for an offence where the death penalty may be imposed. The minister further advised

¹⁷⁵ Particularly Secretary Instruction 17: Dealing with countries that impose the death penalty.

that existing policy guidance requires departmental officers not to inform foreign countries that the non-citizen in relation to whom information is being shared has applied for a protection visa, and disclosure of information must go no further than is lawful and necessary to obtain a travel document and secure the person's return to that country. Further, the minister noted that if a person considered that the disclosure of information to the third country has exposed them to a risk of harm, they can apply for a protection visa or request ministerial intervention.

2.195 While the Secretary Instructions may operate as an important safeguard, the value of this safeguard is diminished by the fact that it is set out in policy documents rather than the legislation. Further, as these policy documents are not public, it is difficult to properly assess whether they contain sufficient safeguards to ensure Australia complies with its international obligations in practice, noting the UN Human Rights Committee has previously raised concerns with respect to the human rights compatibility of Australia's laws relating to the removal of non-citizens and the sharing of information with foreign countries.¹⁷⁶ Further, while the minister stated that a person can apply for a protection visa in relation to the third country or request ministerial intervention, it is not clear that the person will be made aware of the full extent of information shared with the third country (such that they will be in a position to make an application or request ministerial intervention). Additionally, as discussed above, the ministerial intervention power is non-compellable, thus offering minimal safeguard value in practice.

2.196 While the extent of any risk of harm to a person will depend on the scope of information shared and the relevant laws, policies and practices of the receiving foreign country, it is not clear that the safeguards accompanying the measure would be sufficient to ensure that the measure is compatible with the rights to life and non-refoulement and the prohibition against ill-treatment and torture.

Committee view

2.197 The committee thanks the minister for this response. The committee notes that the collection, use and disclosure of personal information, including to foreign countries, limits the right to privacy and may engage further rights depending on the scope of information shared and the foreign country that receives the information.

2.198 The committee considers that while protecting the safety of the Australian community is an important objective, it remains unclear whether this constitutes a legitimate objective in the context of this specific measure, as it is unclear whether the measure is necessary and addresses a pressing and substantial concern. Given the breadth of information that is authorised to be shared, including information relating to spent convictions and charges without convictions, questions remain as to whether

¹⁷⁶ See UN Human Rights Committee, *Concluding observations on the fifth periodic report of Australia*, CCPR/C/AUS/CO/5 (2009) [20] and UN Human Rights Committee, *Concluding observations on the sixth periodic report of Australia*, CCPR/C/AUS/CO/6 (2017) [33] – [34].

it is necessary to share the full scope of information in order to achieve the stated objective. Regarding proportionality, the committee considers that the accompanying safeguards do not appear to be sufficient, noting that most safeguards are discretionary, and that there appear to be less rights restrictive alternatives to achieve the stated objective. As such, the committee considers there to be a risk that the measure may not constitute a proportionate limitation on the right to privacy. Further, the committee notes that if an individual's right to privacy was violated by the measure, it is not clear that they would have access to an effective remedy, as the Act includes broad civil liability immunity provisions and retrospectively validates previous information sharing activities.

2.199 With respect to the right to life, the right to non-refoulement and the prohibition against ill-treatment and torture, the committee considers that while there are some safeguards set out in policy documents, it is not clear these are sufficient to ensure the measure is compatible with these rights in practice.

Suggested action

2.200 The committee considers the human rights compatibility of this measure may be assisted were the Act amended to:

- (a) require that, in exercising the information-sharing powers, authorised officers only collect, use and share the minimum amount of personal information that is strictly required to achieve the prescribed purpose;
- (b) amend the definition of 'criminal history information' to exclude information about charges against an individual where those charges have not been found, spent convictions and any findings that an individual committed an offence where the individual was not convicted;
- (c) require that, prior to sharing criminal history information with a foreign country, the authorised officer must be satisfied that adequate privacy protections are in place around the handling of personal information and protection of personal information from unauthorised disclosure by the foreign country; and
- (d) prohibit the sharing of personal information with a foreign country where there are substantial grounds for believing there is a real risk that disclosure of information to that country may expose a person to the death penalty or to torture or cruel, inhuman or degrading treatment or punishment.

2.201 As the bill has now passed, the committee makes no further comment.

Enforceable bridging visa conditions

2.202 Schedule 6 of the Act amends the Migration Act with respect to Subclass 070 (Bridging (Removal Pending)) visas (BVRs). An associated legislative instrument, the Migration Amendment (Bridging Visa Conditions) Regulations 2024, which was registered on 7 November 2024, amended the requirements relating to the issue of those visas subject to certain conditions.

2.203 Given the complexity of these measures, it is useful to set out the background to this legislative framework.¹⁷⁷

Legislative background

The Regulations

2.204 On 16 November 2023, the *Migration Amendment (Bridging Visa Conditions) Act 2023* amended the Migration Act and the Migration Regulations 1994 (Migration Regulations) to grant non-citizens, for whom there is no real prospect of their removal from Australia becoming practicable in the reasonably foreseeable future, a BVR subject to specified mandatory visa conditions—non-compliance with which is a criminal offence carrying a mandatory minimum sentence of at least one year imprisonment.¹⁷⁸ It also amended the Migration Regulations to provide that certain conditions (including imposition of a curfew and electronic monitoring) must be imposed on the visa unless the minister is satisfied that the holder does not pose ‘a risk to the community’.¹⁷⁹

2.205 The Department of Home Affairs advised that, at 1 July 2024, there were 182 NZYQ-affected BVR holders in the community (168 of whom had been released from immigration detention pursuant to the High Court judgment).¹⁸⁰

2.206 On 6 November 2024, the High Court of Australia determined that the elements of the Migration Regulations relating to electronic monitoring and the imposition of a

¹⁷⁷ The committee has commented on the legislation which established this scheme. See, Parliamentary Joint Committee on Human Rights, [Report 13 of 2023](#) (29 November 2023) pp. 12–42; [Report 1 of 2024](#) (7 February 2024) pp. 43–94; and [Report 4 of 2024](#) (15 May 2024) p. 8.

¹⁷⁸ Migration Regulations, clause 070.612A. This bill was largely in response to non-citizens who were released from immigration detention following the orders of the High Court of Australia of 8 November 2023 in *NZYQ v Minister for Immigration, Citizenship and Multicultural Affairs* [2023] HCA 37.

¹⁷⁹ The four conditions are 8621 (electronic monitoring), 8617 (financial reporting), 8618 (debt or bankruptcy reporting), and 8620 (curfew). Clause 070.612A was subsequently amended on 7 December 2023 by the Migration Amendment (Bridging Visa) Regulations 2023 [F2023L01629].

¹⁸⁰ Department of Home Affairs, [brief released via freedom of information](#), p. 3. The briefing indicates that this number of BVR holders in the community will continue to grow ‘as further non-citizens in Australia conduct criminal activity in Australia and fail the character test to hold a visa (or are released from prison/detention).

curfew were constitutionally invalid because they constituted the imposition of punishment, which only the judiciary has the constitutional authority to impose.¹⁸¹ Two key elements of this conclusion were:

On its proper construction, cl 070.612A(1) is broad and flexible and authorises uncertain and unpredictable outcomes. It requires the monitoring and curfew conditions to be imposed on the visa of every person within the class unless the Minister can reach the specified state of satisfaction. That specified state of satisfaction involves a wide conception of protection of the Australian community, which extends well beyond protection from the risk of harm arising from persons within the class committing future offences and does not specify the degree or extent of: (a) the protection that is sought to be achieved; (b) the risk to such protection before the Minister may reach the required state of satisfaction; or (c) the required state of satisfaction other than at the level of "reasonable necessity" which, properly construed, means only appropriate or adapted and not essential or indispensable. This is why the plaintiff's description of cl 070.612A(1)(a) and (d) as "free-floating", "elastic", and "abstract and ill-defined", is correct.¹⁸²

and

The required state of satisfaction in cl 070.612A(1)(a) and (d) involves a positive state of mind about a negative stipulation ("the Minister is satisfied that it is not reasonably necessary to impose that condition") so that if the Minister cannot be so satisfied the conditions must be imposed, meaning that the provision resolves all doubt and uncertainty in favour of the imposition of the conditions. It does so, moreover, in circumstances where the person's right to make representations against the conditions being imposed exists only after the conditions have been imposed. In the case of the power to impose the impugned conditions, therefore, the power can be exercised even where it cannot be and has not been established that the imposition of the condition is reasonably necessary for the achievement of the purported legitimate non-punitive purpose because the default position is that the Minister imposes the condition. Indeed, there may be cases where the Minister never has the information necessary to meaningfully assess whether the imposition of the condition is not reasonably necessary for the protection of the Australian community. In these cases, the condition will generally remain imposed for up to 12 months, notwithstanding that it is not reasonably necessary to impose the condition

¹⁸¹ *YBFZ v Minister for Immigration, Citizenship and Multicultural Affairs* [2024] HCA 40. The Court stated (at [83]) "As the power to impose each of the curfew condition and the monitoring condition on a non-citizen by the Executive Government of the Commonwealth is prima facie punitive and there is no legitimate non-punitive purpose justifying the power, the power is to be characterised as punitive and therefore infringes on the exclusively judicial power of the Commonwealth in Ch III of the Constitution".

¹⁸² *YBFZ v Minister for Immigration, Citizenship and Multicultural Affairs* [2024] HCA 40 [79].

to protect any part of the Australian community. The law is framed such that, Ch III aside, the consequences set out above may result.¹⁸³

2.207 The effect of this decision is that those two conditions were invalid.

2.208 On 7 November 2024, the Migration Amendment (Bridging Visa Conditions) Regulations 2024 (the amending regulations) were registered on the Federal Register of Legislation, to take effect from 10.13 am that day. The amending regulations provide that for each of the four conditions that may be imposed on a BVR-holder, the minister *must* impose the condition if:

- (a) at the time the visa was granted there was no real prospect of the removal of the holder from Australia becoming practicable in the reasonably foreseeable future; and
- (b) despite the other conditions imposed on the visa by or under this subclause or another provision of this Division, the minister is satisfied on the balance of probabilities that the holder poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence; and
- (c) the minister is satisfied on the balance of probabilities that the imposition of the condition (in addition to the other conditions imposed by or under this subclause or another provision of this Division) is:
 - (i) reasonably necessary; and
 - (ii) reasonably appropriate and adapted;for the purpose of protecting any part of the Australian community from serious harm by addressing that substantial risk.¹⁸⁴

2.209 The amendment to subsection 070.612A thereby reversed the required state of mind required of the minister before they may impose relevant conditions.

2.210 A ‘serious offence’ mean a criminal offence against a state or federal law punishable by at least five years imprisonment where the relevant conduct involved (or would involve), specific matters including: loss of life or serious personal injury (or risk thereof); sexual assault; possession of child abuse material; child exploitation; domestic or family violence; threatening or inciting violence towards a person or group of persons on the ground of an attribute; people smuggling or human trafficking.¹⁸⁵

2.211 The rules of natural justice do not apply to the making of a decision to grant a first BVR.¹⁸⁶ This means the minister is not required to invite the affected person to make representations about proposed conditions. Once applied, these visa conditions

¹⁸³ *YBFZ v Minister for Immigration, Citizenship and Multicultural Affairs* [2024] HCA 40 [85].

¹⁸⁴ Migration Amendment (Bridging Visa Conditions) Regulations 2024, item 2.

¹⁸⁵ Migration Amendment (Bridging Visa Conditions) Regulations 2024, item 1, clause 070.111.

¹⁸⁶ *Migration Act 1958*, subsection 76E(2).

remain in place for 12 months (although nothing prevents another BVR being granted to the non-citizen, before or after the 12-month period ends).¹⁸⁷ Where a BVR-holder is subject to a condition requiring them to remain at a particular address between certain times of the day, or requiring them to wear and take other action relating to a monitoring device, they are liable for a range of offences where they fail to comply with the condition. The offences are punishable by 5 years imprisonment, or 300PU (currently \$93,900) or both, and subject to a mandatory minimum sentence of at least one year imprisonment.¹⁸⁸

2.212 On 12 December 2024, the Migration Amendment (Subclass 070 (Bridging (Removal Pending)) Visa) Regulations 2024 were registered on the Federal Register of Legislation, to take effect from 3.17 pm that day. These regulations expand the cohort of non-citizens who would be eligible for grant of a Subclass 070 (Bridging (Removal Pending)) visa (BVR) subject to mandatory visa conditions. The effect of the regulations is that non-citizens who are not in the NZYQ cohort and are granted a BVR by the minister under the minister's personal power (pursuant to section 195A of the Migration Act)¹⁸⁹ will be subject to the same mandatory visa conditions as the NZYQ cohort, including electronic monitoring and curfew conditions.

The Migration Act

2.213 Schedule 6 of the Migration Amendment Bill 2024 (now Act) amended section 76E of the Migration Act. Prior to the amendments, section 76E provided a mechanism for a visa holder who has been granted a BVR subject to conditions pursuant to the regulations, to make representations relating to the grant of a second BVR without any one or more of those conditions, and for the minister to decide whether or not to grant the second BVR accordingly. While the rules of natural justice do not apply to decisions to grant a *first* BVR,¹⁹⁰ the minister is required to invite the visa-holder to make representations within a prescribed period as to why that first visa should not be subject to one or more of those conditions. It provided that the minister must grant the visa-holder a second BVR that is *not* subject to any one or more of the conditions relevantly prescribed if: the non-citizen makes representations in accordance with the invitation; and the minister 'is satisfied that those conditions are not reasonably necessary for the protection of any part of the Australian community'.

¹⁸⁷ Migration Regulations 1994, subregulation 2.25AE.

¹⁸⁸ *Migration Act 1958*, ss 76C, 76D and 76DA.

¹⁸⁹ Section 195A of the *Migration Act 1958* allows the minister to grant a non-citizen who is detained in immigration detention under section 189 a visa to be released from detention if the minister thinks that it is in the public interest to do so.

¹⁹⁰ 'This is intended to make clear on the face of the provision that a decision to grant a BVR without application in these circumstances is not subject to the 'hearing rule', being the administrative law rule that requires a decision-maker to afford a person an opportunity to be heard before making a decision affecting their interests'. See, *Migration Amendment (Bridging Visa Conditions) Act 2023*, explanatory memorandum, p. 19.

2.214 The Act amended section 76E to provide that the minister must grant a non-citizen a second BVR that is not subject to any one or more of the conditions relevantly prescribed if:

- (a) the non-citizen makes representations in accordance with the invitation; and, either
 - (i) the minister is not satisfied, on the balance of probabilities, that the non-citizen poses a substantial risk of seriously harming any part of the Australian community by committing ‘a serious offence’; or
 - (ii) if the minister is satisfied, on the balance of probabilities, that the non-citizen poses the substantial risk mentioned in subparagraph (i)—the Minister is not satisfied, on the balance of probabilities, that the imposition of that condition, or those conditions, is reasonably necessary, and reasonably appropriate and adapted, for the purpose of protecting any part of the Australian community from serious harm by addressing that substantial risk.¹⁹¹

2.215 It also provided that in determining whether to grant a visa in accordance with subsection (4), the minister must decide whether to impose each condition prescribed for the purposes of paragraph (1)(a) ‘in the same order as required by the regulations’.¹⁹²

2.216 This amendment applied both prospectively and retrospectively, including in relation to a BVR:

- granted before 10.13am on 7 November 2024, if as at that commencement the visa-holder was still able to make representations regarding their existing BVR, or they had made such representations but the minister has not yet made a decision about it;
- granted from 10.13am on 7 November 2024 and the commencement of this item; or
- granted on or after the commencement of this item (that is, the day after the Act received Royal Assent).¹⁹³

2.217 On 20 November 2024, government amendments to the bill were agreed to relating to BVRs.¹⁹⁴ These amendments were in anticipation of subsequent amendments to the Migration Regulations (which were made by the Migration Amendment (Subclass 070 (Bridging (Removal Pending)) Visa) Regulations 2024 on 12

¹⁹¹ *Migration Amendment Act 2024*, schedule 6, item 2, paragraph 76E(4)(b).

¹⁹² *Migration Amendment Act 2024*, schedule 6, item 3, subsection 76E(4A). Pursuant to the amendments to the Migration Regulations, that order is: electronic monitoring; financial matters; bankruptcy matters; curfew.

¹⁹³ *Migration Amendment Act 2024*, schedule 6, item 5.

¹⁹⁴ See Government [[sheet ZB357](#)].

December 2024). The amendments added schedule 7 to the bill, which amended section 76B of the Migration Act to apply the offence of failing to comply with a requirement of a monitoring condition to persons who are granted a BVR under section 195A of the Migration Act.¹⁹⁵

Summary of initial assessment

Preliminary international human rights legal advice

Criminal process rights

2.218 As the committee noted when these conditions were first introduced,¹⁹⁶ being electronically monitored at all times and subject to eight-hour periods of home detention may be regarded as the imposition of a criminal penalty for the purposes of international human rights law. Although the committee raised this issue previously, the statement of compatibility accompanying the amending regulation did not identify whether the imposition of these conditions may, in and of themselves, constitute a criminal penalty under international human rights law.

2.219 In assessing whether a penalty may be considered 'criminal' in nature under international law, it is necessary to consider:

- the domestic classification of the penalty as civil or criminal;
- the nature and purpose of the penalty: a penalty is more likely to be considered 'criminal' in nature if it applies to the public in general rather than a specific regulatory or disciplinary context, and where there is an intention to punish or deter, irrespective of the severity of the penalty; and
- the severity of the penalty.

2.220 Additionally, the imposition of a mandatory minimum sentence of imprisonment engages and limits the right to liberty, which protects the right not to be arbitrarily detained.¹⁹⁷ The United Nations (UN) Human Rights Committee has stated that 'arbitrariness' under international human rights law includes elements of inappropriateness, injustice and lack of predictability.¹⁹⁸ In order for detention not to be considered arbitrary under international human rights law it must be reasonable, necessary and proportionate in the individual case. Detention may be considered

¹⁹⁵ *Migration Amendment Act 2024* as passed by both Houses, schedule 7, item 2.

¹⁹⁶ Parliamentary Joint Committee on Human Rights, *Migration Amendment (Bridging Visa Conditions) Bill 2023 and Migration Amendment (Bridging Visa Conditions and Other Measures) Bill 2023*, [Report 13 of 2023](#), p. 20–21.

¹⁹⁷ International Covenant on Civil and Political Rights, article 9.

¹⁹⁸ UN Human Rights Committee, *General Comment No. 35: Article 9 (Liberty and Security of person)* (2014) [12]. It is noted that the UN Human Rights Committee has held that mandatory minimum sentences will not *per se* be incompatible with the right to be free from arbitrary detention, see *Nasir v Australia*, UN Human Rights Committee Communication No 2229/2012 (2016) [7.7].

arbitrary where it is disproportionate to the crime that has been committed (for example, as a result of a blanket policy). As mandatory sentencing removes judicial discretion to take into account all of the relevant circumstances of a particular case, it may lead to the imposition of disproportionate or unduly harsh sentences of imprisonment.

2.221 The mandatory minimum sentencing provisions also engage and limit article 14(5) of the International Covenant on Civil and Political Rights, which protects the right to have a sentence reviewed by a higher tribunal (right to a fair trial). This is because mandatory sentencing prevents judicial review of the severity or correctness of a minimum sentence. A previous UN Special Rapporteur on the Independence of Judges and Lawyers has observed in relation to article 14(5) and mandatory minimum sentences:

This right of appeal, which is again part of the requirement of a fair trial under international standards, is negated when the trial judge imposes the prescribed minimum sentence, since there is nothing in the sentencing process for an appellate court to review. Hence, legislation prescribing mandatory minimum sentences may be perceived as restricting the requirements of the fair trial principle and may not be supported under international standards.¹⁹⁹

Rights to liberty; freedom of movement; privacy

2.222 The imposition of visa conditions, particularly those requiring a person to always wear (and maintain) an electronic monitoring bracelet, and/or be subject to a curfew relating to a specific address for up to eight hours per day for up to one year (where non-compliance carries a mandatory minimum sentence of one year imprisonment), also engages and limits a number of other human rights, in particular:

- the right to **liberty**, which prohibits the arbitrary and unlawful deprivation of liberty;²⁰⁰
- the right to **privacy**, which prohibits arbitrary and unlawful interferences with an individual's privacy, family, correspondence or home, and includes a requirement that the state does not arbitrarily interfere with a person's private and home life, as well as the right to control the dissemination of information about one's private life;
- the right to **freedom of movement**, which includes the right to move freely within a country for those who are lawfully within the country.²⁰¹

¹⁹⁹ Dato' Param Kumaraswamy 'Mandatory Sentencing: the individual and Social Costs', [*Australian Journal of Human Rights*](#), vol. 7, no. 2, 2001, pp. 7–20.

²⁰⁰ International Covenant on Civil and Political Rights, article 9.

²⁰¹ International Covenant on Civil and Political Rights, article 12.

2.223 These rights may be subject to permissible limitations where the limitation is prescribed by law, pursues a legitimate objective, is rationally connected to that objective and is a proportionate means of achieving that objective.

Committee's initial view

2.224 The committee noted the imposition of visa conditions engages and limits multiple human rights. The committee considered further information was required to assess the compatibility of this measure with these rights and sought the minister's advice in this regard.

2.225 The full initial analysis is set out in [Report 10 of 2024](#).

Minister's response²⁰²

2.226 The minister advised:

a) whether the imposition of electronic monitoring and/or curfew conditions may constitute a criminal penalty under international human rights law;

Following the High Court's decision in YBFZ, the test for imposition of these visa conditions was changed, to the test discussed below. These conditions are not imposed as a criminal penalty. Rather, they are imposed on a BVR holder to ensure the safety of the Australian community.

The conditions must be imposed only where the Minister is positively satisfied, on the balance of probabilities, that the person poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence (as defined) under any law of the Commonwealth, a State or Territory. The Minister must be satisfied on the balance of probabilities, that imposing the condition, in addition to any other conditions imposed, is reasonably necessary and is reasonably appropriate and adapted for the purposes of protecting any part of the Australian community from serious harm by addressing that substantial risk.

Section 76E of the Migration Act creates a process where, following the grant of a first BVR, individuals will have the opportunity to make representations to the Minister about the imposition of the Community Safety Test conditions, including electronic monitoring and curfew. If the Minister is satisfied on the balance of probabilities that the holder poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence, and the Minister is satisfied on the balance of probabilities that the imposition of the condition (in addition to the other conditions imposed) is reasonably necessary and reasonably appropriate and adapted for the purpose of protecting any part of the Australian community from serious harm by addressing that substantial risk, it is

²⁰² The minister's response to the committee's inquiries was received on 6 December 2024. This is an extract of the response. The response is available in full on the committee's [webpage](#).

appropriate that the imposition of those conditions be imposed. Where the Minister considers that an individual's circumstances warrant consideration of imposing a Community Safety Order, the Minister will refer those individuals to the Court for assessment.

b) whether the amending regulations address a pressing and substantial concern for the purposes of international human rights law, and

The imposition of electronic monitoring and/or curfew conditions serves the legitimate purpose of protecting the Australian community from serious harm arising from the commission of a serious offence.

This test requires that the Minister, on the balance of probabilities, is satisfied that the individual poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence. The Minister must also be satisfied on the balance of probabilities that imposing the condition, in addition to any other conditions imposed, is reasonably necessary and is reasonably appropriate and adapted for the purposes of protecting any part of the Australian community from serious harm by addressing that substantial risk.

Placing a specific term of imprisonment threshold, along with an exhaustive list that constitutes a 'serious offence', reflects the intention of the visa condition(s) having a protective purpose, by referring to an objective way of demonstrating whether the offences that the Minister is concerned with are serious or not.

Further, the requirement that the Minister must only impose each of the conditions where the Minister is satisfied on the balance of probabilities that the holder of the visa poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence is aimed at the legitimate objective of mitigating risks to the Australian community posed by such non-citizens.

The Government considers the imposition of these conditions to be reasonable and necessary both for the purposes of community safety and to mitigate the risk posed by certain BVR holders to the Australian community.

In assessing whether a substantial risk exists the Minister, or their delegate, will be required to be satisfied that the risk of harm to the community is not remote, farfetched or insubstantial. Applying the conditions under the new test is therefore appropriately limited and aimed at the legitimate objective of protecting the Australian community from serious harm.

i. how many BVRs were affected by the YBFZ decision on 6 November 2024;

Data on BVR holders is published monthly by the Department of Home Affairs in the monthly Community Protection Summary.

Data on relevant BVRs as at 31 October 2024 is available at Community Protection Summary - October 2024

- ii. **how many BVRs have been issued since the YBFZ decision (and how many had electronic monitoring and/or curfew conditions), and what was the timeframe in which these visas were granted;**

On 7 November 2024, the new test in the Migration Regulations came into effect.

Data on the number of BVRs that have had condition 8621 and 8620 applied, as at 30 November 2024 is set out in the monthly Community Protection Summary Report, available at Community Protection Summary April 2024.

The time taken for a delegate to consider and grant a BVR varies depending on the circumstances of each individual case.

- iii. **what evidence the minister would be required to have regard to in order to be satisfied on the balance of probabilities as to a level of risk;**

The regulations do not require the assessment of specific evidence. Relevant evidence may include a non-citizen's criminal history, compliance with past and ongoing judicial orders, compliance with past and ongoing rehabilitative needs, management (or lack of management) of substance issues, and engagement with pro-social and protective frameworks.

- iv. **whether the fact an affected person has previously been convicted of a serious offence (a defined in the amending regulations) many years prior may be regarded as sufficient evidence that the person poses a substantial risk of committing a serious offence in the future;**

Past criminal conduct may be relevant information for a decision maker in determining whether an individual poses a substantial risk of serious harm in the future.

Under the revised test, past offending may not, in isolation, be sufficient for a decision maker to be satisfied a person poses a substantial risk. This is however a factual question to be determined on a for case by case basis.

- v. **why the measure is necessary despite existing discretionary visa conditions, general policing oversight and investigation facilities in the community, and the Community Supervision Order scheme;**

The Government considers that a multi layered approach is appropriate for managing this cohort in the Australian community. This includes:

- General policing oversight and investigation facilities in the community.

- Boosting of personnel and resources for Operation AEGIS. The number of officers increased by 66 percent in preparation for the YBFZ decision.
- The establishment of the Community Protection Board, which provides advice to the Minister and the Minister's delegates on which community protection conditions should apply in respect of individuals in the NZYQ cohort, including community safety risks.
- Stringent visa conditions, including electronic monitoring and curfew where appropriate.
- The Community Safety Order scheme.

The availability of curfew and electronic monitoring conditions remains an appropriate lever in addition to the other measures in place for community safety.

Applying curfew and electronic monitoring where the test is satisfied allows the Department to manage community protection risks, and where conditions are not complied with, criminal penalties would apply.

c) why the test requires satisfaction as to a 'substantial risk' rather than an 'unacceptable risk';

The choice of risk threshold is a decision of the Government.

In assessing whether a substantial risk exists, the Minister, or their delegate, will be required to be satisfied that the risk of harm to the community is not remote, farfetched or insubstantial. Applying the conditions under the new test is therefore appropriately limited and aimed at the legitimate objective of protecting the Australian community from a substantial risk of serious harm.

d) how, and in accordance with what methodology, is a risk of future offending predicted (and whether, if it is assessed according to prior convictions, this constitutes double punishment for the original offending);

Visa conditions are not imposed for the purpose of punishment – rather they are directed at a legitimate non-punitive purpose of protecting the community from a specific and serious harm.

Ordinary decision making principles apply when decision makers are applying the new test for the imposition of the community protection conditions. This may include assessment of recidivist factors including the nature and frequency of past criminal conduct, substance or behavioural concerns, or the presence or lack of protective or pro-social factors.

Decision makers are supported in their assessment and methodology by the Community Protection Board, which provides evidence based recommendations. The Board comprises members from corrective services,

academia, mental health, clinical psychology and other sectors, in addition to senior public servants.

e) why the measure does not require review of the continued necessity of visa conditions more frequently than annually (such as, every two months);

The 12 month period is the maximum period of time that the community safety conditions can apply without the person's circumstances being reassessed against the test. The purpose of the expiry period ensures the Minister must re-assess the condition at a regular interval, and that it cannot remain indefinitely.

Nothing in the Migration Act or Migration Regulations prevents more frequent review of the individuals' circumstances. At any time before or after the 12 month period, the Minister or delegate can grant the individual a new BVR, with the community safety condition(s) imposed or not imposed, subject to the same consideration of whether the Minister is satisfied on the balance of probabilities that the holder poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence, and the Minister is satisfied on the balance of probabilities that the imposition of the condition (in addition to the other conditions imposed) is reasonably necessary and reasonably appropriate and adapted for the purpose of protecting any part of the Australian community from serious harm by addressing that substantial risk.

The types of circumstances that might warrant a review of a case prior to the 12 month period include:

- Where there is new information such as medical reporting, reporting from rehabilitation specialists or psychological assessments these could be considered to determine if the grant of a BVR without those conditions is appropriate.
- Where there is new information regarding the person's criminal history, such as charges having been dropped, the person's case could be reconsidered.
- Where a person is remanded in criminal custody, their visa is re-granted without the community protection conditions.

In this way, there is regular review of whether the condition continues to be reasonably necessary, appropriate and adapted in light of the particular circumstances of the individual, and for a new BVR to be granted without the condition if the Minister is satisfied on the balance of probabilities that the holder no longer poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence or that the condition (in addition to the other conditions imposed) is no longer reasonably necessary and reasonably appropriate and adapted for the purpose of protecting any part of the Australian community from serious harm by addressing that substantial risk.

- f) whether an affected person can make representations to the minister regarding those conditions at any time (not merely where invited on the issue of the first BVR); and**

Representations made by individuals subject to community safety conditions received at any time will be considered. If representations indicate new information or a change in circumstances, they will be provided to the Community Protection Board for consideration for referral to a Minister or their delegate.

- g) whether decisions related to the imposition of these visa conditions are subject to internal or external review, and if so whether such review is administrative or a review of the merits of the decision.**

If the community safety conditions are imposed, the BVR holder has the opportunity under the procedural fairness process in section 76E of the Migration Act to present information as to why those conditions should be removed. Any response to the invitation to comment will be assessed by a new delegate (i.e. not the same delegate that imposed the conditions). If the new delegate decides not to remove the conditions, the individual will have access to review of that decision at the ART.

Concluding comments

International human rights legal advice

Criminal process rights

2.227 The minister advised that the visa conditions are not imposed as a criminal penalty; rather they are imposed on the visa holder to ensure the safety of the Australian community. The minister described the matters that the minister must be satisfied of in deciding whether to impose the electronic monitoring and curfew conditions, namely, that the person poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence and that imposing the condition is reasonably necessary and is reasonably appropriate and adapted for the purposes of protecting any part of the community from serious harm by addressing that substantial risk. Regarding the evidence the minister would have regard to in deciding these matters, the minister advised that the regulations do not require the assessment of specific evidence. Relevant evidence may include a non-citizen's criminal history, compliance with past or ongoing judicial orders and/or rehabilitative needs, management (or lack thereof) of substance issues, and engagement with pro-social and protective frameworks. The minister advised that past criminal conduct or offending may be *relevant* in determining whether an individual poses a substantial risk of serious harm, but this information may not, in isolation, be sufficient for a decision maker to be satisfied a person poses a substantial risk. However, the minister noted that this is a factual question to be determined on a case-by-case basis.

2.228 While the visa conditions are not classified as a 'criminal' penalty under domestic law, this is not determinative as the term 'criminal' has an autonomous

meaning in international human rights law. Regarding to whom the measure applies, the conditions attach to specific bridging visas (granted to the NZYQ cohort and non-citizens granted a BVR by the minister under section 195A of the Migration Act) rather than the public in general. The minister stated that the objective of the conditions is to protect the community from serious harm arising from the commission of a serious offence. The statement of compatibility accompanying the regulations articulates additional objectives: to deter non-citizens from committing 'further offences';²⁰³ and to ensure compliance with visa conditions and to prevent 'absconding behaviour' (contrary to the government's efforts to facilitate the person's removal).²⁰⁴ While the stated purpose of the conditions is not explicitly to punish non-citizens, the nature of the conditions and their practical effect on individuals indicate that the conditions are likely to be considered punitive. The High Court of Australia recently made several pertinent observations in this regard (with respect to the correct classification of these conditions as being *prima facie* punitive under Australian law). With respect to the imposition of a curfew, the Court observed:

The detention imposed by the curfew condition is neither trivial nor transient in nature. For one-third of every day, the person is confined to a specified place. And they are required to remain at that specified place. The person is confined because if they leave the notified address, they will commit a criminal offence and be subject to a mandatory minimum sentence of one year in prison. Further, because of the requirement they remain at a notified address for one-third of the day, the person's liberty to remain in the community during the other two thirds of the day is also constrained. The person cannot travel any distance that would prevent them from returning in time to a "notified address"...[S]everal considerations dictate the characterisation of [this condition] as *prima facie* punitive. First, the curfew condition involves a deprivation of liberty. Second, that deprivation of liberty is material and relatively long-term. Third, the deprivation of liberty applies and will apply to all persons within the class unless the Minister reaches the specified state of satisfaction.²⁰⁵

2.229 With respect to the electronic monitoring condition, the Court stated:

[N]o person wearing the monitoring device, while awake, could become unaware of its presence. Its continued presence on the body, whilst not a cause of pain or physical discomfort, cannot be described as only a slight or modest interference with bodily integrity. One reason a person subject to the monitoring condition could not forget or ignore the monitoring device is because they are instructed to charge it twice a day for at least 90 minutes

²⁰³ Migration Amendment (Bridging Visa Conditions) Regulations 2024, statement of compatibility, pp. 7 and 11.

²⁰⁴ Migration Amendment (Bridging Visa Conditions) Regulations 2024, statement of compatibility, p. 11.

²⁰⁵ *YBFZ v Minister for Immigration, Citizenship and Multicultural Affairs* [2024] HCA 40 [51].

each time (and it vibrates if its charge is low)...The monitoring condition also effects an involuntary restraint on the liberty of the person wearing the monitoring device. The practical effect of the charging requirement and the other requirements to keep the device in good working order is to prevent an individual from being separated for an extended period from any place that has access to a mains power supply...Further, as persons unknown to the individual will be continuously tracking the individual's location (which would be likely to divulge to these persons unknown the individual's religious, political, sexual, and other personal affiliations and associations), the individual may be deterred from going to places they may otherwise go because of shame or a fear of adverse consequences from the Commonwealth or other persons with access to the information.²⁰⁶

2.230 Further, as the conditions significantly interfere with multiple human rights, it is arguable that, taken together, they may be so severe as to constitute a 'criminal' penalty for the purposes of international human rights law.

2.231 If the conditions were to be considered a 'criminal' penalty under international human rights law, this would mean that the relevant provisions must be shown to be consistent with the criminal process guarantees set out in articles 14 and 15 of the International Covenant on Civil and Political Rights. This includes the right not to be punished twice for the same offence (a relevant consideration to the extent that assessments of a risk of future offending with respect to any individuals within the affected cohort are based on prior criminal convictions);²⁰⁷ the right to be presumed innocent until proven guilty according to law, which requires that the case against a person be demonstrated on the criminal standard of proof (beyond all reasonable doubt);²⁰⁸ and the right to a fair and public hearing by a competent, independent and impartial tribunal established by law.²⁰⁹ These requirements would not be met, noting that a decision to impose a condition is not made by a court, and the minister is only required to be satisfied to the civil standard of proof (on the balance of probabilities) that the visa holder poses a substantial risk of seriously harming any part of the Australian community by committing a serious offence.

2.232 As the minister's response did not explain how the conditions taken together would not be so severe as to amount to a criminal penalty under international human

²⁰⁶ *YBFZ v Minister for Immigration, Citizenship and Multicultural Affairs* [2024] HCA 40 [58]–[61].

²⁰⁷ International Covenant on Civil and Political Rights, article 14(7).

²⁰⁸ International Covenant on Civil and Political Rights, article 14(2). See UN Human Rights Committee, *General Comment 32: Article 14: Right to equality before courts and tribunals and to a fair trial* (2007) [30]: 'The presumption of innocence, which is fundamental to the protection of human rights... guarantees that no guilt can be presumed until the charge has been proved beyond reasonable doubt'.

²⁰⁹ International Covenant on Civil and Political Rights, article 14(1).

rights law, there would appear to be some risk that it would be considered as such, and the measure may not be compatible with these rights.

Rights to liberty, fair trial, freedom of movement and privacy

Legitimate objective and rational connection

2.233 The preliminary analysis noted that the objectives of protecting public safety and facilitating the removal of non-citizens may be capable of constituting a legitimate objective (and the imposition of monitoring conditions may be effective to achieve that objective). However, further information was sought as to whether the measure addresses a pressing and substantial concern for the purposes of international human rights law.

2.234 The minister emphasised that the conditions are considered necessary and reasonable for the purpose of protecting community safety and mitigating the risk posed by certain BVR holders. The minister stated that in assessing whether a BVR holder poses a substantial risk, the decision-maker must be satisfied that the risk of harm to the community is not remote, farfetched or insubstantial. In deciding whether this risk exists, the decision-maker may have regard to various recidivist factors, including the individual's past criminal history, compliance with judicial orders, substance issues and social networks. The minister stated that decision-makers are supported in their assessment and methodology by the Community Protection Board, which provides evidence-based recommendations. The Board is comprised of members from corrective services, academia, mental health, clinical psychology and senior public servants. As to why the test requires satisfaction as to a 'substantial risk' rather than an 'unacceptable risk' (which is utilised in comparable schemes),²¹⁰ the minister advised that the choice of risk threshold is a decision of the government.

2.235 The public safety risk posed by affected individuals and the manner in which this risk is assessed are relevant considerations in determining whether the measure addresses a pressing and substantial public concern. While the minister listed some factors that may be considered by the decision-maker in assessing the risk posed by individuals, it remains unclear what weight is to be attributed to these factors in practice or how the decision-maker will assess the accuracy of the information before them, noting that the affected individual is unable to make submissions regarding the imposition of the conditions or challenge the evidence on which the decision may turn. More generally, the process of predicting future offending has been criticised by the UN Human Rights Committee as being 'inherently problematic'. Regarding the continuing detention regime in Queensland, the UN Human Rights Committee observed:

The concept of feared or predicted dangerousness to the community applicable in the case of past offenders is...essentially based on opinion as

²¹⁰ In particular, the Community Supervision Order Scheme. See, Parliamentary Joint Committee on Human Rights, [Report 14 of 2023](#) (19 December 2023) pp. 31–59.

distinct from factual evidence, even if that evidence consists in the opinion of psychiatric experts. But psychiatry is not an exact science. The DPSOA [the relevant Queensland law], on the one hand, requires the Court to have regard to the opinion of psychiatric experts on future dangerousness but, on the other hand, requires the Court to make a finding of fact of dangerousness. While Courts are free to accept or reject expert opinion and are required to consider all other available relevant evidence, the reality is that the Courts must make a finding of fact on the suspected future behaviour of a past offender which may or may not materialise.²¹¹

2.236 Given the vague methodology that is to be used by decision-makers and the general concerns from a human rights perspective with predicting future offending, questions remain as to whether affected individuals would in fact pose a risk that is pressing and substantial enough to justify limiting their rights.

2.237 Further information was also sought as to the necessity of the measure. The minister advised that the curfew and electronic monitoring conditions are an appropriate lever in addition to other measures, including general policing oversight, increasing law enforcement officers and resources, the Community Protection Board and the Community Safety Order scheme. The minister stated that a multi layered approach is appropriate for managing the individuals affected by the measure.

2.238 However, given the vast array of discretionary visa conditions that may be imposed on BVR holders, including various monitoring and reporting conditions as well as requirements for the visa holder to do everything possible to facilitate their removal from Australia and not attempt to obstruct efforts to arrange and effect their removal from Australia, it remains unclear why mandatory curfew and electronic monitoring conditions need to be imposed.²¹² As with all individuals in Australia, BVR holders are subject to the oversight of policing authorities, and liable to investigation for any suspected criminal offences. Further, they may be subject to a Community Supervision Order, by which a court may impose any conditions on a person subject to a supervision order that it is satisfied, and which it is satisfied the combined effect of which, on the balance of probabilities, are reasonably necessary, and reasonably appropriate and adapted, for the purpose of protecting the community from serious harm by addressing the unacceptable risk of the offender committing a serious violent or sexual offence.²¹³ While imposing criminal penalties for non-compliance with the visa conditions may be necessary for deterrent purposes, it remains unclear why punitive conditions including electronic monitoring are necessary to manage the

²¹¹ *Fardon v Australia*, UN Human Rights Committee, (1629/2007) (18 March 2010) [7.4(4)].

²¹² Some of these conditions were introduced in Migration Amendment (Bridging Visa Conditions) Regulations 2021 [F2021L00444]. See Parliamentary Joint Committee on Human Rights, [Report 7 of 2021](#) (16 June 2021) pp. 50–74 and [Report 9 of 2021](#) (4 August 2021) pp. 66–108.

²¹³ Migration and Other Legislation Amendment (Bridging Visas, Serious Offenders and Other Measures) Act 2023. See Parliamentary Joint Committee on Human Rights, [Report 14 of 2023](#) (19 December 2023) pp. 31–59.

potential safety risk posed by certain BVR holders. This is particularly so noting that Australian citizens who have been convicted of a criminal offence and served their sentence do not have equivalent conditions or restrictions imposed on them indefinitely. If the risk posed to the Australian community by citizens who have previously offended and served their sentence can be managed without imposing strict conditions subject to criminal penalties (such as electronic monitoring and curfews), it is unclear why similar measures could not adequately address the potential threat posed by certain BVR holders.²¹⁴

Proportionality

2.239 A consideration in assessing proportionality is the extent of any interference with human rights. The greater the interference, the less likely the measure is to be considered proportionate. As the High Court of Australia considered, the imposition of constant electronic monitoring and/or curfews, as well as the mandatory minimum sentence of imprisonment for non-compliance with the conditions, constitute a significant interference with human rights.

2.240 The revised test which the minister must apply in order to impose electronic monitoring and/or curfew conditions on a BVR holder indicates that the minister is required to assess the individual risk profile of each individual with respect to specific serious criminal offences, and apply conditions on a case-by-case basis. This may assist with the proportionality of the measure, albeit noting the above concerns regarding the accuracy of such an assessment and that the minister is only required to be satisfied to the civil standard (on the balance of probabilities) that the visa-holder poses a substantial risk of committing a serious offence, and that the associated conditions are reasonably necessary, appropriate and adapted to address that risk. The application of this standard requires only a determination that the visa-holder is more likely than not to pose that level of risk, and that the application of the relevant visa condition is more likely than not to address that risk.

2.241 While a BVR holder must be invited to make representations as to why one or more conditions should not be applied to them, this is only after those conditions have already been applied, and places the onus on the individual to justify why they should not be required. In order for the minister to remove one or all of the conditions, they would be required to *not be* satisfied that the person poses a relevant substantial risk, or if they are satisfied of such a risk, they are *not satisfied* that the imposition of the

²¹⁴ It is noted that the number of prisoners released into the Australian community after they have served their sentence is far greater than the number of people within the NZYQ cohort who have been released from immigration detention. Specifically, 18,320 Australian prisoners were released in the September 2024 quarter period: Bureau of Statistics, [Corrective Services, Australia](#) (28 November 2024). The Department of Home Affairs indicated that, at 1 July 2024, there were 182 NZYQ-affected BVR holders in the community, and that this number would continue to increase. See, [brief released under freedom of information](#), p. 2.

relevant conditions are necessary to address that risk.²¹⁵ Further, the minister advised that individuals subject to community safety conditions may make representations at any time (not merely where invited on the issue of the first BVR). The minister stated that if representations indicate new information or a change in circumstances, they will provide that information to the Community Protection Board for consideration for referral to the minister or their delegate. However, it is not clear that individuals will be informed of their ability to make representations at any time. The ability to make representations therefore has no safeguard value in relation to the issue of a first BVR, and offers limited safeguard value with respect to seeking review of the conditions once imposed or with respect to the issue of any further BVRs. Further, English is unlikely to be the primary language of many, if not most, individuals affected by this measure, which may hinder their ability to make persuasive representations or to understand their ability to make them.

2.242 Additionally, the imposition of mandatory minimum sentences of imprisonment removes the court's discretion to consider the individual circumstances of each case and impose a sentence proportionate to the offending. This increases the risk that sentences of imprisonment will be arbitrary and not proportionate in all the circumstances. As outlined in the preliminary analysis, the statement of compatibility stated that the maximum penalty provides flexibility for courts to treat different cases differently.²¹⁶ However, retaining the court's discretion to impose a sentence *greater* than the mandatory minimum sentence does not mitigate the risk that imposing a mandatory minimum sentence of one year imprisonment may be disproportionate and arbitrary in light of the particular circumstances of the case. As such, the inclusion of a maximum penalty does not offer any safeguard value.

2.243 The preliminary analysis queried the adequacy of reviewing conditions on an annual basis. The minister advised that the 12-month period is the maximum period of time that the conditions can apply without the person's circumstances being reassessed against the test. The minister stated that the purpose of the annual review is to ensure the minister reviews the conditions at a regular interval and the conditions cannot remain indefinitely. The minister noted that the Migration Act and Migration Regulations do not prevent more frequent reviews of the conditions and listed circumstances that might warrant a review of a case prior to the 12 month period. For example, where there is new information regarding a person's criminal history or personal circumstances such as reports from rehabilitation specialists or psychologists.

2.244 However, given the extent of the interference with the human rights of affected persons, review on an annual basis may not be sufficient. While an individual can make representations at any time, as noted above, it is not clear whether they will be

²¹⁵ *Migration Amendment Act 2024*, schedule 6, item 2, paragraph 76E(4)(b).

²¹⁶ Migration Amendment (Bridging Visa Conditions) Regulations 2024, statement of compatibility, p. 15.

informed of this fact. It also places the onus on the individual to seek review of the conditions, which may be difficult due to language and other barriers.

2.245 As to the availability of other review, the minister advised that the procedural fairness process in section 76E of the Migration Act applies, that is the individual may make representations as to why the conditions should be removed. The minister stated that any response to the invitation to make representations will be assessed by a new delegate and if the new delegate decides not to remove the conditions, the individual will be able to seek review of that decision at the Administrative Review Tribunal (ART). The availability of review serves as a useful safeguard.

2.246 In conclusion, it has not been demonstrated that the measure is strictly necessary and addresses a pressing and substantial concern such that it can be said to pursue a legitimate objective for the purposes of international human rights law. In regard to proportionality, while there are some safeguards accompanying the measure (such as the ability to make representations and the availability of review), it is not clear that these are sufficient, particularly given the measure constitutes a significant interference with rights.

Committee view

2.247 The committee thanks the minister for this response. The committee notes that the imposition of visa conditions, particularly those requiring a person to always wear (and maintain) an electronic monitoring bracelet, and/or be subject to a curfew relating to a specific address for up to eight hours per day for up to one year (where non-compliance carries a mandatory minimum sentence of one year imprisonment), engages and limits multiple human rights, including the rights to liberty, fair trial, freedom of movement and privacy as well as criminal process rights if the conditions were to constitute a criminal penalty under international human rights law.

2.248 The committee notes that it has previously considered the mandatory imposition of visa conditions on BVR holders when the measures were first introduced. The committee previously concluded that there may be a significant risk that the conditions impermissibly limit multiple rights.²¹⁷

2.249 The committee considers there to be some risk that the conditions taken together would be so severe as to amount to a criminal penalty under international human rights law. If the conditions were to be considered a criminal penalty, the committee considers that it has not been demonstrated that the relevant provisions are consistent with the criminal process rights, noting that a decision to impose a

²¹⁷ See, Parliamentary Joint Committee on Human Rights, [Report 13 of 2023](#) (29 November 2023), pp. 12–42; [Report 1 of 2024](#) (7 February 2024), pp. 43–94; and [Report 4 of 2024](#) (15 May 2024) p. 8. See similar comments in relation to Migration Amendment (Bridging Visa Conditions) Regulations 2021 [F2021L00444], [Report 9 of 2021](#) (4 August 2021) pp. 66–108; and Migration (Code of Behaviour for Public Interest Criterion 4022) Instrument (LIN 24/031) 2024, [Report 6 of 2024](#) (24 July 2024) pp. 25–44.

condition is not made by a court, and the minister is only required to be satisfied of the relevant matters to the civil standard of proof.

2.250 As to the compatibility of the measure with the other rights, the committee considers that while protecting the safety of the Australian community is an important objective, it remains unclear whether this constitutes a legitimate objective in the context of this specific measure, as questions remain as to whether the measure is strictly necessary (having regard to the array of other available measures) and addresses a pressing and substantial concern. Regarding proportionality, the committee notes that while there are some safeguards accompanying the measure (such as the ability to make representations and the availability of review), it is not clear that these safeguards are sufficient, particularly given the measure constitutes a significant interference with rights.

2.251 The committee believes that the passage of the legislation should have taken into account the full report of the committee's human rights concerns.

2.252 As the bill has now passed, the committee makes no further comment. The committee draws its human rights concerns regarding the legislative instruments to the attention of the minister and the Parliament.

Mr Josh Burns MP

Chair